July 2026

DELAWARE DRIVER MANUAL

First class service

from the First state



DMV

Delaware Division of Motor Vehicles



Earning your driver's license is an exciting milestone—one that represents freedom, independence, and personal responsibility. Whether you're driving to school, work, or exploring all that Delaware has to offer—from the best beaches in the nation to our scenic state parks to sales tax-free shopping—getting behind the wheel is both a major step in your life and a gateway to new opportunities.

But safe driving isn't just about passing a test—it's about staying focused, avoiding distractions, following speed limits, and never driving under the influence. Every choice you make behind the wheel affects not just you, but everyone around you. Obeying traffic laws, wearing your seatbelt, and respecting other drivers can save lives.

Delaware's roadways make it easy to travel across the state, but driving responsibly also means thinking about your impact. Consider carpooling, conserving trips, or using public transit to help protect our environment and ensure a greener Delaware for future generations.

This guide is your roadmap to becoming a safe, confident driver. Study it, take it seriously, and remember—driving is a privilege, not a right. The best drivers aren't just skilled behind the wheel; they understand that respecting the road is just as important as navigating it.

-- Governor Matt Meyer

MESSAGE FOR DELAWARE DRIVERS

The Delaware Division of Motor Vehicles has prepared this manual to assist both new and current motorists to better prepare for challenges that may be encountered while navigating Delaware's roadways.

Possession of a Delaware drivers permit or license is a privilege that comes with great responsibility. To ensure your safety, that of your passengers, and those around you, we encourage you to familiarize yourself with the rules and regulations contained in this manual.

Second only to our commitment to your safety, our mission is to ensure you receive a "First Class" customer experience that includes speed and efficiency provided by our highly trained professional staff for all of your driving-related needs.

We encourage all motorists to share the roadways in a careful, courteous, sober, and defensive manner and to remember to always fasten your seat belts. On behalf of the state of Delaware, we wish you many years of safe driving.



Shante Hastings

Secretary
Department of Transportation



Amy Anthony

Director
Division of Motor Vehicles

Delaware Division of Motor Vehicles

Corrections, suggestions, or recommendations to this manual may be addressed to:

Chief of Driver Services
Delaware Division of Motor Vehicles
P.O. Box 698
Dover, DE 19903

TABLE OF CONTENTS

SECTION ONE – INTRODUCTION

Page

Definitions 11
On-line Services 13

MOTOR VEHICLE FEES 14

SECTION TWO – DRIVER LICENSE INFORMATION

NEW FEDERAL IDENTIFICATION STANDARDS 16
What Documentation Do I Need To Get My Compliant Driver License 17

DRIVER LICENSE REQUIREMENTS 18
Exemptions From Holding A Delaware Driver License 18
Who May Not Be Licensed 18

APPLYING FOR A LICENSE 19
How Do I Get A License. 19

GENERAL REQUIREMENTS FOR ALL DRIVER LICENSE AND ID CARD APPLICANTS 19
Ineligible Immigration Status. 19
Determine Legal Status/Authorized Length of Stay. 20
Acceptable Identification Documents List 21
Foreign Adoption Requirements for Minors 24
Driving Privilege Card Requirements 24
How Do I Get A Driving Privilege Card? 25
Graduated Driver License. 27
Requirements For First Time Applicants Over Age 18. 30
Transfer Of Licenses From Other Jurisdictions Into Delaware (over 18) 30
Transfer Of Licenses From Other Jurisdictions Into Delaware (under 18). . . . 31
License Renewal. 32
Permanent License Renewal 32
Exchange Student Licensing Procedures. 32

ADDITIONAL INFORMATION 32
Restricted License. 32
Replacement License 33
Name Change 33
Address Change. 33
Identification (ID) Card 33
Veteran indicator on Driver License/Identification Card 33
Voter Registration. 34
Medical Indicator 35
Megan's Law/Sex Offenders 35
Mandatory Disclosure Of Social Security Numbers 35

Selective Service System Registration 35
Next Of Kin Registry 35
Organ And Tissue Donor Program. 35
Good Samaritan's Law 36
TAT- Human Trafficking. 36

DRIVER LICENSE CLASSIFICATIONS 37
Class D Operator's License 37
Commercial Driver Licenses (CDL) 37
Commercial Learner's Permit (CLP). 38
CDL Class A License 38
CDL Class B License 38
CDL Class C License 38
NON - CDL Class A License 38
NON - CDL Class B License. 38
Class D & DPC Learner Permit 38
Graduated Driver License Permit 38
Temporary License 38
Conditional, Occupational, And Hardship Licenses 39
Ignition Interlock Device (IID) Endorsement/License 39

ENDORSEMENTS 39
Motorcycle Endorsement. 39
Motorcycle Rider Classes. 39
Motorcycle Learner Permit 39
School Bus Endorsement. 40
Taxi/Limo Endorsement 40

THE DRIVER EXAMINATION 40
Vision Screening. 40
Highway Sign And Signal Test 41
Rules Of The Road Test. 41
Road Test. 41
Road Test Locations 42
Motor Vehicle To Be Driven During Road Test. 42
When You Must Be Accompanied By A Licensed Driver 43
Preparation For The Driver Examination 43

MEDICAL INFORMATION AND REPORTING 43
Self-Reporting Of Medical Conditions. 43
Special Examinations 43
Mandatory Medical Reporting 44
Medical Surrender 44

LICENSE REVOCATION AND SUSPENSION 44
Mandatory Revocations. 44

Habitual Offender Revocation 45
Suspension Of A Driver License 45
Child Support Delinquency 46

DRIVER IMPROVEMENT PROBLEM DRIVER PROGRAM 46
Delaware Point System 47
Driver Improvement Problem Driver Program Actions 47
Point Credit 48
Serious Speeding Violations 48
Occupational License 48
Driving During Suspension Or Revocation 49
Aggressive Driving 49
Approved Behavioral Modification/Attitudinal-Driving Courses 49
Defensive Driving Courses 49

IMPAIRED DRIVING 49
Drinking And Driving 49
Drinking And Blood Alcohol Concentration 50
Crash Risk 51
If You Drink, When Can You Drive 51
Drugs Combined With Alcohol 52
Distracted Driving 52
Drowsy Driving 53

DELAWARE DRINKING AND DRIVING LAWS 54
Drinking While Driving Prohibited 54
Driving Under The Influence (DUI) 54
Implied Consent Law 54
Law Pertaining To Juveniles Driving While Under The Influence 54
Zero Tolerance Law 54
Underage Consumption Or Possession 54
Delaware Specific Penalties And Procedures 55
Driving Under The Influence (DUI) Penalties For A First Offense 56
Ignition Interlock Device (IID) Program for First Offense Election (FOE) 56
DUI Penalties For Second Offense 57
DUI Penalties For Third Offense 57
DUI Penalties For Fourth Offense 57
DUI Penalties For Fifth Offense 57
DUI Penalties For Sixth Offense 58
DUI Penalties For Seventh Offense 58
Ignition Interlock Device Program (IID) 58

SECTION THREE – VEHICLE EQUIPMENT, TITLES, REGISTRATION, AND INSURANCE

MOTOR VEHICLE EQUIPMENT 60
Required Equipment 60
Additional Equipment. 61
Prohibited Equipment. 61
Using Headlights. 62
Using Safety Belts And Child Restraints 63

HOW TO TITLE/REGISTER YOUR VEHICLE 63
Step 1 – Liability Insurance, Financial Responsibility And Penalty 63
Step 2 – Vehicle Inspection. 64
Step 3 – Title 65
Requirement For Applicants Under 18 Years Of Age 67
Renewing Registration 67
Change Of Address 67
Change Of Name 67
Out-Of-State Inspections. 67
Responsibility Of Owner 68

SECTION FOUR – RULES OF THE ROAD

Right-Of-Way 69
Signals And Signs 69
Red Light Reinforcement Program 69
Understanding Traffic Signals 69
Arrows 71
Pedestrian Signals. 72
Accessible Pedestrian Signals (APS) 73
High Intensity Activated Crosswalk (HAWK). 73
Rectangular Rapid Flashing Beacon. 73
Bicycle Signals. 74
Highway Signs 74
Guide Signs 78
Information Signs 78
Beacons Supplementing Signs. 78

WORK ZONES 78
When Approaching Or Driving Through A Work Zone 79
Regulatory Signs 79
Warning Signs 80
Guiding Or Channelizing Devices 80
Flashing Arrow Panels 80
Flaggers 80

SOME IMPORTANT DELAWARE LAWS 81
Cell Phone/Hand-Held Electronic Device Use While Driving 81
Signaling 81
Overtaking (Passing) Other Vehicles 81
Move Over Laws 82

TRAFFIC CONTROL LAWS 83
General Laws 83
Emergency Notification System (ENS) 83
Highway-Rail Intersection Signs And Signals 83
Pavement Markings 84
Reversible Lanes 85
Reserved Lanes 85
Roundabouts 85
How to use a Diverging Diamond Intersection (DDI) 86
Shared Center Lane 87
General Rules 87
Right-Of-Way 88
Stopping For School Buses 89

PARKING 91
General Parking Rules 91
Stopping And Parking Violations 92

SPEED 93
General Speed Restriction 93
Speed Limits 93
Minimum Speed 94
Speed Signs 94

OTHER HIGHWAY USERS 94
Pedestrians 94
Bicycles 96
Sharing The Road With Motorcycles 99
Motorcycle Operation And License Endorsements 101
Mopeds And Tripeds 101
Off Highway Vehicles 101
Animal Riders And Animal Drivers 102
Farm Tractors And Equipment, Road Machinery, and Construction Equipment . . 102
Who Must Not Use The Highway 102
Slow-Moving Vehicles 102
Sharing The Road With A Truck 102
Backing Crashes 104
Reporting a Commercial Safety Violation 104

SECTION FIVE – DRIVING SKILLS AND SAFETY TIPS

BEFORE YOU DRIVE . . . 105
Trip Planning . . . 105
Check The Vehicle . . . 105
Secure Your Load . . . 107
Clean Glass Surfaces . . . 107
Adjust Seat And Mirrors . . . 108
Use Safety Belts . . . 108
Use Child Restraints . . . 109
Proper Restraint Of Child . . . 109
Bad Information . . . 111
An individual's constitutional and other legal rights during a traffic stop . . . 112
Laws regarding questioning and detention by a law-enforcement officer, proof of identity and consequences for failure to comply . . . 112
The role and procedures of a law-enforcement officer in general and during a traffic stop . . . 112
What to Do and Expect When Stopped by Law Enforcement . . . 112
How and where to file a compliment on behalf of or a complaint against a law-enforcement officer . . . 113

BASIC DRIVING . . . 113
Starting . . . 113
Accelerating . . . 113
Steering . . . 113
Speeding . . . 114
Stopping . . . 114
Braking . . . 115
Seeing Well . . . 115
Scanning . . . 116
Using Your Lights . . . 119

COMMUNICATING . . . 120
Let Others Know You Are There . . . 120
Let Others Know What You Are Doing . . . 122

ADJUSTING SPEED . . . 123
Adjusting To Road Conditions . . . 123
Adjusting To Traffic . . . 124

NIGHT DRIVING . . . 125

DRIVE DEFENSIVELY . . . 126

HOW WELL CAN YOU SEE? . . . 126
Darkness . . . 126
Rain, Fog, Or Snow . . . 126
Hills And Curves . . . 126
Parked Vehicles . . . 127
Sight Distance Rule . . . 127
Speed Limits . . . 127

SHARING SPACE . . . 127
Space Ahead . . . 127
Space Behind . . . 129
Space To The Side . . . 129
Space To Merge . . . 130
Space To Cross or Enter . . . 130
Space To Pass . . . 131
Space For Special Situations . . . 132

BE IN SHAPE TO DRIVE . . . 133
Vision . . . 133
Hearing . . . 134
Fatigue . . . 134
Drinking And Driving . . . 134
Health . . . 135
Emotions . . . 135

VEHICLE EMERGENCIES . . . 136
Steering Wheel Locking Device . . . 136
Brake Failure . . . 136
Running Off The Pavement . . . 136
Tire Blowout . . . 137
Power Failure . . . 137
Headlight Failure . . . 137
Gas Pedal Sticks . . . 137
Fire . . . 138
Stalling On Railroad Tracks . . . 138

AVOIDING COLLISIONS . . . 138
Stopping Quickly . . . 138
Turning Quickly . . . 138
Speeding Up . . . 139
Dealing With Skids . . . 139

PROTECT YOURSELF IN COLLISIONS . . . 139
Hit From The Rear . . . 140
Hit From The Side . . . 140
Hit From The Front . . . 140

CRASHES . . . 140
At The Crash Scene . . . 140
If Someone Is Injured . . . 141
Reporting Crashes . . . 141
Report an Issue . . . 142
Notes . . . 142
Crash Reporting Form . . . 145

INDEX . . . 147

DMV WEB PAGE . . . DMV.DE.GOV

TEEN DRIVER WEB PAGE . . . TEENDRIVING.DMV.DE.GOV

SENIOR DRIVER WEB PAGE . . . SENIORDRIVER.DMV.DE.GOV

SECTION ONE
INTRODUCTION

This manual gives you information on safe driving rules and practices to help you become a safe driver. Be sure to read the manual carefully. Unless you know the information in this manual, you cannot pass our knowledge exams. This manual attempts to cover the major elements of Delaware law; however, it cannot cover all parts of federal or State law. If a conflict exists, then the actual code or legislation will always take precedence.

This manual will provide information needed to drive a passenger vehicle. If you want a license to drive a commercial motor vehicle, you should read the Commercial Driver Manual. If you want an endorsement to drive a motorcycle, you should read the Motorcycle Operator Manual.

If you have a disability and need a special accommodation in order to take an exam, please call and make an appointment prior to coming to a DMV site: for Delaware City call 302-326-5000; for Wilmington call 302-434-3200; for Dover call 302-744-2500; and for Georgetown call 302-853-1000. Audio tests (with headphones) are available upon request.

Definitions

"Bicycle" includes certain class of vehicles which are exclusively human-powered by means of foot pedals. The term bicycle also includes a two- or three-wheeled vehicle with fully operable pedals and an electric motor of less than 750 watts (1 hp), whose maximum speed on a paved level surface, when powered solely by such motor while ridden by an operator who weighs 170 pounds, is less than 20 mph.

"Bike Box" means a designated area at the head of a traffic lane at intersections that provides bicyclists with a safe way to turn and a visible way to get ahead of traffic.

"Blue Certificate" means the Driver Education Certificate.

"Convicted" means having been found guilty in a court of law of a violation of the motor vehicle laws, forfeiture of bail bond, or a plea of guilty.

"Commercial Driver License (CDL)" means the class of license drivers require in order to drive a Commercial Motor Vehicle.

"Commercial Learner's Permit (CLP)" means a permit which authorizes the holder to operate a specific class or endorsement of a commercial motor vehicle and is accompanied by a commercial license holder within that same class.

"Commercial Motor Vehicle (CMV)" means, for purposes of Delaware licensing, a motor vehicle weighing, rated, or registered over 26,000 pounds; a vehicle designed to carry 16 or more occupants (including the driver); or a vehicle required to be placarded for carrying Hazardous Material. Definitions and requirements for commercial vehicles in interstate commerce may differ and are covered in Federal Motor Carrier Safety Regulations.

"Commercial Vehicle" means a vehicle classified as a pickup truck/cargo van/passenger van/bus (over 5,000 pounds).

"Department" means the Department of Transportation acting directly or through its duly authorized officers and agents.

"Divided Highway" means any highway divided into two or more roadways by an intervening space, physical barrier, or clearly indicated dividing section so constructed as to impede vehicular traffic.

"Division" means the Division of Motor Vehicles.

"DPC" means Driving Privilege Card which is a valid driver license that is issued for driving purposes only and is **not** to be used as a valid form of identification.

"Driver" includes anyone who is in actual physical control of a motor vehicle.

“Driver Education Certificate” means the certificate presented to students who successfully complete a Delaware Department of Education approved Driver Education course. The certificate must meet all Department of Education criteria to be valid. Commonly referred to as the “Blue Certificate or “White Certificate”.

"Electric Vehicle (EV)” means a vehicle powered by an electric motor using a battery that is recharged using an external power source.

“Express Highway” means a State or Interstate highway especially designed for through traffic.

"Fuel Cell Electric Vehicle (FCEV)” means a vehicle that uses a hydrogen fuel cell to power an electric motor.

“GDL” means Graduated Driver License which is a restricted permit issued to any person who is at least age 16 or under age 18 **or** who is under age 22 receiving special education services under an active Individualized Education Program (IEP) and has completed an approved driver education course.

“Highway” means the entire width between boundary lines of every road open to public vehicular traffic, but does not include roads owned by private individuals or by institutions.

“Highway-Rail Intersection” means the area common to one or more highways intersecting with, or crossing, one or more railroad tracks. You may also be familiar with highway-rail intersections being referred to as highway-rail grade crossings, grade crossings, or railroad crossings.

“Identification Card (ID)” means any type of identification card that can be used as a valid form of identification.

“IEP” means Individualized Education Program which is a program for individuals who are eligible for specialized education.

“Intersection” means the area common to two or more highways that meet, whether or not one highway crosses another.

“License (DL)” means any type of license under which the holder has the privilege of driving a motor vehicle.

“Minibike” means any motor-driven cycle which has a wheel rim size less than 10 inches, or is less than 40 inches long from hub to hub, or has an engine of less than 45 cubic centimeter displacement, or has a seat less than 25 inches above the ground.

“Moped” shall mean a pedal or nonpedal bicycle having 2 tandem wheels, either of which is 10 inches or more in maximum diameter, and having an internal combustion motor characterized in that the maximum piston displacement is less than 55 cc, or an electric motor rated between 751 watts and 2,000 watts.

“Motorcycle” includes any motor vehicle designed to travel on not more than three wheels, except tractors, minibikes, and electric personal assistive mobility devices (EPAMD).

“Motor Vehicle” includes any self-propelled vehicle designed to operate on a roadway, except farm tractors and OHVs.

“Must” means an action or practice required by law.

“NDR” means National Driver Register (NDR), which is a computerized database of information about drivers who have had their licenses suspended or revoked, or who have been convicted of serious traffic violations. Motor vehicle agencies use NDR to avoid issuing licenses to problem drivers. You may call NDR at 202-366-4800.

"Non-Plug-in Hybrid Electric Vehicle (HEV)” means a vehicle powered by an internal combustion motor that uses conventional fuel and is combined with an electric motor that cannot be recharged using external power source.

“OHV” means Off-Highway Vehicle, a motor-driven vehicle capable of cross-country travel without benefit of a road or trail, on or over land, snow, ice, marsh, swampland, or other natural terrain.

"Other Alternative Fuel" (Ethanol, liquefied gas, methanol, natural gas, propane, convertible) *Convertible is a gas/diesel vehicle converted to an alternative fuel.

"Owner" means a person who holds the legal title of a vehicle or a person who is purchasing a vehicle on time and has immediate right of possession.

"Plug-in Hybrid Electric Vehicle (PHEV)" means a vehicle powered by both an internal combustion motor which uses conventional fuel and an electric motor with battery that is recharged using external power source.

"Railroad Crossing" means "Highway-Rail Intersection" as defined above.

"Registration" means the registration certificate (card) and the registration plate (tag).

"Road" as used herein has the same meaning as highway.

"Roadway" means that portion of the highway improved, designed, or ordinarily used for vehicular traffic, excluding the shoulder.

"Safety Zone" means an area officially set aside within a highway for exclusive use of pedestrians and so marked.

"SAVE" means Systematic Alien Verification for Entitlements Program; verifies the authenticity of USCIS documentation.

"School Bus" means every motor vehicle painted with national school bus chrome yellow, and which has the words "SCHOOL BUS" displayed on the vehicle.

"Secretary" means the Secretary of the Department of Transportation of this State.

"Should" means a recommended action or practice not required by law.

"Street" as used herein, means a highway in a city or a suburban district.

"Three-point turn" is a maneuver to turn a vehicle 180 degrees on a narrow street. It is accomplished by turning sharply to the left almost to curb, backing to right almost to the other curb, and finally turning to the right side of the roadway in the direction opposite to that at start (sometimes called "turnabout").

"Trailer" means any vehicle without motor power designed to carry property or passengers and to be drawn by a motor vehicle.

"Triped" shall mean a pedal or nonpedal cycle having 3 wheels, either of which is 10 inches or more in maximum diameter, and having an internal combustion motor characterized in that the maximum piston displacement is less than 55 cc, or an electric motor rated between 751 watts and 2,000 watts.

"Two-Way Cycle Track" means physically separated cycle tracks that allow bicycle movement in both directions on one side of the road. Also known as protected bike lanes, separated bikeways and on-street bike paths.

"Vehicle" means every device in, upon, or by which any person or property is or may be transported or drawn upon a public highway, except devices moved by human power or used exclusively upon stationary rails or tracks; and except electric trackless trolley coaches, electric personal assistive mobility devices, and OHVs.

On-line Services

The DMV provides a variety of information and on-line services on our website at **dmv.de.gov**, such as issues relating to driver services, vehicle services, and transportation services. You can access our forms, manuals, and fee schedules for easy downloading or printing. We have a teen driver website, **teendriving.dmv. de.gov**, and senior driver website, **seniordriver.dmv.de.gov**. Online services include vehicle registration renewal notifications, vehicle registration renewal, driver license/ID card renewal, schedule your road exam, check the status of your license, administrative hearing requests, purchase of driving records, DMV fee calculator, organ donor requests, next of kin notification system, vanity tag, request a duplicate/change of address on a driver license/ID, pay for your uninsured motorist fine and handicap placard issuance or renewals.

Please visit our website for additional services at **mydmv.delaware.gov**

MOTOR VEHICLE FEES

Registration	Fees
CARS	
Renewals (yearly)	40.00
Late Renewals	20.00
Temporary Tag	20.00
Temporary Permit	20.00
Courtesy Inspection	4.00
Vanity Plate (yearly)	40.00
Handicap Placard	No Charge
Motorcycle	15.00
Environmental Specialty Plate (one-time)	50.00
Animal Welfare Plate (one-time)	50.00
Farmland Preservation Plate (one-time)	50.00
FARM TRUCKS (YEARLY)	
5,000 pounds or less	40.00
Greater than 5,000 pounds	*3.80
RECREATIONAL VEHICLES (YEARLY)	
5,000 pounds or less	40.00
Greater than 5,000 pounds	*6.40
TRAILERS (YEARLY)	
0 - 1,000 pounds	15.00
1,001 - 2,000 pounds	20.00
2,001 - 5,000 pounds	40.00
Greater than 5,000 pounds	*18.00
COMMERCIAL VEHICLES (YEARLY)	
5,000 pounds or less	40.00
Greater than 5,000 pounds	*18.00

For More Information
Please Contact the
DMV Website at
dmv.de.gov

Uninsured Motorist	Fees
Penalty	**100.00
Vehicle Registration Reinstatement	50.00

Driver License		
Class D	8yr	50.00
Renewal Class D	8yr	50.00
Renewal Permanent***	8yr	24.00
DPC	4yr	20.00
CDL Licenses	8yr	55.00
CDL/with HazMat endorsement	5yr	30.00
CDL/each additional endorsement		10.00
Non-CDL Class A/B	8yr	50.00
Motorcycle Endorsement	8yr	12.00
Taxi Endorsement		10.00
Late Renewal Fee		10.00
Replacement Driver License		20.00
Medical Indicator		No Charge
Change of Address		No Charge
Veteran Indicator****		10.00
Change of Name		10.00
Photo Identification Card		40.00
Replacement Photo ID Card		10.00
Driver License Record		25.00
Certified DL Record Affidavit		30.00
CDL/Disqualification Reinstatement		50.00
DL Suspension Reinstatement		50.00
DL Revocation Reinstatement		200.00

Driver's License fees also include the cost of learner's permits (Motorcycle, Class D, and CDL), that proceed the issuance of the licenses.

* Price for each 1,000 pounds over 5,000

** Plus $5.00 Per Day After 31st Day From Mailing Date of Notice

*** Effective August 1, 2007, the division will no longer issue new permanent driver license documents.

**** Veteran Indicator may be added to driver license or identification card free of charge during renewal or duplicate transactions. Otherwise, there is a $10.00 fee.

Duplicates	Fees
License Plate with Sticker	10.00
License Plate without Sticker	5.00
Validation Sticker	5.00
Dealer License Plate	10.00
Registration Card	10.00
Sample License Plate	6.00
Environmental/Animal Welfare License Plate	10.00
Farmland Preservation Plate	10.00

Titles	Fees
Title (with Lien)	55.00
Title (without Lien)	35.00
Title (Duplicate)	50.00
Vehicle Record	25.00
Certified Vehicle Affidavit	30.00
Retain Tag Fee[a]	20.00
Change Tag Service Fee[a]	15.00
Document Fee (Minimum)[b]	8.00

a - Excludes Title Fee

b - Calculated as 5.25% of the purchase price or NADA book value, whichever is greater. Mobile homes document fee will be 3.75% of the purchase price or NADA book value, whichever is greater.

Alternative Fuel Vehicle: Code & Definition

Description	Weight	Yearly Fee
Non-Plug-in Hybrid Electric Vehicle (HEV) Vehicle powered by an internal combustion motor that uses conventional fuel and is combined with an electric motor that cannot be recharged using external power source	< 6,000 LBS MGVWR	$60.00*
	6,001 - 0,000 LBS MGVWR	$80.00*
	10,001 - 26,000 LBS MGVWR	$140.00*
	26,001 > LBS MGVWR	$480.00*
Plug-In Hybrid Electric Vehicle (PHEV) Vehicle powered by both an internal combustion motor which uses conventional fuel and an electric motor with battery that is recharged using external power source. Fuel Cell Electric Vehicle (FCEV) uses a hydrogen fuel cell to power an electric motor.	< 6,000 LBSMGVWR	$85.00*
	6,001 - 10,000 LBS MGVWR	$115.00*
	10,001 - 26,000 LBS MGVWR	$200.00*
	26,001 > LBS MGVWR	$600.00*
Electric Vehicle (EV)/ Fuel Cell Electric Vehicle (FCEV) Electric Vehicle (EV) is powered by an electric motor using a battery that is recharged using an external power source. Fuel	< 6,000 LBS MGVWR	$110.00*
	6,001 - 10,000 LBS MGVWR	$150.00*
	10,001 - 26,000 LBS MGVWR	$260.00*
	26,001 > LBS MGVWR	$900.00*
Other Alternative Fuel (Ethanol, liquefied gas. methanol. natural gas, propane, convertible) *Convertible is a gas/diesel vehicle converted to an alternative fuel.	< 6,000 LBS MGVWR	$110.00*
	6,001 - 10,000 LBS MGVWR	$150.00*
	10,001 - 26,000 LBS MGVWR	$260.00*
	26,001 > LBS MGVWR	$900.00*
Electric Motorcycles	No weight requirements	$15.00*

Notes

- DMV accepts cash, check, money order and credit card payments from Visa, American Express, Discover, MasterCard, Google Pay and Apple pay with proper identification.
- If you present an uncollectible check, a penalty fee of $25.00 is charged. If the original amount plus the penalty fee is not paid within 10 days, your driver's license and/or registration will be suspended.
- The DMV will not charge late fees for active duty military members, or their dependents, when renewing or processing beyond an expiration date if they can provide proof that they were deployed or stationed outside of the State of Delaware at the time of expiration. Military identification along with military assignment orders will provide this proof.
- Delaware law allows a vehicle owner who trades in a Delaware-titled vehicle, when purchasing another vehicle, to deduct the value of the trade-in vehicle from the purchase price of the new vehicle. Certain limitations apply to this credit. Refer to Forms and Manuals Section MV347 Document Fee Credit, on the Division of Motor Vehicles website at **dmv.de.gov**.
- Delaware law allows a vehicle owner a credit on a sales tax, transfer tax, or some similar levy paid to another state on the purchase of a vehicle within 90 days prior to registering the vehicle in Delaware. The 90-day rule is strictly enforced.
- Delaware law allows the Division to charge a reasonable fee not to exceed $25.00 to any person presenting a payment that is returned as uncollectible (i.e., bounced check or bad credit card). The Division will send notification by certified mail to the last known address of the individual presenting the uncollectible payment and allow 10 days to furnish payment. If payment is not received within 10 days following the date of mailing of such certified mail, the Division shall forthwith suspend the individual's driver license or vehicle registration until payment has been paid in full.

SECTION TWO

DRIVER LICENSE INFORMATION

In 2010, The Delaware Division of Motor Vehicles (DMV) began issuing secure driver licenses and identification cards to meet Federal Identification standards. The Federal identification standards affected what was needed to apply for or renew your driver license or identification card. Please take a moment to read about the application process and find out what documents you will need to COLLECT and BRING with you so you can SECURE your new driver license or identification card.

FEDERAL IDENTIFICATION STANDARDS

The 9-11 Commission, which was formed following terrorist attacks on the United

States in 2001, issued several recommendations and requirements that were aimed at improving our nation's security. One powerful and challenging requirement was the development of federal identification standards for states to follow when issuing driver licenses and identification (DL/ID) cards. These identification standards are intended to combat terrorism, identity theft, and other crimes by strengthening the integrity and security of state-issued identification documents.

- Certain information and security features must be incorporated into each card.
- Source documentation must be provided for proof of identity, lawful status in the U.S., date of birth, social security number, and primary residence address (compliant DL/ID acceptable documentation list).
- Source documentation provided by an applicant must be verified.
- Security and privacy of personal information collected when applying for a driver license or identification card must remain a top priority.



What Documentation Do I Need To Get My Compliant Driver License?

Delaware residents who wish to obtain a compliant driver license must have their source documents validated. For existing DL/ID holders, you will be presenting original source documents at the time of renewal, like you did the first time you obtained your DL/ID. This is a one-time revalidation. The only time the DMV will need to see your source documents again is if you decide to change any of the information on your DL/ID, such as a name change, or if your immigration documents expire. All new applicants will already be required to show this documentation; so, for them, it will be business as usual. Please refer to page 21 for a complete list of acceptable source documentation.

Some existing customers may not want, or be able, to provide these documents. For folks in this situation, you may obtain a non-compliant DL/ID. A compliant DL/ID is distinguishable by the gold star in the upper right-hand corner of the DL/ID and a non-compliant card is distinguishable by the phrase "Not for Federal ID" printed in the upper margin of the DL/ID.

A non-compliant license may be converted to compliant status at any time. To convert your license visit any local DMV and provide the required documents for a compliant license found on Page 21. There will be a $20.00 replacement license fee assessed.

Delaware made the decision to change our process to comply with federal identification standards for your security and convenience. By complying with these standards, in addition to driving authority and identification, you will be able to use

your DL/ID for domestic flights, entering federal facilities, and other official federal purposes. Without obtaining a federally-compliant DL/ID, you will be required to obtain a U.S. passport (or other acceptable document per the Department of Homeland Security) to do these things; and obtaining a passport is going to be more time consuming and expensive for you.

DRIVER LICENSE REQUIREMENTS

If you operate a motor vehicle on public roadways in Delaware you are required to have a driver license, and you must carry it with you. You are required to obtain a Delaware driver license within 60 days after becoming a bona fide Delaware resident.

Exemptions From Holding A Delaware Driver License

1. Individuals while driving or operating a road roller, road machinery, or farm tractor or implement of husbandry temporarily on a highway.
2. Non-resident operators, over the age of 16 years, currently licensed in their home state or country. The license must be in the driver's possession.
3. Members of the Armed Forces of the United States who are serving on active duty and any dependent of the member if they possess a valid driver license from their state of domicile.

Who May Not Be Licensed

The law does not permit the Division of Motor Vehicles to issue a driver license when:

1. You are less than the required age for a specific license or endorsement.
2. You are under the age of 18 and have not completed a Delaware Department of Education approved course in driver education.
3. You are under the age of 18 and cannot obtain the required signature of consent on your application (usually parent, court-appointed custodian, or guardian).
4. Your license or driving privileges are suspended or revoked in any jurisdiction.
5. You are not a bona fide resident of Delaware.
6. You do not understand road signs in English.
7. You are physically or mentally unable to drive safely. If you are subject to loss of consciousness from diseases of the central nervous system, you must furnish the division with a written certification by your licensed practitioner that such person's physical disability is under sufficient control to permit you to drive a motor vehicle safely.
8. You are determined to be a habitual drunkard or to be addicted to the use of narcotic drugs.
9. You are unable to provide proof of legal presence in the United States and do not meet the requirements for a DPC.
10. Your personal information differs from information from other agencies (e.g., different dates of birth, different names, different Social Security numbers, different U.S. entry dates, different addresses, etc.).

APPLYING FOR A LICENSE

How Do I Get A License?

You must apply in person at the Division of Motor Vehicles (Division) in Delaware City, Dover, Georgetown or Wilmington. Addresses of these offices are listed on the outside back cover of this manual.

GENERAL REQUIREMENTS FOR DRIVER LICENSE AND IDENTIFICATION CARD APPLICANTS

Ineligible Immigration Status

Those applicants who are legally in the United States under the following immigration status or holding invalid or expired documents are not eligible for a Delaware-issued driver license or identification card, even if they have established residency in this State but may be eligible to apply for a Delaware Driving Privilege Card (DPC). If you fall under any of the below immigration statuses, please see page 23.

- Those with invalid or expired immigration or passport documents.
- Those I-94 holders without a valid INS or USCIS stamp.
- Immigration status A-1. Ambassador, public minister, career diplomatic or consular officer and dependents are ineligible, because an "A" status may only be issued a driver's license from the United States State Department.
- Immigration status A-2 for other foreign government officials or employees and dependents unless they are foreign military officials and/or their dependents. Foreign military members and their dependents must provide a valid passport, I-94, visa, or assignment orders to be eligible.
- Immigration status B-1. Visitor for business.
- Immigration status B-2. Visitor for pleasure (tourist).
- Immigration status C-1. Alien in transit through the United States.
- Immigration status C-2. Alien in transit to United Nations Headquarters district. Travel limited to 25 miles radius of Columbus Circle in New York.
- Immigration status C-3. Foreign government official coming to the United Nations, dependents, attendants, servants, or other personal employees of official in transit through United States.
- Immigration status D-1. Alien crew members.• Immigration status G-1. Resident representative of a foreign government to an international organization, plus staff and dependents.
- Immigration status WB. Visitor for business (visa waiver program).
- Immigration status WT. Visitor for pleasure (tourist in visa waiver program).
- Border Crossing cards.

The Division must verify all non-citizen applicants' legal status and authorized length of stay in the United States upon the initial issuance of a driver's license (including out-of-state license transfers) and upon license renewal therefore, non-citizens must present their original immigration documents. United States citizens

should provide a U.S. certified birth certificate; valid, unexpired U.S. passport; Consular Report of Birth Abroad; Certificate of Naturalization; or Certificate of Citizenship.

The expiration date on DL/ID must not exceed the period of time non-citizens are authorized in the United States. This ensures that State-issued identification documents are not valid should non-citizens overstay their authorized visit to this country. The Division will verify the source document to ensure it is genuine and unaltered and confirm by electronic means that the immigration document is valid.

Non-citizens must provide USCIS or INS immigration documents containing either an Alien Registration Number or I-94 Number which can be verified electronically through the Department of Homeland Security's Systematic Alien Verification for Entitlements System (SAVE). The applicant's legal status and authorized length of stay will be primarily determined through SAVE. The following documents can be used to determine legal status and authorized length of stay:

Determine Legal Status/Authorized Length of Stay

U.S. Citizenship – Expiration date – 8-year Driver License and ID card.

- Valid, unexpired U.S. passport
- Certified copy of a birth certificate filed with a State Office of Vital Statistics or equivalent agency in the individual's state of birth
- Consular Report of Birth Abroad (CRBA) issued by the U.S. Department of State, Form FS-240, DS-1350, or FS-545
- Certificate of Naturalization issued by DHS, Form N-550 or Form N-570
- Certificate of Citizenship, Form N-560 or Form N-561, issued by DHS

Permanent Resident Immigrant – Expiration date – 8-year license ID card. The Alien Registration Number is mandatory and verified electronically through SAVE. If an applicant does not verify electronically, they will be referred to the USCIS to resolve mismatch conditions.

- Valid, unexpired Permanent Resident Card (Form I-551) issued by DHS or INS
- Valid, unexpired foreign passport with visa stamped "processed for I-551"

Non-immigrant/Temporary – Expiration date limited by authorized stay in U.S. which is verified electronically through SAVE. DMV cannot issue documents without SAVE verification. If an applicant does not verify electronically, they will be referred to the USCIS to resolve mismatch conditions. A one year expiration date will be used when immigration records show "indefinite" or "duration of status" for period of authorized stay. Form I-94 Number is mandatory except when Alien Registration Number is available (refugee, asylee, parolee).

- Valid, unexpired Permanent Resident Card (Form I-551) with conditions (2 year limit) contains Alien Registration Number (mandatory for SAVE verification).
- Non-immigrant visa, Arrival-Departure Record, Form I-94 with valid unexpired passport and visa or I-94W for the Visa Waiver Program.
- Students. Foreign students having non-immigrant F-1/F-2 or M-1 visa classification should have an I-20 Certificate of Eligibility for Non-immigrant Student Status form along with their unexpired foreign passport and I-94 card. J-1/J-2 visa holders must present a valid DS-2019 or IAP-66.

- Refugee, asylee and parolee classifications must be accompanied by additional documentation and I-94 displaying immigration status and Alien Registration Number.
- Exception: U.S. Citizenship and Immigration Service (USCIS) office verify legal status and authorized length of stay.

All drivers must sign a driver license application, surrender agreement and answer the appropriate questions on those forms. Applicants who are licensed or have an identification (ID) card in another state must surrender their license and/or ID card from the other state(s). If eligible for a Social Security Number, proof must be provided. (See Required Documents Table)

Each driver must pass an eye-screening examination. Some applicants may be referred to their eye doctor or physician for additional medical exams if they have a medical or mental condition that may interfere with their ability to operate a motor vehicle safely.

Every driver license applicant is subject to a written and road skills exam.

Acceptable Identification Documents List

Any person applying for a driver license (DL) or identification (ID) card is required to submit one primary document and one secondary document from the following list. A primary document must contain the full name and date of birth and must be verifiable (i.e., we must be able to contact the issuing agency to determine the authenticity of the document). Each applicant must provide their social security number, if eligible, two proofs of the applicant's Delaware residency, and non-U. S. Citizens must provide proof of legal presence in the United States.

Note: False statements, attempted fraud by displaying invalid licenses, ID cards or documents, or misrepresentation is perjury and may result in fines and denial of licenses and services. A driver license may be suspended any time false information is found on the signed application form. Please also refer to page 18 for information on who is exempt and/or who may not be licensed.



Please provide ONE of the following proof of identity/legal presence documents: (Photocopied, Expired, or Altered documents *will not be* accepted)

This document must contain proof of full legal name, date of birth, and citizenship/legal presence in the United States to be eligible to obtain a Federally Compliant Identification Document. An applicant's name must match on all documents.

- Certificate of birth (U.S. issued). Must be original or certified copy, have a raised seal and be issued by the Bureau of Vital Statistics or State Board of Health. Please note that wallet cards, birth registration or hospital announcements/records are not accepted. (If under 18, birth certificate must include birth parent(s) names.)
- Consular report of birth abroad
- Certificate of Naturalization (N-550, N-570, or N-578)
- Certificate of Citizenship (N-560, N-561, or N-645)
- Northern Marina Card (I-551)
- American Indian Card (I-551)
- U.S. Citizen Identification Card (I-179 or I-197)
- Valid passport, U.S. If foreign, appropriate INS document also is required.
- Resident Alien Card (I-515, I-551, AR-3, or AR-103)
- Temporary Resident Identification Card (K-688)
- Non-Resident Alien Canadian Border Crossing Card (I-185 or I-586)
- Record of Arrival and Departure (in a valid Foreign Passport) (I-94 or I-94W visa waiver program)
- Record of Arrival and Departure w/attached photo stamped "Temporary Proof of Lawful Permanent Resident" (I-94)
- Processed for I-551 stamp (in a valid Foreign Passport)
- Permanent Resident Re-Entry Permit (I-327)
- Refugee Travel Document (I-571)
- Employment Authorization Card (I-688A, I-688B, I-766)
- Canadian Immigration Record and Visa or Record of Landing (IMM 1000)
- [1] Federally Compliant State issued photo driver license
- [1] Federally Compliant State/Province/Territory issued photo ID card

Note: *If applicant is under 18 or is eligible for the IEP GDL program, a document containing parent(s) or legal guardian(s) name(s) must be presented (such as a birth certificate or court document).*

Please provide ONE of the following proof of identity/legal presence documents (continued): (Photocopied, Expired, or Altered documents *will not be* accepted)

- [1] [2] Court order. Must contain full name, date of birth and court seal. Examples Include: adoption documents, name change document, gender document, etc. Does not include abstract of criminal or civil conviction
- [1] [2] State issued photo driver license
- [1] [2] State/Province/Territory issued photo ID card
- [1] [2] Certified microfilm/copy of Driver's License or ID Card
- [1] [2] Official letter issued by vital statistics verifying full name and date of birth
- [1] [2] Certified school records or transcripts verifying full name and date of birth

[1] *Must be accompanied by a U.S. Citizenship document or valid proof of legal presence in the United States*

[2] *Not acceptable documentation to be eligible for a Federally Compliant Identification Document; however applicants may be eligible for a non-compliant identification document.*

Please provide ONE of the following for proof of a Social Security Number (SSN): (Expired, or Altered documents *will not be* accepted)

- Social Security Card
- W-2 tax form
- SSN 1099 form
- SSN Non-1099 form
- Pay stub containing full SSN
- Any valid document from Social Security Administration (SSA) containing full SSA (Medicare/Medicaid cards not acceptable) • 1040 Tax form
- Ineligibility letter from SSA (only issued if not eligible based on legal presence status)**

** *Not acceptable documentation to be eligible for a federally compliant identification document; however, applicants may be eligible for a non-compliant identification document*

Please provide TWO of the following for proof of Delaware residency: (Photocopied, Expired, or Altered documents *will not be* accepted)

Note: Each of the two proofs of residency must be from separate sources and must display a person's physical address, not a "service to" address (i.e.; Post Office box) and be postmarked within the last 60 days. Non-business letters/cards will NOT be accepted.

- Utility Bills
- Credit Card Statement
- Auto or Life Insurance policies
- Bank Account Records
- Employment Records
- Rental Agreement
- U.S. Postal Service change of address confirmation form/ postmarked mail with forwarding address label
- Other non-personal mail postmarked within the last 60 days

* *Mail must have been delivered by the USPS and be postmarked or received within the last 60 days. (UPS/FedEx/DHL not accepted). Each of the two proofs of residency must be from separate sources and must display the person's physical address, not a P.O. box**

Please provide all of the following proof of legal name change: (Photocopied, Expired, or Altered documents *will not be* accepted)

Note: If you have had several name changes (such as multiple marriage/divorce) you will need to provide **all** name change documents. You must change your name with the Social Security Administration and wait 48 hours before appearing at DMV.

- Valid marriage license/civil union certificate which must be issued by a government agency with a raised seal. Marriage certificates signed by a clergy are not accepted.
- Finalized court ordered name change document
- Finalized divorce decree stating your legal name. (A divorce decree may be used as authority to resume using a previous name, only if it contains the new name and the previous name and permits a return to the previous name.)

Foreign Adoption Requirements for Minors

If a minor was adopted and born outside of the United States, additional information will be required other than what is notated in the Acceptable Identification Documents List on page 21. Proof of citizenship or legal presence must be provided, even if the minor was adopted by a United States citizen. If the minor's name was changed during the adoption, proof of the name change and adoption paperwork may be required, contingent upon the situation.

Example 1: If the minor provides their foreign birth certificate for proof of parents in conjunction with proof of citizenship or legal presence, and the name(s) does not match on all documents, proof of the legal name change WILL be required. Acceptable proof would be the original adoption paperwork displaying the name change or a legal name change document through court.

Example 2: If the minor provides their foreign birth certificate for proof of parents in conjunction with proof of citizenship or legal presence, and the name(s) does match on all documents, proof of the legal name change WILL NOT be required.

Note: If the adoptive parents are NOT listed on the birth certificate, the adoption paperwork will be required in both scenarios mentioned above.

**All documents must be originals or certified copies. Photocopies, expired, or altered documents will not be accepted. If a document is in a different language, a certified English translation may also be required.

If you seek additional guidance, contact the Driver License department at 302-744-2505 or visit our website at **dmv.de.gov**

DRIVING PRIVILEGE CARD REQUIREMENTS

In January 2016, the Delaware Division of Motor Vehicles (DMV) began processing applications for Driving Privilege Cards (DPC). The Delaware DPC is a valid driver license that is issued for driving purposes only within the state of Delaware and is **not** to be used as a valid form of identification. The DPC is only available to foreign Delaware residents who are unable to produce legal presence within the United States and meet certain eligibility requirements. ****U.S. Citizens and persons with valid legal presence documents are not eligible for a DPC. ****

The fee for the DPC is $20.00 and it is valid for a period of 4 years. The Driving Privilege Permit and Card will bear the distinct verbiage "Driving Privilege Only"

and "Not Valid for Identification" on its face. All DPC holders are susceptible to all Delaware driving laws, rules, and regulations.

How Do I Get A Driving Privilege Card?

Effective September 11, 2023, all eligible applicants must schedule an appointment with the Delaware State Bureau of Identification (SBI) to begin the DPC process. To schedule an appointment please use the link https://uenroll.identogo.com when prompted enter SERVICE CODE 27S424. SBI will collect fingerprints, validate identification and collect a $72 fee. SBI will provide a receipt please bring that in with you to DMV.

Applicants must also collect a Certification of Filing Compliance document from the Delaware Division of Revenue confirming they have filed Delaware taxes for the previous two years. Applicants should visit the Division of Revenue website at **tax.delaware.gov** to immediately collect the Certification of Filing Compliance document or call the Division of Revenue's office at 302-577-8200 to find your nearest location and pick up one in person. This document will contain the applicants name and address, years taxes were filed, Individual Tax Identification Number (ITIN) or Social Security Number (SSN), and a document locator code.

When applicants arrive at DMV they must be prepared and have all required documents, which must be in their original or certified form. Please see the DPC Required Documents Tables for required documents. *Photocopied, altered, or expired documents will not be accepted.* Documents in foreign languages must be translated into English by a professional translator and accompany the original foreign language document.

All applicants must sign a DPC application and answer the appropriate questions on that form. Those applicants who are licensed in another state must surrender their license from the other state. If eligible for a Social Security Number, proof must be provided. (See DPC Required Documents Table)

Each applicant must pass an eye-screening examination. Some applicants may be referred to their eye doctor or physician for additional medical exams if they have a medical or mental condition that may interfere with their ability to operate a motor vehicle safely.

Every applicant is subject to a written and road skills exam.

DPC Required Documents Tables

Customers applying for a Delaware Driving Privilege Card (DPC) must provide:

- SBI Receipt.
- Division of Revenue's Certification of Filing Compliance document.
- Valid proof of name and date of birth.
  - o If under 18, must also have original and translated copy of birth certificate.
- Valid proof of any/all name change(s) if applicable.
- Two separate valid proofs of Delaware residency.

Use the following guidelines of acceptable documents in the charts below to help you determine the documents needed when applying for a Driving Privilege Card.

U.S. Citizens and persons with valid legal presence are not eligible to apply for a DPC

Provide the following document from State Bureau of Identification (SBI): (Photocopied, Expired, or Altered document *will not be* accepted)

Receipt from SBI containing:

- Name
- SBI Receipt number

Will be verified with SBI at DMV upon application

Provide the following document from Division of Revenue (DOR): (Photocopied, Expired, or Altered document *will not be* accepted)

Documents from Division of Revenue containing:

- Your (and your spouse and/or dependents) name
- Year taxes were filed
- Yours (and/or your dependents) ITIN/SSN
- Division of Revenue Document Locator Code

Will be verified with Division of Revenue at DMV upon application

Provide ONE of the following valid documents (Photocopied, Expired, or Altered document *will not be* accepted)

Foreign Document that is valid, approved by the Division of Motor Vehicles (DMV) and electronically verified by DMV:

- Valid, unexpired Foreign Passport
- Valid, unexpired consular identification document issued by your country of citizenship

Alternate approved Document for Mexico

- Mexican Federal Electoral Card (Instituto Federal Electoral (IFE) Credencial para Votar)

If under 18, must also have an original and translated copy of their birth certificate in addition to one of the documents listed above

Accepted Valid Consular Cards (Photocopied, Expired, or Altered documents *will not be* accepted) *Please note this list is subject to change*

Country Name
• Brazil (Carteira de Matricula Consular)
• Colombia (Consular Registration)
• Ecuador (Tarjeta De Identification Consular)
• Guatemala (Tarjeta de Identificacion Consular)
• Mexico (Matricula Consular)

Name Change (if applicable)
Provide ALL of the following valid documents
(Photocopied or Altered documents *will not be* accepted)

- Valid marriage license / civil union certificate – **must be issued by a government entity with a raised seal. Marriage certificates signed by clergy are not accepted.**
- Court ordered name change document
- Finalized divorce decree stating your legal name. (A divorce decree may be used as authority to resume previous name only if it contains the new name and the previous name and permits return to the previous name.)

Documents must be translated into English by a professional translator

Provide TWO of the following for proof of Delaware residency:
(Photocopies, printout of bills, non-business letters/cards *will not be* accepted)

- Utility Bills
- Credit Card Statement
- Auto or Life Insurance policies
- Bank Account Records
- Employment Records
- Rental Agreements
- U.S. Postal Service change of address confirmation form/ postmarked with forwarding address label
- Other non-personal mail postmarked within the last 60 days

Mail must have been delivered by the USPS and be postmarked or received within the last 60 days. (UPS/FedEx/DHL not accepted). Each of the two proofs of residency must be from separate sources and must display the person's physical address, not a P.O. box

Graduated Driver License

The Graduated Driver License (GDL) program is available for any person seeking a driver license who is at least age 16 or under age 18 **or** who is under age 22 and is receiving special education services under an active Individualized Education Program (IEP).

The GDL program was designed to reduce the high crash and fatality rate among young drivers. Eligible GDL participants will receive additional supervised driving experience and reduced exposure to high-risk driving situations. The required signatory parent or sponsor will actively participate in training the eligible GDL participant and determine when the GDL participant is capable of increased driving authority.

NOTE: Participation in the GDL program is optional for any person who is 18 years of age or older. If opting out of the GDL program requirements, no sponsor is needed and an eye, knowledge, and road skills exam will be required at DMV.

For more information visit the DMV website at **dmv.de.gov** or our teen driver website at **teendriving.dmv.de.gov**.

GDL: Level One Learner's Permit

Applicant's eligibility requirements:

1. Must be at least 16 years old and less than 18 years old **– OR –** on an active IEP who is at least 16 years old and less than 22 years old.
2. Must present a Delaware Driver Education Certificate (Blue/White Certificate) as proof that you passed a certified Delaware Driver Education Course. If you passed a course in another state, your out-of-state certificate must be approved by the Department of Education; this approval must be presented to the Division of Motor Vehicles. For approval send the certificate to Department of Education, Attn: Education Associate Driver Education and Private School Services, Collette Education Resource Center, 35 Commerce Way, Suite 1, Dover, Delaware 19904, or fax to 302.739.1769 (Telephone 302.857.3320). For more information visit our website at doe.k12.de.us
3. Must provide documentation proving the applicant's identity, legal presence, social security number, if eligible, and two proofs of Delaware residency (the two proofs of Delaware residency requirement will be waived if the sponsor is a licensed Delaware driver and lives at the same address as the applicant). A list of approved documents is contained in the Required Documentation Table in this chapter (pages 21-23). A list of approved documents for DPC GDL is contained in the DPC Required Documents Table in this chapter (pages 24-26).
4. All GDL program applications must be signed by a sponsor. The sponsor is held jointly liable with the GDL applicant for any damages resulting from the GDL applicant's negligence. The sponsor has the final authority to determine if the GDL applicant is capable of handling the responsibility of operating a motor vehicle and the authority to designate who may supervise the GDL driver. The sponsor may withdraw their endorsement at any time until the minor reaches age 18 or the IEP GDL applicant has completed 12 months of the GDL program, thereby cancelling any valid driving privileges. The following sponsors are listed in order of preference:

    a. Either father or mother of the GDL applicant if both parents are living together within this State and the minor resides with both parents. (Note: Parents are verified by using the GDL applicant's original or certified copy of their birth certificate which must include mother and/or father's name. Step-parents cannot act as a sponsor unless the GDL applicant is adopted or appointed their guardian.)

    - OR –

    b. Father of the GDL applicant, if the father is living within this State and the GDL applicant resides with the father only. Mother of the GDL applicant, if the mother is living within this State and the GDL applicant resides with the mother only. Father or mother, if the father or mother lives within this State, and the GDL applicant resides with neither parent, and the GDL applicant has no legal guardian within this State. (Note: Parents are verified by using the GDL applicant's original or certified copy of their birth certificate which must include mother and/or father's name. Step-parents cannot act as a sponsor unless the GDL applicant is adopted or appointed their guardian.)

- OR –

c. Legal guardian or court-appointed custodian of the GDL applicant, duly appointed as such under the laws of this State.

- OR –

d. By any suitable person acceptable to the Secretary of Transportation or the Chief of Driver Services, 302-744-2556. Division of Motor Vehicles, Attn: Chief of Driver Services, PO Box 698, Dover DE 19903.

e. The sponsor must sign the GDL applicant's driver license application in the presence of a Division licensing employee.

f. The sponsor who signs the GDL program application has final authority over the GDL applicant's driving privileges and may withdraw their endorsement at any time during the 12 month GDL program. In the case of minors, after program completion, the sponsor may with draw their endorsement until the minor reaches age 18.

5. The applicant must pay a $50.00 Class D license fee for an 8-year license and pass an eye screen at the time of application.
6. GDL applicants who require specialized evaluation, training or equipment to operate a motor vehicle because of a physical or mental disability will be identified by the driver education teacher and tested by the Division.

GDL: Level One Learner's Permit Restrictions:

1. Permit must be in the possession of the permit holder when driving a motor vehicle.
2. The permit holder and all passengers, must wear a safety belt or be secured in a child safety seat or booster seat while the vehicle is in motion.
3. The permit holder shall not operate a motor vehicle while using a cellular telephone, text messaging device, or similar electronic device.
4. No passengers other than an adult supervisor and one other passenger can be in the vehicle during the entire first 12 months of valid driving authority. However, the passenger restrictions of this paragraph do not apply to immediate members of the driver's family as long as the adult supervisor is in the car.
5. When the permit holder is under mandatory supervision, the supervisor must be a properly licensed parent, guardian or licensed driver (approved by the sponsor) who is at least 25 years of age and has held a Class D license for at least 5 years. The supervising driver must be seated beside the permit holder in the front seat of the vehicle when it is in motion. No person other than the supervising driver can be in the front seat.
6. For the first six months after issuance of a Level One Learner's Permit:
   a. The permit holder must be supervised **at all times**.
   b. The sponsor shall certify that the permit holder has driven for 50 hours; 10 of which includes night-time driving. The certification is to be turned in to the Department of Education after the first six months of valid driving authority or emailed to GDL.DRIVINGLOG@DOE.K12.DE.US.

7. After the first six months of valid Level One Learner's Permit driving authority:
    a. The permit holder may drive unsupervised between the hours of 6:00 a.m. and 10:00 p.m.
    b. The permit holder may drive between the hours of 10:00 p.m. and 6:00 a.m. only when under supervision. Exception: The permit holder may travel without supervision during those hours when going directly to and from church activities, work activities, and the permit holder's school activities on school property.
    c. No passengers other than the adult supervisor and one other passenger can be in the vehicle with the exception of immediate members of the driver's family provided the adult supervisor is in the car. During the second six month period of unsupervised driving, when a supervisor is not present, only one other passenger in addition to the driver can be in the vehicle.
8. Persons who violate the Level One Learner's Permit restrictions are considered as driving without a license which will result in a two-month suspension for the first offense and a four-month suspension for subsequent offenses.

Eligibility for a Class D Operator's License

A GDL Level One Learner's permit holder who is under age 18 may obtain a Class D operator's license when they successfully complete the 12-month GDL program, provided the sponsor has not withdrawn their endorsement and the applicant's driving privileges are not currently suspended, revoked, canceled, denied, or surrendered. If a GDL Level One Learner's permit holder is age 18 or older, they may also obtain a Class D operator's license by completing the 12 month GDL program as stated above – or – may choose to take the eye, written and road skills exam at the DMV.

NOTE: The GDL Level One Learner's Permit will automatically convert to a Class D license once the permit holder has completed a full 12 months of valid driving authority. The time used to compute the 12 months of required driving experience shall not include any period of time when the permit holder's driving privilege has been suspended, revoked, canceled, denied, or surrendered. A period of additional driving experience equivalent to that of the suspension, revocation, cancellation, denial or surrender will be added to the end of the original 12 month period and the permit holder must undergo complete testing. This will ensure that the permit holder has fully complied with the required 12 months of valid driving authority.

Requirements For First Time Applicants Over Age 18

Temporary Instruction Permit (Learner's Permit)

The purpose of the learner's permit is to enable you to drive the class of motor vehicle for which you want a driver license. Payment is due upon application, and you must pass all exams within twelve months. The permit is issued after successful completion of the eye screening and knowledge exams. While you are learning to drive you must be accompanied by a licensed driver who is qualified to drive the class of vehicle in which you are training, and they must be at least 21 years of age.

To obtain your license, you must take a road exam, but not until at least 30 days after the knowledge exam is passed.

Transfer Of Licenses From Other Jurisdictions Into Delaware

(18 Years of Age or Older)

Drivers From Other States. If you move into Delaware from another State, you must apply for a Delaware driver's license within 60 days after becoming a resident. You must turn in your previously issued out-of-state driver license or have a current certified copy of your driving record, provide proof of legal presence such as a birth certificate or passport, proof of social security number, and two proofs of DE residency. If proper documentation is provided, you will be issued a federally compliant driver license. Please refer to pages 21-24 for a list of acceptable documents for more information. Applicants will be required to sign an application, a surrender agreement form, and pass an eye screening. Written and road exams may be given, but they are normally waived if your license is valid. Suspended and revoked licenses cannot be transferred until all outstanding withdrawal actions are cleared.

A motorcycle endorsement from another state is transferrable for an additional fee. Commercial endorsements Tanker (N), Doubles/Triples (T) and Passenger (P) are also transferrable. Special restrictions apply regarding the transfer of a Hazmat (H/X) endorsement, such as a knowledge exam, verification of favorable background investigation and proof of birth/immigration documents.

The School Bus (S) endorsement is authorized to transfer into Delaware once they meet requirements set forth by the Delaware Department of Education and in 21 *Del. C* § 2708 and that they had successfully completed training in a previous state of record that is equivalent or higher than that completed in the State of Delaware. **Taxi/Limousine (Z) endorsement is non-transferrable.**

Drivers From Other Countries and U.S. Territories. Non-resident drivers over the age of 16 years who have a valid driver license issued by their home country or U.S. Territory may operate motor vehicles upon the highways of this State when their license is in their immediate possession.

Sixty days after the non-resident driver becomes a Delaware resident, they must apply for a Delaware driver license. Drivers from other countries may retain their foreign licenses. All drivers licensed in other countries must pass the eye, knowledge and road exams.

Exception: Delaware has a reciprocity agreement with Germany, Taiwan (Republic of China) and France thereby exempting these drivers from the knowledge and road exams for a Class D license only, as well as U.S. Territories. Endorsements are not included in reciprocity agreements.

Transfer Of Licenses From Other Jurisdictions Into Delaware
(Under 18 Years of Age)

Those persons who are at least 16 years old but less than 18 years old and were issued a driver license by another state must obtain a Delaware license within 60 days after becoming a Delaware resident.

a. The applicant must have completed an approved driver education course. The Department of Education will ensure out-of-state courses are equivalent to Delaware driver education requirements. (See Level One Learner's Permit)
b. The applicant must pass a written and road examination conducted by the Delaware Division of Motor Vehicles and an eye screening.
c. The application must be signed by an approved sponsor
d. If the minor applicant was issued an out-of-state license for over 12 months, they may be eligible for a Class D operator's license after meeting all testing requirements.
e. If the minor applicant was issued an out-of-state license for less than 12 months, they may be eligible for a Level One Learner's Permit.

License Renewal

Delaware driver licenses can be renewed at any Division of Motor Vehicle facility. Driver licenses will be issued for eight years, with the exception of Immigration length of stay, hazmat holders and Driving Privilege Card holders. A $10.00 late fee is charged if the renewal takes place after the expiration date. If you have a motorcycle endorsement, the fee is increased by $12.00. If you have a taxi endorsement, the fee is increased by $10.00.

You may renew at any time during the 180-day (six months) period prior to the expiration of your license. Commercial driver license (CDL) holders are eligible to renew no earlier than 30 days before the expiration date on their license. Renewal reminders are sent to each driver approximately 60 days before expiration date (driver's birthday). You must turn in your previously issued driver license, fill out an application, and pass an eye-screening. A knowledge and road exam may be given. If you moved, you may be required to show proof of residency. You may also be asked to provide proof of social security number and/or proof of legal presence at renewal.

Permanent License Renewal

The Division of Motor Vehicles no longer issues a permanent driver license as a result of HB 253. Please refer to Title 21, Section 2716.

Current permanent license holders must return to the Division every eight years to renew their license. The fee for this is $24.00. Permanent license holders who have a motorcycle endorsement will be charged an extra $12.00 fee for that endorsement. Whenever a permanent license is suspended or revoked, it is changed to a Class D license upon reinstatement.

Exchange Student Licensing Procedures

After completing an approved driver education training program, an exchange student may apply for a Level One Learner's Permit. The exchange student must present the following:

1. A typed notarized statement from their parent, granting permission for their son or daughter to apply for and be issued a Delaware Level One Learner's Permit.
2. If the applicant is under the age of 18, the sponsoring family must sign the application and assume liability for the minor driver.
3. A Certified Birth Certificate (in English) and a legal presence document.
4. A social security number, if eligible.
5. Driver education training certificate, if under age 18.
6. $50.00 will be charged for a 8-year license.

ADDITIONAL INFORMATION

Restricted License

If you have a disability which would interfere with driving a motor vehicle safely, it may be possible through use of special equipment to compensate for your disability. Special examinations are required by the Division in such cases, and a license with restrictions may be issued to you allowing you to drive only when you, your vehicle, or both are fitted with the specified equipment. A common example of a restricted license is one which requires you to wear glasses when driving or to restrict you to daylight driving only. If you drive without the required equipment, you are subject to arrest and your driver license may be suspended.

Replacement License

If your license is lost, stolen, or destroyed, you may apply online at **dmv.de.gov** or go to the Division for a replacement license which will be issued for a fee of $20.00.

Name Change

Within 30 days after legally changing your name, you must appear in person at the DMV to change the name on your driver license or identification card. Prior to arriving at the Division, if you have not already done so, you should report to the Social Security office with valid identification and the official document(s) (e.g., court documents, divorce decree, marriage certificate, etc.) that caused your name to be legally changed to update their records. Please allow 48 hours after updating your information with the Social Security office before reporting to the DMV to change your name on your driver license or identification card. This time will allow the Division's and the Social Security's databases to be updated and match. Please also bring to the Division your old driver license or identification card and all name change documents. The Division will issue you a new driver license or identification card for $10.00. If you have any questions regarding this process, please call 302-744-2506.

Address Change

After changing your Delaware address, you have 30 days to notify both the Vehicle Registration and Driver License Sections of the Division of Motor Vehicles. Address change may be submitted online at **dmv.de.gov** or in person at any DMV location.

You must provide your driver license or identification card (DL/ID), your name as it appears on the credential and your new address so we can update our records. To update your DL/ID, you must visit any of our facilities and we will replace your DL/ ID at no cost. However, if you do not have the current DL/ID or proof that the current DL/ID was stolen, you will be charged a duplicate fee. (See the Vehicle Equipment, Titles, Registration and Insurance Section for changing the address on your vehicle registration.)

Identification (ID) Card

The fee for an identification card is $40.00 and it expires eight years from the applicant's next birthday. The applicant must be a Delaware resident and present documents as required by the Required Documentation Table. A sponsor who is the mother or father or a court appointed guardian as listed on the minor's birth certificate must accompany any applicant under the age of 18 (see item 4, page 27).

Veteran indicator on Driver License/Identification Card



The Division of Motor Vehicles will, upon submission of satisfactory proof, designate on a driver license or identification card the holder is a veteran of the United States Armed Forces of the National Guard. This designation is available to any Delaware veteran that served in the U.S. military and was discharged or released from service under conditions other than dishonorable. To obtain the veteran indicator you must have a valid Delaware driver license or identification card and provide proof of military service, by presenting any of the following original documents:

- Military ID
- NGB-22
- DD-214
- DD- 256
- Honorable Discharge Certificate
- Valid Out of State driver license with veteran designation

The veteran indicator may be added to your driver license or identification card free of charge during renewal or duplicate transactions. Otherwise, there is a $10.00 fee.

The veteran indicator is designed to verify an individual as a veteran in the State of Delaware, so that businesses can opt to recognize the contributions of those veterans who have faithfully served our country and represented our great state. It will also afford the veteran protection as they will no longer have to carry a DD-214, which contains sensitive information, to prove their veteran status in order to obtain the benefits provided by local businesses. Please note this is not a military ID card and does not entitle veterans to all military benefits. Veterans would need to contact the U.S. Department of Veterans Affairs (VA) to determine the federal benefits in which they are entitled.

The veteran indicator on a driver license/identification card can be obtained at all DMV locations.

Voter Registration

As a result of the enactment of the National Voter Rights Act of 1993, any U.S. citizen residing in the State of Delaware, who meets the eligibility requirements, is afforded the opportunity to register to vote while obtaining or renewing a driver license.

You may register to vote if you are a U.S. citizen; a bona fide resident of Delaware, are at least 16 years of age and are mentally competent. Please keep in mind, in order to register you must be at least 18 years of age or older on or before the day of the general election. Ex-felons may register to vote if they meet the requirements as specified by law according to 15, Del. C Chapter 61.

Part of the registration process involves selecting a political party of your choice. Options include the two majority parties, numerous minority parties or, if you do not wish to be affiliated with any political party, you may register as an Unaffiliated. Only members of a majority party (Democrats and Republicans) are eligible to vote in primary elections in the State of Delaware.

Pursuant to Delaware law (15 Del. C. § 2050A), every person who completes an application for the issuance or renewal of their Delaware driver license, learners permit, or identification card or completes an application to change their name or address on these documents, and is not already registered to vote, is of sufficient age, and whose citizenship status has been confirmed by the Division of Motor Vehicles, is automatically registered to vote by the Department of Elections as Unaffiliated.

Shortly after registering, you will receive a polling card from the Department of Elections. This card confirms your registration and provides the name and address of the location where you will cast your vote on election day. If you were automatically registered to vote you will receive a Notice of Automatic Voter Registration in the mail from the Department of Elections. If you have any questions or concerns, call the elections office nearest you.

Department of Elections

Office of the State Election Commissioner
905 S Governors Ave Ste 170, Dover DE 19904
Phone: (302) 739-4277
Email: coe_vote@state.de.us
Website: http://elections.delaware.gov/

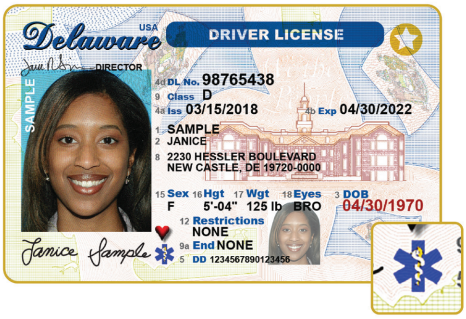
New Castle County Office
820 N French St Ste 400
Wilmington DE 19801
Phone: (302) 577-3464
Email: votencc@state.de.us
Website: http://electionsncc.delaware.gov/

Kent County Office
100 Enterprise Pl Ste 5, Dover DE 19904
Phone: (302) 739-4498
Email: votekc@state.de.us
Website: http://electionskc.delaware.gov/

Sussex County Office
119 N Race St, Georgetown DE 19947
Phone: (302) 856-5367
Email: votesc@state.de.us
Website: http://electionssc.delaware.gov/

Medical Indicator

A blue medical indicator may appear on the document as a means for the holder to share a medical condition to those giving emergency medical care. The specific medical condition will appear on the back of the document. The medical indicator is a voluntary option, and not a requirement.



Visor Communication Card

Visor Communication card application for deaf or hard of hearing individuals is available upon request and on the website.

Megan's Law/Sex Offenders

By signing the driver license or identification card application form, applicants acknowledge that the Division of Motor Vehicles has notified them that registration in compliance with Section 4120 of Title 11, Delaware law, is mandatory for any person who has been convicted in any state of any offense which if committed or attempted in this State, would have been punishable as one or more of the offenses referenced in Section 4120(a) of Title 11, and that such registration must occur within seven days of coming into any county, city, or town in which they temporarily reside or is domiciled for that length of time. The form will be permanently retained. There is a $10.00 fee to add the "Y" restriction.

Mandatory Disclosure Of Social Security Numbers

Disclosure of the applicant's social security number is mandatory if eligible. Federal law authorizes such disclosure. See 42 U.S.C. Section 405(c)(2)(1). The Division will use social security numbers solely for the administration of the driver license program to ensure accurate identification. Social security numbers will not be released to businesses or private individuals, but may be released to State agencies to carry out their governmental functions.

Selective Service System Registration

Male applicants are to understand that their signature on license or identification card applications constitutes consent to be registered with the Selective Service System, if so required.

Next of Kin Registry

Delaware's Next of Kin registry is a voluntary program designed to provide Delaware citizens that hold a valid ID or driver license the option to designate up to two different emergency contacts, a primary and a secondary, so that in the event of an emergency, emergency personnel are able to contact your loved ones. To register go to **dmv.de.gov** or visit your local DMV branch.

Organ And Tissue Donor Program

When you apply for, or renew, a driver license in Delaware, you will be asked if you wish to be an Organ and Tissue Donor. If you say yes, a "RED HEART", will be displayed on your license. There are brochures available at the DMV front desk containing information about your donation. In order to prevent confusion

and misunderstandings upon your death, we suggest you also inform your family of your decision to be an organ and tissue donor. Once you have designated yourself as an Organ and Tissue Donor, this designation once you die, may not be revoked according to Delaware law. More nationwide information is available at **www.organdonor.gov** or for more localized information go to **www.donors1.org**.

Good Samaritan's Law

Delaware's Good Samaritan Laws protect individuals who request medical assistance for someone who is experiencing a drug or alcohol overdose. It also protects the witness and person they're assisting from being prosecuted for possession of an illegal substance. These laws encourage individuals to call 9-1-1 or seek medical attention for individuals at risk of dying from an overdose or other life-threatening emergency.



Good Samaritan laws also protect individuals from civil damages for administering naloxone, a life-saving medication that can reverse an opioid overdose, or emergency care to an individual, who is experiencing an overdose. For more information concerning Good Samaritan Laws, you can visit Help Is Here's website: **https://www.helpisherede.com/addiction/harm-reduction/good-samaritan-law#laws**.

TAT- Human Trafficking

Human trafficking is modern-day slavery. It occurs in the U.S. and Canada when people are subject to forced labor or illegally bought and sold for commercial sex. A minor being sold for sex is a victim of human trafficking. The recruitment or purchase of victims may occur online, but survivors may be recovered in many locations, including truck stops, local businesses, restaurants, hotels, strip clubs, private homes, etc. The movement of victims may include the use of rideshares, taxis or other modes of transportation.

Download the TAT app!

Red flags:

• Different cars coming in and out of one particular residence or business, or people approaching vehicles on the street, rest areas or truck stops

• Extreme security measures on homes and businesses that appear out of place (e.g., barred, or covered windows, barbed wire, excessive exterior cameras, locked front doors with entrances in the alley, etc.)

• Workers who appear to live at the place of business or are always working

• Restricted or controlled communication; not allowed to speak for self; being watched or followed

• Any mention of making a quota or having a pimp/daddy

• Signs of branding or tattooing of trafficker's name (often on the neck)

You can find more information on human trafficking at **https://tatnonprofit.org/**

DRIVER LICENSE CLASSIFICATIONS

Class D Operator's License



This class of license includes passenger cars, station wagons, pickup trucks, utility vehicles, and most panel trucks. This type and class of license is valid for any single motor vehicle, and a trailer, with gross vehicle weight ratings (GVWR) not greater than 26,000 pounds, designed to carry less than 16 passengers (including the driver), and not placarded for the purpose of transporting hazardous materials.

Commercial Driver Licenses (CDL)

There is a Delaware Commercial Driver Manual which covers the CDL requirements, CDL procedures, testing requirements, and the basic knowledge required to obtain a CDL license. The manual is available for no cost at any Division facility or can be downloaded from the DMV website at **dmv.de.gov**.

The requirement for a CDL is waived when the driver is operating farm equipment, firefighting equipment, recreational vehicles, or military members operating military vehicles, including the National Guard.

Non-CDL Class A and Non-CDL Class B licenses are issued to those drivers who operate farm, firefighting equipment, and other authorized emergency vehicles under this waiver. No special licenses are required when operating personal recreation vehicles and military equipment. The following defines these waived class of vehicles:

a. Farm vehicles which are:

1. Controlled and operated by a farmer.
2. Used to transport either agricultural products, farm machinery, farm supplies or both to or from a farm.
3. Not used in the operations of a common or contract motor carrier.
4. Used within 150 miles of the person's farm, and
5. Not used for hire.

b. Firefighting equipment which is:

1. Used by any fire company in this State for the preservation of life or property or the execution of emergency governmental functions.
2. Being operated under the authorization of a fire company for parades, special events, repair service, delivery or other such authorized movements.

c. Military equipment owned by the Department of Defense, including the National Guard, when operated by persons on active military duty or members of the reserves and National Guard on active full-time or part-time duty.

d. Recreational vehicles or trailers defined in Title 21 which provide temporary living quarters and are used solely for recreational purposes.

e. Emergency Mobile Communication Units operated in relation to a County Emergency Communication Center, the State Police, or any municipality.

f. Any other emergency vehicle, as defined by Title 21, used in the preservation of life or property or in the execution of emergency governmental functions.

Commercial Learners Permit (CLP)

After passing the knowledge exams and paying a $10.00 fee, you may be issued a CDL learner's permit which will allow you to drive a Commercial Motor Vehicle (CMV), but only with another licensed CDL driver. You may only drive the class of vehicle specified on your learner's permit, and you may drive only with a CDL driver qualified in the same type CMV.

CDL Class A License

This license is required for any combination of vehicles with a Gross Combined Weight Rating (GVWR) of 26,001 pounds or more, provided the GVWR of the towed unit(s) is in excess of 10,000 pounds.

CDL Class B License

This license is required for any single vehicle with a Gross Vehicle Weight Rating (GVWR) of 26,001 or more pounds, or any such vehicle towing a vehicle not in excess of 10,000 pounds.

CDL Class C License

This license is required for any single vehicle or combination of vehicles with a Gross Vehicle Weight Rating (GVWR) of less than 26,001 pounds or any such vehicle towing a vehicle with a GVWR not in access of 10,000 pounds that is either designed to transport 16 or more passengers, including the driver or used in the transportation of hazardous materials which requires the vehicle to be placarded.

NON - CDL Class A License

Required for the same CMV vehicles as the CDL Class A license, but only when operating farm, firefighting vehicles, and other authorized emergency vehicles under a CDL waiver.

NON - CDL Class B License

Required for the same CMV vehicles as the CDL Class B license, but only when operating farm, firefighting vehicles, Department of Corrections, Bureau of Prisons, Bureau of Community Corrections, and other authorized emergency vehicles under a CDL waiver.

Class D & DPC Learner Permit

This permit authorizes the holder to operate those vehicles that a holder of a Class D or DPC operator's license may operate. The permit authorizes its holders to operate a Class D vehicle under the condition that the permit holder is accompanied by a properly licensed driver over the age of 21.

Graduated Driver License Permit

Authorizes the holder to operate those vehicles that a holder of a Class D or DPC operator's license may operate, but under restrictions defined in the Graduated Driver License program.

Temporary License

When temporarily out-of-state, a temporary license may be issued to the holder of a valid Class D operator's license to extend the expiration date, to replace a lost license, or in lieu of the Class D licensing document, as long as the driver license holder is not suspended, revoked, disqualified, cancelled, or denied in this state or any other state.

This one-time temporary license is issued for a period not to exceed six months.

Conditional, Occupational, and Hardship Licenses

These licenses grant limited driving privileges under very specific parts of Delaware law. The limited driving privileges granted are defined on the license.

Ignition Interlock Device (IID) Endorsement/License

Authorizes the holder to operate a vehicle with full Class D or DPC operators driving privileges only when the vehicle is equipped with an ignition interlock device.

ENDORSEMENTS

Motorcycle Endorsement

Any person who operates a motorcycle, motorbike, or other two or three-wheeled motor-driven vehicle on the highways shall have a driver license with a motorcycle endorsement. Persons over the age of 18 must pass a knowledge and road skills exam to obtain a motorcycle endorsement.

A person who passes a knowledge and skills examination administered by the Division on a three-wheeled motor vehicle shall have a restriction placed on their driver license, in addition to the motorcycle endorsement, limiting them to the operation of three-wheeled motor vehicles.

Persons under the age of 18 must have the motorcycle application signed by their parents or the duly appointed legal guardian. They must complete the Motorcycle Rider Education Program as approved by the Division.

The Division publishes a Delaware Motorcycle Operator Manual which covers the requirements for the motorcycle endorsement, procedures to acquire the endorsement, testing requirements, and the basic knowledge needed to obtain this endorsement.

Any person who obtains a new endorsement for a motorcycle, or someone riding with the newly endorsed person, is required by law to wear a helmet and eye protection for the first 2 years after the newly endorsed person receives the endorsement. A person operating or riding as a passenger on a motorcycle on the roadways of this State who fails to comply with this law is subject to civil penalties or assessments.

Motorcycle Rider Classes

New Castle County	Kent County	Sussex County
302-832-5163	302-744-2658	302-853-1030

Call for further information or to register for classes.

Motorcycle Learner Permit

Once you have passed the knowledge exam, you will be issued a motorcycle permit which is valid for six months. You can extend the permit only once for an additional six months. You must apply for an extension at DMV before the expiration date and pay a $5.00 fee. The following restrictions apply when operating a motorcycle with a temporary instruction permit.

1. No passengers shall be allowed on the motorcycle.
2. Operating a motorcycle between sunset and sunrise is prohibited.
3. Approved safety helmet and eye protection must be worn.
4. Operation is not permitted on the federal interstate highway system.

School Bus Endorsement

To drive a school bus, the driver must have a CDL with a passenger and school bus endorsement. To obtain a school bus endorsement, drivers must not have had their license suspended, revoked, or disqualified in this State or in any other jurisdiction for moving violations in the last five years, and not have more than five points (full point value) on their record for the past three years. They must successfully complete theory instruction, demonstrate proficiency in all behind-the-wheel training requirements aboard a school bus, a medical exam, and a criminal background check, as well as pass a specialized knowledge exam for school bus applicants, and a skills and road exam in a school bus. Please refer to 21 *Del. C.* § 2708 for a complete list of requirements. If you are applying for a "S" School Bus endorsement, you must first submit the Criminal History Record Check Authorization Form.

As of December 14, 2020, all school bus "S" applicants must initiate the application process by completing a DMV Criminal History Record Check Form online. The "S" applicant will visit **https://cdlis.dmv.de.gov/cdlis/** to complete the online Criminal History Record Check Form (CHRCA).

Taxi/Limo Endorsement

All persons who operate a taxicab or limousine on Delaware highways must have a valid license, endorsed to operate the taxicab or limousine. The driver must complete a defensive driving course within 30 days from an approved provider, complete a state and federal background check indicating no serious criminal offenses, not have had their license suspended or revoked for moving violations in the past three years, and pass the Class D knowledge exam. Please refer to 21 Del. C. § 2763 and 2 DE Admin Code 2287 for a complete list of requirements and visit **dmv.de.gov** for a complete list of approved providers. If you are applying for a "Z" Taxi/Limo endorsement, you must first submit the Criminal History Record Check Authorization Form for approval via email, fax or in person.
NOTE: Out of State Taxi/Limo endorsements **are not** transferrable.

THE DRIVER EXAMINATION

The purpose of the driver examination is to determine whether you have sufficient knowledge and driving skills necessary to drive safely on Delaware highways. The examination consists of four parts.

If your Class D driving privileges have been cancelled, denied, disqualified, expired, revoked, and/or suspended over one year, you are required to take the vision and Class D knowledge exam. After successful completion, you must reapply for Class D driving privileges. However, if it has been over 5 years, you must reapply for your Class D license and take the vision, knowledge, and road exams.

If your CDL driving privileges have been cancelled, denied, disqualified, expired, revoked or suspended over one year, you are required to take the vision and Class D knowledge exam. After successful completion, you must reapply for commercial driving privileges.

Vision Screening

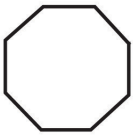
Your vision will be screened to determine whether you can see well enough to drive safely. If the screening shows that you need glasses or contact lenses, your license certificate will be marked to indicate that you cannot drive legally without them. Minimum acceptable vision for a Delaware driver license is 20/40, with or without glasses or contact lenses. Permission for daylight only driving may be granted if

your vision is between 20/40 and 20/50. CDL physical and vision requirements are contained in the Federal Motor Carrier Safety Regulations (49 CFR Part 391.41).

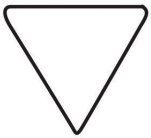
Highway Sign And Signal Test

You will be asked to identify certain highway signs only by their shape, color, or the symbols appearing on them. You will also have to explain the meaning of these and other highway signs, traffic signals, and pavement markings. The meanings are explained in the Rules of the Road section of this manual.

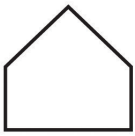
For example, you may be asked to identify these or other shapes without their labels:



(Stop)

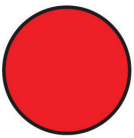


(Yield)

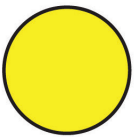


(School)

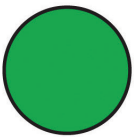
You may be asked to identify the type of signals associated with these or other colors:



(Stop)



(Prepare to stop)



(Proceed with caution)

Or you may be asked to identify symbols such as these:



(Keep to right)



(No U-turn)



(No right turn)

Rules Of The Road Test

You will be asked to answer a series of questions based on Delaware's rules of the road, motor vehicle laws and safety practices. For example, you might be asked what the speed limit is for automobiles on two-lane roads; what actions are taken when you see a flashing red signal ahead; or under what conditions you should not pass another vehicle. You might also be asked what you should do if your vehicle starts to skid, or how far away from a fire hydrant you may legally park.

Road Test

You are eligible to take a Class D road exam 30 days after you pass the knowledge exam. You are eligible to take a motorcycle road exam 10 days after you pass the knowledge exam. Road exams are given on every weekday, except Wednesday. DMV offers 2 easy and convenient options for you to schedule your road exam when you feel you are ready. You may use DMV's online My Road Test scheduler or call your local DMV office to speak with a DMV associate.



1. Visit the DMV website at **dmv.de.gov**
    a. Select "Online Services"
    b. Select "My Road Test" and follow the online instructions

2. Call a DMV office of your choosing:
    a. Delaware City 302-832-5176
    b. Dover 302-744-2515
    c. Georgetown 302-853-1003
    d. Wilmington 302-434-3220
    e. Select "My Road Test" and follow the online instructions

Upon arriving for your ROAD EXAM you must have the following in your possession:

- Valid learner's permit
- Valid driver license of the accompanying driver who is at least 21 years of age (excludes motorcycle skills exam).
- Valid registration card for the vehicle you will be using (and trailer if applicable)
- Valid insurance card (original or electronic) for the vehicle you will be using

You will be required to drive for approximately 30 minutes and do such things as are usual in normal driving. You will not be asked to do anything that is contrary to the motor vehicle laws or safe driving practices. You will be required to demonstrate the following:

- Respond to road signs, traffic signals and pavement markings
- Three point turn
- Make right and left turns
- Change lanes
- Use right-of-way rules
- Maintain proper speed
- Back 50 feet
- Merge with traffic
- Follow and overtake vehicles
- Enter intersections
- Inspect vehicle for safety
- Know vehicle controls

Road Test Locations

Wilmington DMV	Delaware City DMV	Dover DMV	Georgetown DMV
2230 Hessler Boulevard New Castle, DE 19720 (302) 434-3220	2101 Mid County Drive New Castle, DE 19720 (302) 832-5176	303 Transportation Circle P.O. Box 698 Dover, DE 19901 (302) 744-2515	23737 DuPont Blvd. Georgetown, DE 19947 (302) 853-1003

Motor Vehicle To Be Driven During Road Test

It is your responsibility to provide the motor vehicle to be driven during the road exam. It must be properly registered and pass our safety inspection. You must provide valid proof of registration and liability insurance. Furthermore, the vehicle must be within the license class for which you have applied. The examiner will

conduct a basic vehicle safety inspection before the road exam begins. You must refrain from smoking during the exam. No cell phone use or playing of music is permitted during the road test.

When You Must Be Accompanied By A Licensed Driver

If you do not have a valid Class D driver license with a legal right to drive alone in Delaware, you must be accompanied by a licensed driver over 21 years of age, as described on the learner's permit. A licensed driver MUST remain on site to drive the vehicle away in case the applicant is unsuccessful in passing the exam.

Preparation For The Driver Examination

One of the purposes of this manual is to help you prepare to take the driver examination. You should study this manual carefully. Anything which is not perfectly clear, whether contained in this manual or not, should be discussed with the driver license examiner prior to your examination.

If you plan to apply for a license class other than a Class D driver license, or for the motorcycle endorsement, or commercial driver license, you will also need to study separate manuals which are available at the offices of the Division of Motor Vehicles (see back cover for locations where you may pick up these manuals) or visit the DMV website at **dmv.de.gov**.

If you fail any part of the road exam, you should prepare yourself thoroughly to take it again at a later date. You must wait at least 30 days before taking the exam or exams again.

Sample driver license examinations are available on the DMV website, at **https://dmv.de.gov/app/dmvexam/home**or on the DelDOT mobile app.

MEDICAL INFORMATION AND REPORTING

Medical evaluation forms and vision evaluation forms may be found on the DMV website at **dmv.de.gov**.

Self-Reporting Of Medical Conditions

To ensure the safety of all individuals, customers should self-report any changes in their health that might affect their ability to drive. When applying for or renewing a Delaware driver license, the applicant will be required to self-declare, report, or show certification concerning any medical conditions that may interfere with their ability to safely operate a motor vehicle. The applicant may be required to submit a favorable medical report from a licensed practitioner stating that the driver's medical condition is under sufficient control to permit them to safely operate a motor vehicle. Any person licensed to operate a motor vehicle based on this report may be required to furnish the division with a new medical report every year no later than the last day of the person's birthday month. Failure to provide a favorable medical report will result in the suspension of a person's driver's license. Upon receipt of a favorable medical report, a reinstatement fee of $50 must be paid to the Division of Motor Vehicles to reinstate their license.

Special Examinations

Section 2714 of Title 21, Delaware law, allows the Division to accept requests for the re-examination of a person's ability to safely operate a motor vehicle. These requests may be submitted by members of a driver's immediate family, law enforcement, or licensed practitioner. To maintain a person's driving privilege, they

are required to provide favorable medical report(s) and successfully complete the Division's eye screening, knowledge and driving skills exams, and possibly complete a certified driver rehabilitation evaluation and/or training.

Medical Review/Medical Suspension

Any person who is subject to loss of consciousness or have any other medical condition that may impair their ability to safely operate a motor vehicle will not be issued a Delaware driver license unless the Division receives a medical report (Medical Report of Physician's Findings MV-346) from the person's licensed practitioner stating that such person's medical condition is under sufficient control to permit them to safely operate a motor vehicle. Any person licensed to operate a motor vehicle who is referred to on this report will be required to furnish the Division with a new medical report every year no later than the last day of the person's birthday month. Failure to provide a favorable medical report will result in the suspension of the person's driver's license. Upon receipt of a favorable report, a reinstatement fee of $50 must be paid to the Division of Motor Vehicles. For further questions regarding medical suspension please contact the medical section at 302-744-2507.

As of August 2024, DMV no longer requires mandatory reporting of medical conditions. Licensed practitioners are encouraged to report patients who may pose a danger driving.

Medical Surrender

A driver license may be voluntarily surrendered to the Division if a favorable medical report cannot be obtained. Upon receipt of a favorable medical report, there is no fee for reinstatement if the license is voluntarily surrendered before the suspension date. If the license has been surrendered for more than one year, additional testing will be required. For further questions regarding Medical Surrender, please contact the Medical Section at 302-744-2507 or by email at **dmvmedicalsection@delaware.gov**.

LICENSE REVOCATION AND SUSPENSION

Driving is a privilege not a right. The State grants you the privilege of operating motor vehicles only as long as you drive safely and obey the rules and regulations. If you violate driving laws, your driving privilege may be suspended or revoked. The period of the suspension or revocation varies with the type of offense(s) committed. A fee of $50.00 must be paid to reinstate a suspended license; a $200.00 fee is charged to reinstate a revoked license. You may be required to complete all driver license knowledge, road, and eye screening before reinstating your license. Suspension of a license is a temporary removal of your driving privilege. Revocation of a license is a cancellation of your driving privilege. For questions regarding license suspension you may call 302-744-2509. For questions regarding license revocation you may call 302-744-2508. For questions regarding serious medical conditions you may call 302-744-2507.

The Division will suspend or revoke the license of any Delaware resident who has been convicted of a violation in another state which, if committed in Delaware, would be grounds for suspension or revocation of a license. The driving record includes all convictions, even those committed in other states.

Mandatory Revocations

The following are mandatory revocations:

- Driving while under the influence of intoxicating liquor or narcotic drugs.
- Hit-and-run driving involving death or injury to another person.
- Attempting to flee from a police officer after having received a visual or audible signal to stop your vehicle.
- Three convictions for reckless driving in a period of 12 consecutive months.
- Contributing to the death of anyone by operating a vehicle.
- The crime of assault in which a death occurs from operating a vehicle.
- Using a motor vehicle in committing any serious crime.
- Making a false statement or using fraudulent information.
- Underage possession/consumption of alcohol by persons under 21 years of age.

If you post a bond after being arrested for any of the causes listed above, and you do not appear in court, your license shall be revoked just as if you had been convicted.

Habitual Offender Revocation

After an accumulation of certain types of traffic violation convictions, the driver may be declared a habitual offender and their license may be revoked for up to five years. No work or hardship licenses are issued to those convicted of being a habitual offender.

Any combination of three of the following offenses in a five year period may convict you as a habitual offender:

1. Manslaughter.
2. Use of a motor vehicle in the commission of a felony.
3. Driving while under the influence of alcohol or drugs.
4. Driving without a license.
5. Driving during suspension or revocation.
6. Reckless driving.
7. Failing to stop at the scene of a crash.
8. Failing to identify yourself at the scene of a crash.
9. Making a false statement to the Division of Motor Vehicles.
10. Violation of an occupational license.
11. Failing to stop on the command of a police officer.

Any combination of the above offenses and lesser offenses, such as speeding, that result in 10 convictions in three years may convict you as a habitual offender.

Suspension Of A Driver License

The Division of Motor Vehicles will suspend the driver license of any Delaware resident whenever the Division has reason to believe that such a person:

1. Has committed any offense for which a license suspension is mandatory.
2. Has by reckless or unlawful operation of a motor vehicle contributed to a crash resulting in injury or death to any person or caused serious property damage.
3. Is incompetent to drive a motor vehicle for serious medical or mental conditions.

4. Has committed a serious violation of motor vehicle laws.
5. Has driven a motor vehicle without the consent of its owner.
6. Has issued a non-collectible payment to the Division.
7. Racing (speed exhibition).
8. Spinning wheels.
9. Turfing (causing destruction to grass, yards, property, etc.).
10. Failing to answer a court summons in any state.
11. Has violated any of the licensing provision of the Delaware Code including:
    - Use of fictitious, suspended, revoked or borrowed driver license.
    - Loaning a driver license to another person.
    - Failure to surrender a suspended or revoked license.
    - Giving a fictitious name or address or making a false statement in applying for a license.
    - Unlawful manufacture or possession of a false insurance document.
    - Driving an uninsured motor vehicle or driving without insurance card in possession.
    - Passing a stopped school bus.
    - Altering a driver license or using a fraudulent license.
    - Failure to pay child support.
    - Failure to surrender license plate after cancelling insurance on a vehicle.

Child Support Delinquency

Any person who owes $1,000.00 or more in arrears or retroactive support and is 30 or more days delinquent in payment of a child support order from either Family Court or the Division of Child Support Services may have their license suspended as defined in Title 13 Delaware Code Section 516. The suspension will remain in effect until a release is obtained from the requesting agency and received by the Division of Motor Vehicles. A reinstatement fee of $50.00 must be paid to the Division of Motor Vehicles in order to reinstate the license.

DRIVER IMPROVEMENT PROBLEM DRIVER PROGRAM

The Driver Improvement Problem Driver Program is designed to identify problem drivers, to change the problem driver's behavior by providing information and training opportunities and, if necessary, to progressively impose sanctions as more convictions/points are accumulated on individual's driving records. This program is governed by Division Regulation 2208. The goal of the program is crash prevention. The steps in the program are geared to the seriousness of the driving record and may result in an advisory letter, mandatory suspension, and/or completion of a behavioral modification/attitudinal-driving course.

If suspended as a result of the Problem Driver Program, a $50.00 reinstatement fee must be paid to the DMV in order to reinstate the license.

Delaware Point System

Violation		Points
Speeding	1-9 miles per hour (mph) over posted limit	2
Speeding	10-14 mph over posted limit	4
Speeding	15-19 mph over posted limit	5
Speeding	20 mph or more over posted limit	5*
Passing a Stopped School Bus		6*
Reckless Driving		6
Operation of a Vehicle Causing Death		6*
Aggressive Driving		6
Disregarding Stop Sign or Red Light		3
Other Moving Violations (contained in Chapters 27, 41, and 42 of Title 21)		2

**May result in additional actions including suspension*

The Division may take administrative action against a driver who acquires 8 or more points within a two year period. The points are calculated internally, specifically for this action and are credited as follows: full point value for the first 12 months from the date of violation and half point value for the second 12 months from date of violation. All actions are based upon-calculated points with a 24 month period following the offense. This process does not apply to **Commercial Driver License holders**.

The points displayed on a driving record are full value for the requested time and will not show the Calculate Point Value.

Driver Improvement Problem Driver Program Actions	
Calculated Points	Action Item
8	The Division of Motor Vehicles sends the driver an advisory letter.
12	Driver must complete a behavior modification/attitudinal-driving course within 90 days after notification (unless extended by DMV). Failure to comply or upon preference of the driver, mandatory 2-month suspension will be imposed.
14	Mandatory 4-month license suspension. To become eligible for reinstatement, the driver must complete or have completed a behavior modification/attitudinal-driving course within the previous two years, as of the time of reinstatement.
16	Mandatory 6-month license suspension. To become eligible for reinstatement, the driver must complete or have completed a behavioral modification/attitudinal-driving course within the previous two years, as of the time of reinstatement.
18	Mandatory 8-month license suspension. To become eligible for reinstatement, the driver must complete or have completed a behavior modification/attitudinal-driving course within the previous two years, as of the time of reinstatement.
20	Mandatory 10-month license suspension. To become eligible for reinstatement, the driver must complete or have completed a behavior modification/attitudinal-driving course within the previous two years, as of the time of reinstatement.

Driver Improvement Problem Driver Program Actions	
Calculated Points	Action Item
22	Mandatory 12-month license suspension. To become eligible for reinstatement, the driver must complete or have completed a behavior modification/attitudinal-driving course within the previous two years, as of the time of reinstatement.

Point Credit

A speeding violation of 1 to 14 mph over the posted speed limit will not be assessed points, IF:

- It is the first violation within any 3-year period; and
- The ticket is paid through the Voluntary Assessment Center or Alderman's Court recorded as a "guilty mail in" or through an online payment.
- Only applies to Class D license holders; **CDL holders will receive points**.

Serious Speeding Violations

1. Advisory letters are sent to the driver when convicted for speeding 20-24 mph over the posted speed limit.
2. The driver will be suspended for one month when convicted of driving 25 mph over the posted speed limit. The length of suspension will increase by one month for each additional five mph over the initial 25-mph threshold. The driver may elect to attend the behavior modification/attitudinal-driving course in lieu of a license suspension when driving 25-29 mph over the posted limit. For speeding 30 mph over the posted limit or more, the suspension is mandatory. To become eligible for reinstatement, the driver must complete or have completed a behavior modification/attitudinal driving-course within the previous two years.
3. One-year suspension when convicted of driving 50 mph or more over the posted speed limit or driving 100 mph on a highway. To become eligible for reinstatement, the driver must complete or have completed a behavior modification/attitudinal-driving course within the previous two years.

Occupational License

The Division may issue an occupational license during the period of suspension under the Driver Improvement Problem Driver Program if the suspension has created an extreme hardship, unless the driver is suspended or revoked for other Title 21 convictions. An occupational license shall not be issued if the driver has had two previous suspensions under this policy within the previous three years or has been issued an occupational license during the previous 12 months. Occupational licenses are not issued during the first month of the suspension. If the calculated point level reaches 15 or more points in a 24-month period, an occupational license will not be issued until the calculated points are less than 15 points. Upon conviction for a charge of operating a motor vehicle in violation of the restrictions of the occupational license, the Division will extend the period of suspension for an additional like period. The Division will also direct the person to surrender the occupational license.

Driving During Suspension Or Revocation

A conviction for driving during suspension or revocation shall extend the period of suspension or revocation for a like period, up to one year. No driving authority will be permitted during the balance of the initial suspension or revocation and the extended period. Any driving authority previously issued by the Division must be surrendered.

For further information regarding the Driver Improvement Problem Driver Program, please contact the Driver Improvement Unit at 302-744-2509.

Aggressive Driving

The intent of Delaware's aggressive driving law is to identify aggressive drivers and change their high-risk driving habits by requiring their attendance in a specific training program. The ultimate goal is crash prevention. Aggressive driving is defined in terms of existing Title 21 offenses such as failure to yield, unsafe lane change, disregard of a traffic control device, failure to stop at the command of a police officer, following too closely, passing on a shoulder, and speeding. Individuals convicted of three or more of these offenses as a result of continuous conduct are guilty of aggressive driving and are subject to increased penalties. Offenders will be fined between $100.00 and $300.00 for the first offense. Additionally, offenders are required to complete a behavioral modification/attitudinal-driving course within 90 days after the conviction for aggressive driving. Failure to attend the course will result in suspension of the individual's driving privilege.

For further information regarding the Driver Improvement Problem Driver Program, please contact the Driver Improvement Unit at 302-744-2509.

Approved Behavioral Modification/Attitudinal-Driving Courses

The Secretary of Transportation has approved certain agencies to provide the behavioral modification/attitudinal–driving course. The course is a minimum of eight hours long and is offered in all three counties. The fee for the course is $100.00 and is payable to the course provider. When you complete the behavior modification course, the provider will send the notification of completion electronically to DMV within 48 hours. Please visit **dmv.de.gov** for a list of approved course providers.

Defensive Driving Courses

The division may consider the satisfactory completion of an approved defensive driving course as a three-point credit that is used to calculate driver penalties within the DMV. This does not decrease your overall point value which is used for employment and insurance review purposes. The three-point credit is only applied to future violations, **for Administrative action**, and does not remove or reduce existing DMV points. The course remains valid for three years from the completion date.

Please visit **dmv.de.gov** for a list of approved course providers.

IMPAIRED DRIVING

Drinking And Driving

Nationally in 2019, alcohol was involved in about 28% of fatalities. In Delaware, in 2019, 35% of fatal crashes were impaired related. If you drink alcohol, even a little, your chances of being in a crash are much greater than if you did not drink any alcohol.

No one can drink alcohol and drive safely, even if you have been driving for many years. New drivers are more affected by alcohol than experienced drivers because they are still learning to drive.

A sobering fact about alcohol. It's not what you drink. It's how much. A 12-ounce can of beer, a 5-ounce glass of wine, and a cocktail with 1.5-ounces of 80 proof distilled spirits all contain the same amount of alcohol.

Because drinking alcohol and then driving is so dangerous, the penalties are very tough. People who drive after drinking risk heavy fines, higher insurance rates, loss of license, and even jail sentences.

Drinking And Blood Alcohol Concentration

Blood alcohol concentration (BAC) is simply a precise way of stating the amount of alcohol in a quantity of blood. It is expressed in percentages and is measured by chemical analysis.

Immediately after an alcoholic beverage is swallowed, the alcohol starts to move from the stomach into the bloodstream. The rate of this movement and how much alcohol gets into the blood depends primarily on how much alcohol is in the drinks taken. The rate at which alcohol moves to the bloodstream is governed to a lesser extent by the amount of food in the stomach and the intestines. It depends only to a very limited extent upon how the drinks are mixed. Thus, two ounces of pure alcohol taken into the stomach within a period of one hour will result in about the same blood alcohol concentration whether consumed as martinis, straight shots, highballs, wine, beer, or a mixture of these.

The lower the weight of the drinker, the lower the amount of alcoholic beverage it takes to bring the blood alcohol concentration to a specified level. It takes about half as much for a person weighing 100 pounds as for another weighing 200 pounds.

There are differences in the way individuals react to drinking, but in general, when a person drinks a given amount of alcoholic beverage, their blood alcohol concentration can be predicted.

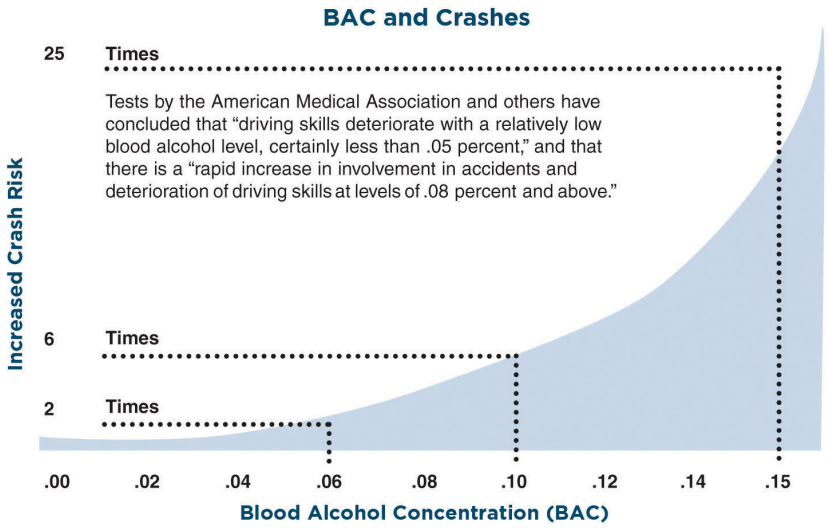
In Delaware a BAC of .08 or greater or the presence of any illicit or recreational drug is conclusive evidence that a driver is under the influence. However, a driver can be charged with driving under the influence if the BAC is under .08. If a driver refuses chemical testing, their license may be revoked.

More stringent rules apply to those under 21 years of age. Underage consumption or possession of alcohol, even if not related to operating a motor vehicle, can result in a license revocation. Delaware's zero tolerance statute mandates a license revocation for underage drivers with a .02 BAC. If convicted of driving under the influence of alcohol, the minor's license may be revoked until they reach the age of 21 years.

Any driver operating a commercial motor vehicle who refuses to submit to a breath or blood test to determine their BAC, or whose BAC is .04 or more, will be disqualified from driving a commercial vehicle for one year; a lifetime disqualification may be imposed for a second conviction. New federal requirements were implemented as of September 30, 2005, for CDL holders driving under the influence of alcohol or drugs while driving a non-commercial vehicle. If convicted, the CDL holder will be disqualified for one year; a lifetime disqualification may be imposed for a second conviction.

Crash Risk

There is a clear relationship between drinking and driving crashes. You can see from the following chart that as the blood alcohol concentration goes up, the chance of being involved in a crash increases. The increased crash risk begins before drivers are impaired or intoxicated.



If You Drink, When Can You Drive

Alcohol reduces all of the important skills you need to drive safely. Alcohol goes from your stomach into your blood and to all parts of your body. It reaches your brain in 20 to 40 minutes. Alcohol affects those areas of your brain that control judgment and skill. This is one reason why drinking alcohol is so dangerous; it affects your judgment. Good judgment is important to driving, but in this case, judgment helps you to know when to stop drinking. In a way, it's like alcohol puts good judgment on hold. You do not know when you have had too much to drink until it is too late. It is a little like a sunburn; by the time you feel it, it is already too late.

Alcohol slows your reflexes and reaction time, reduces your ability to see clearly, and makes you less alert. As the amount of alcohol in your body increases, your judgment worsens and your skills decrease. You will have trouble judging distances, speeds, and the movement of other vehicles. You will also have trouble controlling your vehicle.

The best advice is: if you drink alcohol, do not drive. Even one drink of alcohol can affect your driving. With two or more drinks in your bloodstream you are impaired and could be arrested.

An alcohol drink is 1.5 oz. of 80-proof liquor (one shot glass) straight or with a mixer, 12 oz. of beer (a regular size can, bottle, mug or glass) or a 5 oz. glass of wine. Specialty drinks can have more alcohol in them and are the same as having several normal drinks.



1.5 oz. Shot of 80 proof liquor | 5 oz. Glass of table wine | 12 oz. Can of regular beer

There is no way to sober up quickly. Coffee, fresh air, exercise, or cold showers will not help. Time is the only thing that will sober you up.

There are ways of dealing with social drinking situations. Arrange to go with two or more persons and agree which one of you will not drink alcohol. You can rotate among the group, with one person being a "designated driver." You can use public transportation or use a cab, if available.

There are ways to slow down the effect of drinking alcohol. The best is to increase the amount of time between drinks. Another is to eat before and while you are drinking. Food slows down how fast alcohol gets into your blood. Starchy foods like potato chips, pretzels, bread, and crackers are best. Remember, food only slows when the alcohol gets into your blood, it will not keep you from getting drunk.

Drugs Combined With Alcohol

Besides alcohol, there are many other drugs that can affect a person's ability to drive safely. These drugs can have effects like those of alcohol or even worse. This is true of many prescription drugs and even many of the drugs you can buy without a prescription. Drugs taken for headaches, colds, hay fever or other allergies, or those to calm nerves can make a person drowsy and affect their driving. Pep pills, "uppers," and diet pills can make a driver feel more alert for a short time. Later however, they can cause a person to be nervous, dizzy, unable to concentrate, and they can affect your vision. Other prescription drugs can affect your reflexes, judgment, vision, and alertness in ways similar to alcohol.

If you are driving, check the label for warnings about the drug's effect before you take the drug. If you are not sure it is safe to take the drug and drive, ask your doctor or pharmacist about any side effects.

Never drink alcohol while you are taking other drugs. These drugs could intensify the effects of alcohol or have additional effects of their own. These effects not only reduce your ability to be a safe driver but could cause serious health problems, even death.

Illegal drugs are not good for your health and affect your ability to be a safe driver. For example, studies have shown that people who use marijuana make more mistakes, have more trouble adjusting to glare, and get arrested for traffic violations more than other drivers.

Distracted Driving

Driving is a risky activity. In 2020, 42,060 people were killed in motor vehicle crashes and over three million were injured. If you drink alcohol, even a little, your chances of being in a crash are much greater than if you did not drink any alcohol. **Note:** Injury estimates are currently unavailable from National Highway Transportation

Administration (NHTSA). Driving instructors estimate that a driver makes 200 decisions for every mile of driving. If you are doing anything else while driving, you are adding to the total workload in your brain. If you take your eyes off the road while traveling 55 mph for 3-4 seconds, your vehicle travels the length of an entire football field.

Seven percent of all drivers 15-19 years old involved in fatal crashes were reported as distracted.

If you are doing any of the following while driving, you may be doing more things than you can manage safely:

- Eating, drinking, or smoking.
- Changing the radio, CD, or music on your electronic device.
- Shaving, putting on make-up, or other personal grooming tasks.
- Engaging in intense, complicated emotional conversations on cell phone or with passengers.
- Reading a road map, newspaper, or taking notes.
- Focusing attention on children or pets.
- Retrieving unsecured cargo or objects.
- Driving an unfamiliar vehicle without first adjusting the mirrors and seat, selecting entertainment options, and locating the lights, turn signals, and windshield wipers.
- Talking or texting using a cell phone.
- Reading or responding to email or other communications via laptop, electronic devices, or other PDA devices.
- Taking a selfie.

Drowsy Driving

Over the last decade, more than 7,000 people have been killed in drowsy-driving related crashes. Driving for long distances may make you drowsy or unaware of what is happening. “Highway Hypnosis” commonly refers to the state of being unaware of surroundings. It is caused by monotony—the sound of the wind, the tires, and the steady hum of the engine.

If you are tired while driving, it is best to rest or change drivers. Being tired dulls your mind and slows down your reactions, making driving hazardous. Keep in mind that lives are at stake.

Here are some signs of drowsy drivers:

- Your eyes close or go out of focus by themselves.
- You have trouble keeping your head up.
- You can’t stop yawning.
- You have wandering, disconnected thoughts.
- You don’t remember driving the last few miles.
- You missed your exit.
- You keep driving out of your lane.
- Your speed becomes variable.

DELAWARE DRINKING AND DRIVING LAWS

Drinking While Driving Is Prohibited

It is unlawful to consume alcoholic beverages while driving a motor vehicle upon the highways of this State.

Driving Under The Influence (DUI)

Delaware motor vehicle laws concerning the arrest and disposition of driving while under the influence violations provide that:

It applies to anyone who drives, operates, or has actual physical control of a vehicle, off-highway vehicle, or moped while under the influence of intoxicating liquor or drugs. A person is subject to the DUI law both upon highways and elsewhere throughout the state. The fact that a person charged with violating the DUI law is, or has been, legally entitled to use alcohol or a drug shall not be considered a defense. All such persons, by so doing, shall be deemed to have given their consent to a chemical test or tests of breath, blood, and/or urine for the purpose of determining the presence of alcohol and/or drugs. A person who drives under the influence of alcohol or drugs is subject to both criminal and administrative penalties. A person convicted of a DUI in another state will have their driver license revoked in Delaware.

Implied Consent Law

Anyone arrested for driving, operating, or having actual physical control of a vehicle, an off-highway vehicle, or a moped, while under the influence of intoxicating liquor or of any drug shall be deemed to have given consent to submit to a chemical test or tests or their breath, blood, and/or urine for the purpose of determining the alcohol content in their blood. If the person refuses to submit to the test designated by the officer, reasonable steps can be taken to conduct tests without the person's consent. Upon such refusal the arresting officer will deliver a report of refusal to the Division of Motor Vehicles who may revoke the person's driver license and/or driving privilege for one to two years depending on the number of previous DUI offenses, probable cause, and/or chemical test refusal offenses.

Law Pertaining To Juveniles Driving While Under The Influence

For a violation of the Delaware DUI law, the Family Court must submit an order to the Division of Motor Vehicles to revoke the license and/or driving privilege of any juvenile until such time as they are legally permitted to drink alcoholic beverages (21 years old).

Zero Tolerance Law

The law states that anyone under the age of 21 years, who drives, operates, or has actual physical control of a vehicle, an off-highway vehicle, or a moped while consuming or after having consumed alcoholic beverages, shall have their driver license revoked for a period of two months for the first offense and not less than six months nor more than 12 months for each subsequent offense.

Underage Consumption Or Possession

Anyone under the age of 21 years who has alcoholic liquor in their possession at any time, or consumes, or is found to have consumed alcoholic liquor, shall be fined $100 for the 1st offense and not less than $200 nor more than $500 for each subsequent offense. A first and second violation of this subsection is a civil offense. Information concerning this civil offense may not appear on an individual's certified criminal record. This section shall not apply to the possession

or consumption of alcoholic liquor in connection with any religious service or by members of the same family within the private home of any of said members.



Other Factors to be considered before you drink/drug and drive are:

- The expense and hardship to your family.
- Your employment may be jeopardized.
- Your insurance rates will significantly increase.
- DMV Penalties set forth in Title 21, Section 4177A of the Delaware Code.
- Court Penalties set forth in Title 21, Section 4177(d) of the Delaware Code.

Delaware Specific Penalties And Procedures

The driver license will be confiscated by the police officer at the time of the arrest with the exception of Out of State driver license holders. The officer will then issue a 15-day temporary license. The driver will have 15 days to request an administrative hearing. Hearings may be requested in writing, by mail, fax 302-739-2602, online at **dmv.de.gov,** or in person at your local DMV facility. The temporary license may be extended at that time, if eligible. The license will be revoked at the end of the 15-day period if no hearing is requested.

If requested by the driver, the Motor Vehicle Administrative Hearing will be held to determine:

1. Whether a police officer had probable cause to believe that the driver was driving, operating, or had actual physical control of a vehicle while under the influence of alcohol and/or drugs.
2. Whether by a preponderance of evidence it appears that the driver was driving, operating, or had actual physical control of a vehicle while under the influence of alcohol and/or drugs. A chemical test of .08 BAC or greater, or the presence of any drug is conclusive evidence that the driver was under the influence.
3. Whether the driver refused a chemical test after being informed of the revocation penalty for refusing such test.

If the driver receives an unfavorable ruling at an administrative hearing, the driver license and/or driving privilege will be revoked for:

Probable cause
- 3 months for 1st offense
- 12 months for 2nd offense
- 18 months for 3rd offense or more

Refused chemical test
- 12 months for 1st offense
- 18 months for 2nd offense
- 24 months for 3rd or more offense



Any person revoked for a probable cause or refused chemical action may apply for reinstatement of their driver license and/or driving privilege under the following terms:

1. Satisfactory completion in a course of instruction and/or program of rehabilitation as designated by an alcohol evaluation. Payment of all fees associated with the course, program, and evaluation.
2. The period of revocation has been served.
3. You may be required to pass a vision screening, knowledge test, and road skills test prior to your reinstatement.
4. Payment of the $200.00 reinstatement fee.

Driving Under The Influence (DUI) Penalties For A First Offense

Loss of license by DMV

- 12 months for BAC less than .15 or for drugs.
- 18 months for BAC between .15 and .19.
- 24 months for BAC .20 or greater or refusal to submit to a chemical test.

Sanctions by Court

- Fine: $500.00 to $1,500.00 and/or
- Sentence: Imprisonment for up to 12 months.

Ignition Interlock Device (IID) Program for First Offense Election (FOE)

A person who, in lieu of standing trial, enters a First Offender Election (FOE) may seek an IID license to drive a motor vehicle before their period of revocation has elapsed. All FOE's offenders with a DUI violation date on or after February 2, 2015, are immediately eligible to apply for the IID license under the following terms:

1. Your Delaware license has been turned in to the Division of Motor Vehicles.
2. Complete an IID program application.
3. Provide proof of insurance for the vehicle(s) on which the IID is to be installed.
4. Provide proof of a valid Delaware registered vehicle(s) on which the IID is to be installed.
5. Your driver license and/or driving privilege is not suspended, revoked, disqualified, or denied for another violation that would prohibit the issuance of an IID license.
6. Once all requirements are met, the DMV will authorize installation of the device on the approved vehicle(s).

Any person who elects the FOE program with the IID license, must remain on the IID for four months from the date the IID license was issued. Prior to reinstatement, the Division must have received a satisfactory alcohol program completion report. A fee in the amount of $200.00 must be paid to the Division at the time of reinstatement, and an eye screening, law test, and road test may be required. The Division will then authorize the removal of the IID.

Any person who elects the FOE program but does not have a vehicle in their name and chooses not to get an IID license, will be ineligible for reinstatement until the full period of revocation has elapsed. All other requirements must be met prior to reinstatement to include no driving during the period of revocation. For more information see Title 21, Section 4177B of the Delaware Code.

DUI Penalties For Second Offense

Loss of license by DMV

- 18 months for BAC less than .15 or drugs.
- 24 months for BAC between .15 and .19.
- 30 months for BAC .20 or greater, or refusal to submit to a chemical test.

Sanctions by Court

- Fine: $750.00 to $2,500.00 and
- Sentence: Imprisonment for a minimum of 60 days and up to 18 months. If offender satisfies eligibility criteria and participate in the Court of Common Pleas DUI Treatment Program, the Court may suspend the minimum sentence upon successful completion of the program.

DUI Penalties For Third Offense

Loss of license by DMV

- 24 months for BAC less than .15 or drugs.
- 30 months for BAC between .15 and .19.
- 36 months for BAC .20 or greater, or refusal to submit to a chemical test.

Sanctions by Court

- Third DUI Offense: Class G Felony– occurring any time after two prior offenses.
- Fine: Up to $5,000.00 and
- Sentence: Imprisonment not less than one year nor more than two years.

DUI Penalties For Fourth Offense

Loss of license by DMV

- 60 months for all fourth offense convictions.

Sanctions by Court

- Fourth DUI Offense: Class E Felony – occurring any time after three prior offenses.
- Fine: Up to $7,000.00.
- Sentence: Imprisonment not less than two years nor more than five years.



DUI Penalties For Fifth Offense

Loss of license by DMV

- 60 months for all fifth offense convictions.

Sanctions by Court

- Fifth DUI Offense: Class E Felony.
- Fine: Up to $10,000.00 and
- Sentence: Imprisonment not less than three years nor more than five years.

DUI Penalties For Sixth Offense

Loss of license by DMV

- 60 months for all sixth offense convictions.

Sanctions by Court

- Sixth DUI Offense: Class D Felony.
- Fine: Up to $10,000.00 and
- Sentence: Imprisonment not less than four years nor more than eight years.

DUI Penalties For Seventh Offense

Loss of license by DMV

- 60 months for all seventh or greater offense convictions.

Sanctions by Court

- Seventh or greater DUI Offense: Class C Felony.
- Fine: Up to $15,000.00.
- Sentence: Imprisonment not less than five years nor more than fifteen years.

Ignition Interlock Device Program (IID)

An IID license authorizes the holder to operate a vehicle that has an IID installed. An IID license cannot be issued until the participant has met all minimum qualifications. All DUI offenders are eligible to apply for the IID after a minimum mandated revocation period has been completed. Per Title 21, Section 4177C(a)-(c) of the Delaware Code:

1. FOE - immediately eligible upon entry into program;
2. First Offense Conviction, non FOE - 30 to 45 days depending on BAC;
3. Second Offense Conviction – 60 days;
4. Third Offense Conviction – 90 days;
5. Fourth and Subsequent Conviction – 6 months.

The IID license is not available for CDL class vehicles or valid for any peripheral endorsements. The offense in question must not have involved death or serious injury to any person (see Title 21, Section 2732(a) of the Delaware Code). The offender's driver license and/or driving privilege is not suspended, revoked, disqualified, or denied for another violation that would prohibit the issuance of an IID license and other disqualification criteria as set forth in Title 21, Section 4177G(f), 4177C, or other criteria set forth elsewhere in Delaware Code or Administrative Code.

An individual that is not otherwise disqualified may apply to obtain an IID license by following the general process below:

1. You must have had a valid Delaware license at the time of the offense in question;
2. Complete an IID application;
3. The Division of Motor Vehicles verifies proof of enrollment in a course of instruction and/or program of rehabilitation as designated by the alcohol evaluation and pay all fees associated with the course/program;
4. Your current issued Delaware license has been surrendered to the Division of Motor Vehicles;
5. Provide proof of insurance for the vehicle(s) on which the IID is to be installed;

6. Provide proof of a valid Delaware registered vehicle(s) on which the IID is to be installed. An IID shall be installed on each vehicle(s) the person will operate during the period of revocation, regardless of whether the vehicle is owned by the person;
7. You may be required to pass a vision screening, knowledge test, and road skills test prior to issuance of an IID license;
8. Once all requirements are met the Division of Motor Vehicles will authorize an approved IID Vendor to install the device(s) on the approved vehicle(s);
9. Upon proof of installation of the IID, the Division will verify all criteria have been met and is authorized to issue an IID license (i.e. reinstatement of limited driving privileges linked to approved vehicle(s)).

If a DUI offender chooses to obtain the IID license, they must have the IID installed on any vehicle(s) the person will or does operate, the offender incurs all costs associated with the program, and must have the device on the vehicle(s) for the entire period required for the IID, regardless of when the original revocation period would otherwise elapse. The IID time requirement runs from the date of IID license issuance. Per Title 21, Section 4177C(d) of the Delaware Code the time periods are below.

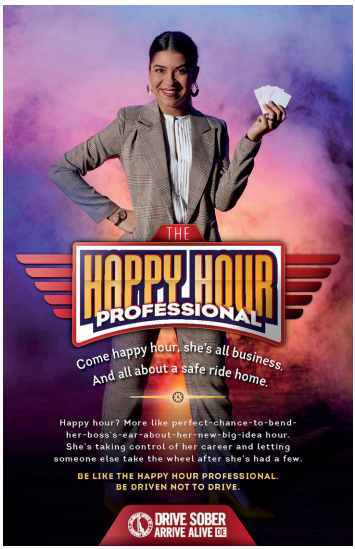
1. FOE - 4 months;
2. First Offense Conviction, non FOE -12 to 23 months depending on BAC;
3. Second Offense Conviction – 16 to 28 months depending on BAC;
4. Third Offense Conviction – 21 to 33 months depending on BAC;
5. Fourth and Subsequent Conviction – at least 54 months.

The Division may extend the above time periods or disqualify a participant from the program for non-compliance with requirements.

See Title 21, Section 4177G(f) of the Delaware Code.

If a DUI offender does not apply for the IID Program, they must serve the entire revocation associated with their DUI violation and may not drive during this period.

For further information regarding the IID program, please contact the IID Unit at 302-744-2540



SECTION THREE

VEHICLE EQUIPMENT, TITLES, REGISTRATION, AND INSURANCE

Delaware law requires the registration of all vehicles operated on the highway. This section describes the title/registration process. New residents must title/register their vehicles within 60 days after moving to Delaware. Customers may obtain more detailed information on titling, registration, inspection, and other services at the Division of Motor Vehicles' website at **dmv.de.gov**.

MOTOR VEHICLE EQUIPMENT

Required Equipment

Every automobile registered in Delaware must have the following equipment. Prohibited equipment is discussed in the next subsection.

- **Headlights** - At least two white multiple beam lights are required, one on each side in the front. High beams must be aimed and strong enough to reveal persons and vehicles at least 350 feet ahead. Low beams must reveal people at least 100 feet ahead and must be so adjusted as not to strike the eyes of an approaching driver. Headlights must be on when windshield wipers are in use due to inclement weather.
- **Taillights** - At least two, original design, red lights are required on the rear. They must be visible from a distance of 500 feet.
- **Parking Lights** - At least one white or amber light visible from a distance of 500 feet to the front and at least one red light visible from a distance of 500 feet to the rear. Rear light(s) may be same as taillight(s).
- **License Plate Light** - Must be white and strong enough for the number on the registration plate to be seen from a distance of 50 feet. Must illuminate registration plate without projecting light towards vehicles traveling in the same direction.
- **Stop Lights** - Original design amber or red light (or any color between red and amber) is required on rear. It must light when the brake pedal is pushed and be visible from a distance of at least 100 feet in normal sunlight. If vehicle is equipped with two stop lights, both must be in working order.
- **Turn Signals** - All vehicles manufactured after 1953 must be equipped with two turn signals in front and two in rear. Those in front may be any shade between white and amber; those in rear may be any shade between amber and red. Both sets must be visible at least 100 feet in normal sunlight. Vehicles manufactured prior to 1953, or in 1953, equipped with turn signals must have them in working order.
- **Reflectors** - All passenger vehicles manufactured after 1953 require two red reflectors to the rear. Vehicles manufactured after 1977 require a minimum of six reflectors, two amber on the front sides, two red on the rear sides and two red to the rear of the vehicle. Reflectors must be visible to 500 feet and have four square inches of reflective area. Reflectors may be incorporated in light lenses.

For trailers and motorcycles refer to FMVSS 108 or contact a DMV inspection facility.

- **Marker Lights** - All passenger vehicles manufactured since 1972 require side marker lamps. Lamps must be visible to 500 feet and have four square inches of luminous lens area consisting of two amber lamps to the front sides and two red lamps to the rear sides. For trailers and motorcycles refer to FMVSS 108 or contact a DMV inspection facility.
- **Brakes** - Brakes must be adjusted to work evenly on all sides of the vehicle and meet federal braking requirements.
- **Parking or Emergency Brake** - Must stop vehicle within a distance of 54 feet from a speed of 20 mph.
- **Windshield and Windows** - Windshield and all side and rear windows must be made of automotive safety glass. No stickers or signs shall be placed on windshield or other windows other than certificates required by law or those approved by the Division of Motor Vehicles.
- **Windshield Wipers** - Are required to clean rain, snow, or other moisture from windshield.
- **Rear Vision Mirror** - Must be placed so that the driver can see any vehicle traveling in the same direction. If the view from the inside mirror to the rear is blocked, the vehicle must have outside mirrors on the left and right side of the vehicle.
- **Muffler** - All vehicles must be equipped with a muffler which must be in good working order and in constant operation. Federal noise standards must be met. Loud or excessive noise is not permitted.
- **Horn** - Must be able to make sound that can be heard under normal conditions at least 200 feet away.
- **Seat Belts** - Must be installed for all front seat occupants, in passenger cars manufactured after January 1, 1968, and trucks, buses, and multi-passenger vehicles manufactured after July 1, 1971.

Additional Equipment

- **Spotlights** - Two may be mounted. No part of the intense beam shall be aimed to left of nor more than 100 feet ahead of vehicle.
- **Fog Lights** - Two (white or yellow) may be mounted on front of vehicle at a height of not less than 12 inches nor more than 30 inches above the ground. Light beam must drop at least four inches in first 25 feet.
- **Back-up Lights** - May be mounted on rear of vehicle to project light for backing. These may be any color from white to amber.
- **Colored Lights** - Other than factory-equipped, marker lamps and turn signal lamps, no colored lights are permitted on the vehicle. Such lights are permitted only on emergency vehicles.

Prohibited Equipment

- **Limitation in Number of Lights** - Not more than four lights of 300 candlepower or more on the front of a vehicle shall be lit at one time. Headlights must be installed no higher than 54 inches nor less than 24 inches from the center of the lamp to the ground.

- **Red Lights Prohibited in Front** - No ordinary motor vehicle can show a red light visible to the front of such vehicle. Such lights are permitted only on emergency vehicles.
- **Flashing Lights Prohibited** - Flashing lights are generally prohibited except on:
  - Emergency vehicles, school buses, snow removal equipment (can be green revolving or flashing lights).
  - Any vehicle as a means of indicating right or left turns.
  - Any vehicle as a means of indicating a traffic hazard (four-way flashers).
- **License Plate Additions** - Unauthorized plates, frames, accessories, designs, or symbols on or attached to the license plate are prohibited.
- **Other Lights and Original Design Change** - No light, lamp or reflector that tends to change the original design or performance of the vehicle may be installed.
- **Studded Tires** - Are legal from October 15 to April 15 inclusive; illegal from April 16 to October 14 inclusive. Other states have different time periods when studded tires are permitted; a few states do not allow their use at any time. You must abide by their laws when passing through those states.
- **Cut-outs** - It is prohibited to use a muffler cut-out.
- **Noise Devices** - No ordinary vehicle shall be equipped with any siren, exhaust, or compression whistle.
- **Towed Vehicle** - No motor vehicle shall tow more than a single vehicle (a tractor and semi-trailer may tow one other vehicle). The draw bar or other connection between any two vehicles, one of which is towing the other, must be no more than 15 feet long. If a chain, rope or cable is used, a red flag at least 12 inches square must be attached to it.
- **Tinted Windows** - Window tint is prohibited on the front windshield below the top five inches of the windshield (specifically not below the AS-1 masking on the windshield), and on the left and right driver side windows. Tint material also may not be installed over any lights or the vehicle's license plate. Vehicles with tint installed must have outside mirrors on both the right and left sides of the vehicle. Vehicles that have aftermarket tint to the immediate right or left of the driver must have an approved valid tint waiver, and it must be kept inside the vehicle at all times. Tint Waivers can be applied for online at https://dmv.de.gov/OnlineServices/medical-tint-waiver/.
- **Lift Kits** - Refer to Delaware Code, Title 21, Section 4318, for bumper, frame rail, and body heights.

Using Headlights

Delaware law requires your headlights (not parking lights) to be:

- On when driving after sunset or before sunrise.
- On any other time you cannot see beyond 1000 feet.
- On any time you use your windshield wipers.
- Switched to low beams 500 feet before meeting another vehicle or when within 200 feet of the vehicle you are following.

Using Safety Belts And Child Restrains

Delaware law requires all occupants of a vehicle to be properly restrained in a seatbelt or child safety seat. Officers may pull over a vehicle if they see unbuckled occupants inside. The driver of the vehicle receives a ticket for any unrestrained or improperly restrained vehicle occupants. Please review the important information on the use of safety belts and child restraints in the Driving Skills and Safety Tips section of this manual.

HOW TO TITLE/REGISTER YOUR VEHICLE

New residents must title/register their vehicles within 60 days after becoming a Delaware resident. State law requires changes of address to be reported to the Division of Motor Vehicles within 30 days. You can find more detailed information on titling/registering a vehicle under the Division's website at: **dmv.de.gov**, then click on "Vehicle Services."

Step 1 – Liability Insurance, Financial Responsibility And Penalty

The first step in obtaining a Delaware vehicle title/registration is to establish your (the owner(s)) financial responsibility. This is done by purchasing a liability insurance policy from a company licensed by the Insurance Commissioner to operate in Delaware. The minimum coverage is:

- A PIP (Personal Injury Protection) minimum of $15,000 for any 1 person and $30,000 for all persons injured in any 1 crash.
- $25,000 for bodily injury or death of one person in any one crash.
- $50,000 for bodily injury or death of two or more persons in any one crash.
- $10,000 for injury to, or destruction of, property of others in any one crash.

The Division requires verification that the car to be registered is properly insured. One of the following documents is acceptable:

- An original Delaware Insurance Identification Card – All insurance companies are required to issue such cards. The card must be carried in the vehicle at all times and include the period of coverage and the National Association of Insurance Commissioners (NAIC) company identification number (NAIC code). The ID card must have a valid expiration date. ID cards are re-issued every six months. The card may be paper or electronic.
- A valid insurance policy.
- A written binder within 30 days of issue from an insurance company or agent on the insurance company's letterhead.
- Faxed insurance is acceptable if it is sent directly from the insurance company to the DMV only.

Please Note: Electronic proof of insurance will be verified. Third party faxes will not be accepted.

The penalty for operating an uninsured vehicle is a fine not less than $1,500.00 nor more than $2,000.00. For each subsequent offense occurring within three years of a former offense, the fine shall be not less than $3,000.00 nor more than $4,000.00.

Providing false proof of insurance will result in an additional fine of $500.00 and/or 30 days in jail.

Specialized personnel with the State Department of Insurance and/or law enforcement officials may confiscate the registration plate of a vehicle absent affirmative proof a vehicle is insured, after proper notice has been sent to the assigned owner.

OWNERS CANCELLING INSURANCE FOR ANY REASON MUST FIRST SURRENDER THEIR VALID LICENSE PLATE TO THE DIVISION. FAILURE TO SURRENDER A VALID LICENSE PLATE PRIOR TO INSURANCE CANCELLATION WILL RESULT IN FINES.

The Division of Motor Vehicles randomly audits for proof of insurance on active registrations. The penalty for being uninsured is $100.00 for 1-30 days and an additional $5.00 per day until insurance is obtained, tags are surrendered, or the registration expires. In addition, suspensions are imposed on the registration of all owners who fail to respond to the request. Once suspended, reinstatement fees are $50.00 per registration.

Step 2 – Vehicle Inspection



The second step in obtaining a Delaware vehicle title/registration is to have your motor vehicle inspected at any of the four DMV locations. The inspection lane manual is available at **dmv.de.gov**.

A check of the following items is recommended before your vehicle is presented for inspection; it may save you a return trip for re-inspection. This list is not all of the items inspected but are those items which commonly fail inspection.

- Certificate of title or registration card must be presented.
- There is no charge for an inspection for Delaware residents.
- All lights must be clean, in working order, and properly aimed. This includes stop lights, turn signals, license plate light, parking lights, and headlights.
- Brakes must stop the vehicle within required distances. A performance brake test is given to all vehicles presented for inspection.
- Mirrors must be clean and unbroken.
- Windshield wipers must be fully operative (the rubber blades must be in good condition).
- Hood and trunk latches must hold hood and trunk fully closed.
- Tires must have no bulges, no fabric showing, no bald areas, and no cuts. Tread depth must be at least 2/32 inch measured in two adjacent treads.
- Door handles or equivalent must be present and in working condition.
- There must be no damaged or dislocated parts projecting from the vehicle that could present a safety hazard.
- Horn must be in operating condition.
- Muffler must effectively reduce the sound of engine exhaust. No leaks in the exhaust system. A catalytic converter must be installed if originally equipped by the manufacturer.
- There must be no visible gasoline, oil, or coolant leaks.

- Seat belts must be worn.
- Bumper height on passenger cars must not exceed 22 inches from the ground to the bottom of the bumper. The maximum distance between the vehicle body and vehicle frame rail may not exceed three inches.
- No tinting or sun-screening device may be applied to the front windshield or to the front side windows.
- No air scoops shall be mounted on a vehicle hood that exceeds three inches.
- All vehicles 1968 to 1995, will be tested for exhaust emissions. 1996 and newer gas-powered vehicles less than 8,000 lbs and 1997 diesel-powered, less than 8,500 lbs will receive Onboard Diagnostic Test (OBD-II). 2008 and newer vehicles gas or diesel powered between 8,501 and 14,000 GVWR will be tested using the Onboard Diagnostic Test (OBD-II).
- Windshield must be free of cracks, holes, or breaks. Cracks over five inches or star chips over one inch are mandatory failure items. The minimum height of visibility of a windshield is 10 inches.
- Seven-year-old models (and newer) vehicles no longer require inspection, except for a VIN inspection on vehicles that have never been titled in Delaware. Vehicles seven years old receive one-year renewals without inspection; all others receive a three-, four- or five-year renewal based on model year.
- A late fee of $20.00 is assessed for renewal after vehicle registration expiration.
- DMV accepts cash, check, money order, and credit card payments from Visa, American Express, Discover, MasterCard, Google Pay and Apple Pay with proper identification.

POOR CONDITION OF ANY EQUIPMENT ITEMS MAY BE CAUSE FOR REJECTION.

Vehicles in unsafe condition, lacking required equipment, or not in proper repair or adjustment will be rejected. The inspection technician will provide an inspection report showing the rejected items. These items must be corrected and the vehicle re-inspected and passed prior to the issuance of a title, registration card, and plate. Vehicle owners whose registration is about to expire may be eligible for a temporary tag if the failure item is not safety-related. The cost is $20.00.

Step 3 – Title

The third step in obtaining a vehicle registration is to complete an application for a Delaware title and registration.

If the vehicle is coming from a state that issues certificates of title, a certificate of title must be surrendered to the Division of Motor Vehicles at the time the application is filed. If there is a lien or encumbrance against the vehicle, the Division will provide a form letter (MV-35) to send to the lienholder to obtain the certificate of title.

Applications (MV-212) for certificate of title and the Vehicle Inspection Report are issued by an inspection technician after your vehicle passes the emissions tests and safety inspection. The application must be signed by all owners of the vehicle or by someone with an original power of attorney to sign for such owner(s), or by an officer of the company.

Whenever a motor vehicle is brought into Delaware from another state and a title/registration is sought, the owner must pay a vehicle document fee of 5.25 percent of the value of the vehicle but not less than $8.00 unless the owner presents proof that they have paid to such other state a sales tax, transfer tax, or some similar levy on the purchase of the vehicle within ninety (90) days prior to registering in Delaware. The value of the vehicle shall be the current NADA Average Trade-in book value. Note: the document fee for mobile homes is 3.75%.

Proof of Liability Insurance must be submitted at the time of titling/registering a vehicle. (See paragraph regarding liability insurance.)

The title fee is $35.00 if there is no lien or $55.00 if there is a lien against the vehicle.

If there is a lien against the vehicle, the title is mailed to the lien holder (customer must provide the correct address for lien holder).

The registration fee is $40.00 for one year or $80.00 for two years for all passenger vehicles. You have the option to register for one or two years. The Division recommends that you renew your registration for two years. Vehicles in the first seven model years may register for one to seven years depending on the model year. Registration fee for six months is $21.00.

Registration fees for commercial vehicles are $40.00 for first 5,000 pounds with increments of $18.00 per 1,000 pounds above 5,000 pounds. Trailer fees are $15.00 per year for 1,000 pounds, $20.00 per year for 1,001 pounds to 2,000 pounds and $40.00 per year for 2,001 pounds to 5,000 pounds with increments of $18.00 per 1,000 pounds above 5,000 pounds. Recreational Vehicle and Recreational Trailer fees are $40.00 per year for first 5,000 pounds with increments of $6.40 per 1,000 pounds above 5,000 pounds.

Beginning October 1, 2025, residents owning an Alternative Fuel Vehicle will be assessed an additional registration fee. The additional fee is intended to offset declining motor fuel tax revenues and cover increased costs associated with these vehicles, which tend to be heavier and have a greater impact on road infrastructure.

- ELECTRIC VEHICLE
  - $110 per year if the GVWR is 6,000 lbs. or less.
  - $150 per year if the GVWR is over 6,000-10,000 lbs.
  - $260 per year if the GVWR is over 10,000-26,000 lbs.
  - $900 per year if the GVWR is in excess of 26,000 lbs.
- PLUG-IN ELECTRIC VEHICLES
  - $85 per year if the GVWR is 6,000 lbs. or less.
  - $115 per year if the GVWR is over 6,000-10,000 lbs.
  - $200 per year if the GVWR is over 10,000-26,000 lbs.
  - $600 per year if the GVWR is in excess of 26,000 lbs.
- NON-PLUG-IN ELECTRIC (hybrids)
  - $60 per year if the GVWR is 6,000 lbs. or less.
  - $80 per year if the GVWR is over 6,000-10,000 lbs.
  - $140 per year if the GVWR is over 10,000-26,000 lbs.
  - $480 per year if the GVWR is in excess of 26,000 lbs.
- OTHER FUEL VEHICLES (Hydrogen, Natural Gas, etc)
  - $110 per year if the GVWR is 6,000 lbs. or less.
  - $150 per year if the GVWR is over 6,000-10,000 lbs.
  - $260 per year if the GVWR is over 10,000-26,000 lbs.
  - $900 per year if the GVWR is in excess of 26,000 lbs.

Upon submission of all necessary documents and their acceptance, and payment of the vehicle document fee, title fee, and registration fee, a certificate of title, registration card, and license plate will be issued by the Division of Motor Vehicles. If there is a lien against the vehicle, the title is mailed to the lienholder.

DMV accepts cash, check, money order and credit card payments from Visa, American Express, Discover, Mastercard, Google Pay and Apple pay with proper identification .

Requirement For Applicants Under 18 Years Of Age

If you are less than 18 years of age, your application for a certificate of title must be signed by your father, mother, guardian, or court-appointed custodian (with legal documentation) granting consent to the application.

Renewing Registration

Prior to registration renewal you must present proof that the vehicle is covered by adequate liability insurance and have passed the State's vehicle safety inspection and emission test. You may have your vehicle inspected any time 90 days prior to the expiration date of the registration. (If your registration expires on June 30th, you may have your vehicle inspected anytime after April 1st.) No time is lost by renewing early. You may also renew your registration at that time or you may renew any time up to the expiration date. It is suggested that you avoid the waiting lines normally experienced on the 15th and last few days of each month by presenting your vehicle for inspection early in the month. Expiration date is indicated on your sticker and registration card. A late fee of $20.00 is charged for late renewals (except active duty military personnel; see fee chart for details). Trailers weighing 4,000 pounds or less do not require re-inspection prior to renewal of the registration. Certain vehicles will be eligible for mail-in renewal. Eligible owners will be notified by mail, email or phone 90 days prior to the vehicle's registration expiration date. Please be sure the DMV has your updated mailing address, email address and phone number for renewal reminders.

Change Of Address

If you change your address within Delaware, you have thirty (30) days in which to notify both the Vehicle Services and Driver License Sections of the DMV. Vehicle Registration address changes may be submitted online at **dmv.de.gov**. Once you update your address, you will need a printer to print your new registration card. Address changes can also be done by writing to Vehicle Services Helpdesk, PO Box 698, Dover DE 19903. When requesting an address change in writing, please include your vehicle registration number (license plate number) and your new address. DMV will mail your new registration card for no fee. (See the Driver License Information section for changing address on your driver license.)

Change Of Name

If you change your name, you have thirty (30) days in which to apply for a new registration card and title. This name change must be completed on your driver license prior to making the change on the title and registration. This may be done by visiting an office of the Division. You must also present the certificate of title, the old registration, proof of insurance, and the marriage certificate or court order as evidence of name change. The Division will issue you a new certificate of title and registration card for a fee of $35.00 or $55.00 if there is a lien. (See Driver License section for information on changing your name on your license.)

Out-Of-State Inspections

Delaware residents who are temporarily residing more than 200 miles out of state may renew their registration by mail. Such residents include military personnel and college

students. An out-of-state inspection form MV210, can be obtained on the website at **dmv.de.gov**. Information on details may be obtained from the Division of Motor Vehicles, Attn: Vehicle Services Helpdesk, P.O. Box 698, Dover, Delaware 19903.

Responsibility Of Owner

The registration certificate and proof of liability insurance must accompany the motor vehicle whenever it is operated. The license plate (tag) must be affixed to the rear of the vehicle in the designated position and must bear the sticker showing year and month of expiration on the lower right corner of the plate. Your registration expires at midnight on the day of the month indicated on the sticker. There is no grace period.

SECTION FOUR
RULES OF THE ROAD

Right-Of-Way

Motor vehicle laws of Delaware and other states do not give anyone the right-of-way. The law describes who is to yield the right-of-way. When you can prevent a crash by yielding the right-of-way, regardless of who was supposed to yield, it is of course the right thing to do!

Signals And Signs

Traffic signals and signs apply to every person walking, driving, or riding a bike on a street or highway. Failing to heed a signal's or sign's message is a major cause of crashes.

Red Light Reinforcement Program

Delaware's Red Light Reinforcement Program is the most up-to-date and effective way of monitoring busy intersections for motorists who disobey traffic laws. The program is designed to help change driver behavior by strategically positioning traffic cameras and making Delaware intersections safer. Drivers who run red lights are photographed, their vehicle tag numbers are recorded, and citations are automatically sent via the U.S. Postal Service. If you have received a red light citation but have lost it, or have questions about payment mailing address, legal options, or viewing the video footage of the violation, please call 844-213-7033 or go to **http://www.deldot.gov/information/red_light/**

Understanding Traffic Signals

Understanding complex signals is not difficult if you learn four simple rules:

Remember The Four Rules

1. RED — Stop
2. YELLOW — Prepare to stop
3. GREEN — Proceed with caution
4. Arrows apply to only the direction indicated

Traffic signals must be obeyed by all drivers and bike riders.



Steady Red Light

Stop. You must stop at the stop line, before the crosswalk, or before entering the intersection should no stop line or crosswalk be present. Right turns on red are permissible after full stop, except when prohibited by a posted sign or a steady red arrow is displayed. Left turns on red are permissible after full stop from a one-way street to another one-way street unless prohibited by a posted sign or a steady red arrow is displayed. Make turns with caution, when safe to do so.



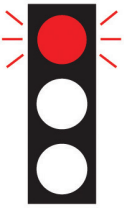
Steady Yellow Light

This means that the signal is changing from green to red; prepare to stop. If you are too close to stop safely, continue through the intersection with care.



Steady Green Light

Proceed with caution. When it is safe to proceed, you may enter the intersection to go straight ahead or turn unless a sign or additional signal prohibits the turn. You must yield to pedestrians and vehicles already in the intersection or adjacent crosswalk. When you turn, you must be especially careful of pedestrians and oncoming traffic.



Flashing Red Light

Flashing red light means the same as a stop sign. You must come to a complete stop. Proceed only when safe.



Flashing Yellow Light

Flashing yellow light means slow down, be more aware, and proceed with caution. Be careful of crossing intersection traffic, controlled by a flashing red.



Dark Traffic Signals

In the event that traffic signals are in place and no lighted indication is visible to an approaching driver, the approaching driver shall reduce speed and prepare to yield to other vehicles that are in or approaching the intersection.

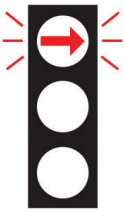
Arrows

The difference between round color lenses and arrows is that arrows apply only to a specific direction, while round lenses apply to all directions. If you know the four rules on the preceding page, the information provided below will be easy for you.



Steady Red Arrow

A full stop is required when a steady red arrow is displayed. You may not proceed in the direction of a steady red.



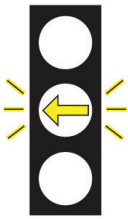
Flashing Red Arrow

Turns are permitted in the direction of a flashing red arrow after coming to a full stop. The full stop enables drivers to select a safe gap in the main flow of traffic, and then complete the turn without waiting for a green signal. Signal may be followed by a steady red arrow, steady yellow arrow or solid red ball.



Steady Yellow Arrow

A green arrow display has ended. If you are too close to stop safely, continue thru the intersection with care.



Flashing Yellow Arrow

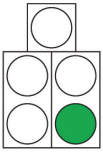
The movement in the indicated direction is permitted after yielding to opposing traffic and pedestrians.



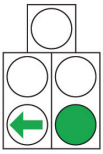
Steady Green Arrow

Proceed with caution in the direction the arrow points. Remember that you must yield to all pedestrians and vehicles already lawfully in the intersection.

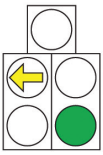
Let's try the four rules on some complex signals and see if it really is easy.



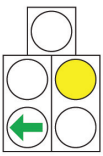
Thru traffic and, if not otherwise prohibited, left and right turns may proceed when safe. Exercise special care when making turns, especially left turns across oncoming opposite traffic.



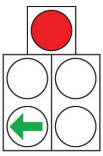
Left turns and thru traffic and, if not otherwise prohibited, right turns may proceed, when safe.



This is the change interval between the two displays above. It means that the green arrow interval has ended. If you are too close to the intersection to stop safely, complete your turn with care.



Here the green light for the thru and right turn has ended, but the left turn continues to be green. Continue left turning if safe. Straight thru and right- turning traffic should prepare to stop. If unable to stop, proceed with great caution.



Left turns may proceed, if safe, but all others must stop. Right-turning traffic may turn after stopping, if safe and not otherwise prohibited.

Pedestrian Signals

At many intersections, pedestrian signals are used in combination with vehicular traffic signals. Drivers must obey the vehicular traffic signals. Pedestrians must obey the WALK and DON'T WALK signals or symbols.

The WALK signal means the pedestrian may proceed but needs to be alert for vehicles turning right or left across the crosswalk. Drivers are required to yield to pedestrians who have a "WALK" indicator.





The flashing DON'T WALK signal means that if the pedestrian has started to cross the street, they should finish crossing as rapidly as possible. If they have not started to cross, they should not start.

The steady DON'T WALK signal means that the pedestrian should not start to cross the street at all. Delaware is installing new countdown pedestrian signals at various intersections throughout the State. Here is a quick guide on how to use pedestrian signals.





Accessible Pedestrian Signals (APS)

An Accessible Pedestrian Signal (APS) is a device that is used in conjunction with pedestrian signals that communicate pedestrian signal information in non-visual formats such as audible tones, verbal messages, and/or vibrating surfaces. APS lets pedestrians who are blind or visually impaired know when the WALK interval begins and terminates. Pedestrians who know when the crossing interval begins will be able to legally start a crossing before turning cars enter the intersection and can complete a crossing with less delay. Audible signals can also provide directional guidance, which is particularly useful at non-perpendicular intersections and at wide multi-lane crossings.

High Intensity Activated Crosswalk (HAWK)

The HAWK signal is activated when a pedestrian presses the crosswalk button, much like they do at a regular crosswalk, which will activate the signal. Once it is activated, the signal will go through a series of stages that will stop traffic long enough for pedestrians to safely cross the roadway. Traffic will then be allowed to proceed and the signal will reset itself until activated again.





For further information on the responsibilities of pedestrians and the responsibilities of drivers toward pedestrians, refer to Pedestrians in the Other Highway Users part of this section.

Rectangular Rapid Flashing Beacon

A type of beacon that has proven effective in improving motorists' yielding rates at crosswalks is called a Rectangular Rapid-Flashing Beacon. These beacons are mounted above or below pedestrian and/or bicycle warning signs at crosswalks and are activated via a push button by pedestrians or bicyclists. They flash more rapidly and in a "stutter" pattern, as opposed to the regular flash rate of most beacons. As a motorist, when you see these beacons flashing, slow down, look for pedestrians and bicyclists, and yield as necessary.

Bicycle Signals



Although not yet common in Delaware, there are some traffic signals intended specifically for bicyclists, and more are planned in the future. Bicycle signals may include traditional circular or arrow indicators that are designated for bicyclists via an adjacent sign. These signals have the same meaning as regular circular or arrow indicators, but are applicable only to bicyclists in designated bicycle lanes or paths. Alternately, there are bicycle signal indicators that have the shape of a bicycle. These signals have the same meaning as circular signal indicators, but are only applicable to bicyclists in designated bicycle lanes or paths. Bicyclists traveling in general travel lanes are to obey the regular circular and arrow traffic signals described in previous sections.

Highway Signs

Highway signs tell you about traffic rules, hazards, where you are, give directions, and where services are located. The shape and color of these signs give clues to the type of information they provide. You must know highway signs by their shape and color, as well as by the words, numbers, or figures on them.

Regulatory Signs

Regulatory signs tell you of laws and regulations for traffic direction, lane use, turning, speed, parking and other special situations. These signs are square, rectangular, or have a special shape and are usually white, red or black with black, red, white or green letters or symbols.



The stop sign is the only 8-sided sign you will see on the highway. It's red with white letters. When you come to a stop sign, you must make a complete stop at the stop line; or, if none, at the crosswalk; or if none, before entering the intersection.

Before starting you must yield the right-of-way to any vehicle or pedestrian in or approaching the intersection. Be careful to look for less visible vehicles such as bicycles, mopeds, and motorcycles.



You will see no other sign of this shape on the highway. You must yield the right-of-way to any vehicle or pedestrian in or approaching the intersection, stopping if necessary. Having so yielded to any vehicle or pedestrian, you shall not proceed until such movement can be made in safety.

Slow down as you approach a yield sign. Look to left and right. Yield to pedestrians and vehicles performing lawful maneuvers or crossing.



Used to regulate traffic, this particular sign tells you the speed limit for the stretch of highway where it is posted.

These are some of the international signs adopted in Delaware and the other 49 states. They mean "No Left Turn", "No Right Turn", and "No U Turn."





Keep to the right of the traffic island or divider.



With more complex traffic patterns, signs such as this may be used.



Both signs carry the same message. Either may be used.



You must not enter the street so marked. It may be a one-way street in the opposite direction or all vehicular traffic may be prohibited.



Where this sign is posted, you must wait until the signal turns green before proceeding or making turns.



No stopping, standing or parking where posted.



Watch out for and obey this sign. Also look for double solid lines on the highway.



Reserved parking for handicapped only.

Overhead Lane Signals

You must obey the overhead sign in your lane. When the word "ONLY" is used, you must go in the direction the arrow points; there is no option.



Warning Signs

These signs are usually yellow with black lettering or symbols and most are diamond shaped. These signs warn you to slow down and be prepared to stop if necessary. It warns you that a special situation or a hazard is ahead. Some common warning signs are shown below.



Five-sided sign black on yellow is used only to warn of schools and school crossings. As you approach this sign, slow down and watch out for children, stopping as necessary. New fluorescent yellow-green signs may also be used.



Round sign black on yellow is used as an advance warning that you are approaching a highway–rail intersection. When you come to this sign, slow down and watch for the highway–rail intersection. Use particular caution at night to avoid driving into the side of a train.

Other Warning Signs



Sharp turn to right. Reduce speed.



Curve to right.



Sharp turn to the right and then to left.



Winding road ahead. Adjust speed.



Reduced speed ahead.



Side road enters highway from right.



Bump in road ahead. Adjust speed to avoid loss of control.



Merging traffic from right just ahead.



Warning of traffic signals at intersection ahead.



Warning of yield sign ahead. Slow down and be prepared to stop at yield sign or adjust speed to traffic.



Bicycle warning. Watch left and right for cyclists. Used on roads that are shared with bicycles.



Roadway narrows. Slow down.



Approaching divided highway. Keep to right



Divided highway ends ahead.



Without pavement – road surface unknown. Slow down and check vehicle control on changed surface.



Steep hill ahead. Slow down and be ready to shift to lower gear to control speed and save brakes.



Roadway slippery when wet. First half hour of rain most hazardous.



Two-way traffic, one-way traffic ends and reminder of oncoming traffic.



Room for only one lane of traffic. Slow down and prepare to yield to oncoming vehicles.



Room for two lanes of traffic but potentially dangerous. Slow down and watch out for oncoming vehicles.



Added lane, merging not required, watch for other vehicles changing lanes.



Slow down and prepare to stop before turning.



This sign is placed at the intersection. Yield right of way or stop before turning right or left.



This is an advisory speed sign. It is the recommended speed for its stretch of highway. Often posted under other warning signs.



Playground area, numerous children requiring caution.



Watch, children ahead.



Deer crossing, be alert to deer on both sides of the road.



Roundabout sign; reduce speed and yield to pedestrians and vehicles already in the circle.



Another road crosses highway ahead. Be alert for cross traffic and regulatory signs or signals.



Stop sign ahead.



Farm machinery. Used on roads that are shared by farm vehicles. Be alert and prepare to slow down.



Horse-drawn vehicle. Used on the roads that are shared by horse-drawn vehicles. Be alert and prepare to slow down.



“Zipper Merge” – The late merge or zipper method is a convention for merging traffic into a reduced number of lanes. Drivers in merging lanes are expected to use both lanes to advance to the lane reduction point and merge at the location, alternating turns.

Guide Signs



Most guide signs are rectangular (four-sided) in shape with white letters on a green background. The arrow points in the direction you should go to reach the named place. This sign is typical.

United States numbered routes are marked with a sign having black numbers on a white background of the familiar U.S. Shield.





State routes are marked with a sign having black letters on a white circular background.



The interstate system has route markers in the shape of a shield. The top quarter carries the legend interstate in white letters on a red background while the bottom three-quarters is blue with the route number in large white letters.

Information signs



Motorist service signs usually have white letters on a rectangular blue background. (For example: gas, food, lodging.)



Recreation signs usually have white letters on a brown background. (For example: state park.)

Beacons Supplementing Signs

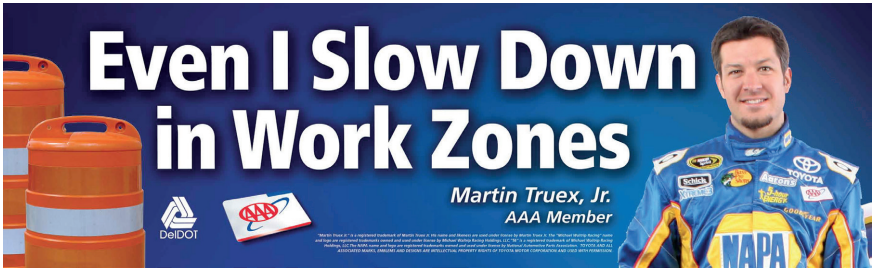


Sometimes signs are supplemented with circular flashing beacons to better grab motorists' attention, to emphasize the critical nature of the message being conveyed by the sign, or to indicate when the associated signs message is applicable (for instance, "Red Signal Ahead When Flashing"). The beacons supplementing warning signs and speed limit signs are yellow. Those supplementing Stop and Do Not Enter signs are red. These beacons, whether yellow or red, and whether on continuously or only intermittently, flash in a regular pattern, approximately once per second.

WORK ZONES

A work zone is an area along a highway where construction, maintenance or utility work is occurring. Because work zones often are unexpected and sometimes hinder the smooth flow of traffic, they can present a challenge to even the most skilled drivers. It is important for the driver's own safety and the safety of pedestrians and workers that drivers use great care when approaching and passing these sites.

Special work zone traffic signs and other devices are set up in advance of where the work actually is taking place and continue beyond the work area. The zone may be either stationary (a bridge being widened) or may be a mobile operation that moves down the road slowly (pavement striping or patching).



Usually, temporary devices such as fixed or portable signs, changeable message signs, arrow panels, pavement markings, and/or channeling devices (cones, drums, barricades, etc.) are installed to guide traffic safely through the zone. Traffic warning signs in work zones usually are orange.

When Approaching Or Driving Through A Work Zone

Stay alert for changing traffic patterns and slowing or stopped traffic. Stopped traffic may be hidden around a curve or over a hill. Pay close attention to traffic signs and other devices, such as cones, that are placed to safely guide you through the work zone. Obey the directions of the police and flaggers:

- When you see signs indicating lane closures ahead, prepare to move from the closed lane.
- Watch for slower speeds limits. Fines for exceeding the speed limit in a work zone are doubled.
- Observe what other drivers are doing and avoid sudden moves.
- Do not weave from lane to lane. Brake gradually to give drivers behind you ample time to slow down. Keep up with the flow of traffic.
- Be alert for unusual pavement surface conditions, such as rough surfaces, metal plates, uneven pavement between lanes, and dropoffs at the pavement edge. They can make it more difficult for you to control your vehicle. Gradual, controlled movements are best under these circumstances.
- Maintain a reasonable speed and spacing between vehicles. You may have nowhere to go if you are travelling too fast or following too closely and the vehicle in front of you suddenly slows or stops.
- Be patient and considerate to workers and other road users.

At times, traffic in work zones must be stopped. This usually happens when traffic from the opposite direction take turns using a single lane, when workers or equipment must enter the lane of traffic, or where some work task might be dangerous to passing vehicles. Then temporary traffic signals might be installed or police stationed to direct traffic. More often, trained and certified flaggers with stop/slow paddles are used to stop, slow and direct traffic through work zones.

Regulatory Signs

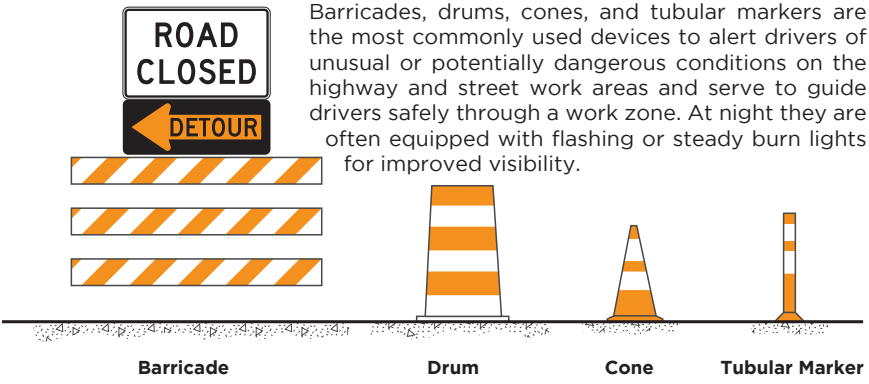
These signs tell drivers of the speed limit and other laws and regulations. Speed limits may be reduced in work areas. The fine for violating the speed limit in a work zone is much higher than usual speeding fines.

Warning Signs

Warning signs are used to alert drivers to unusual or potentially hazardous conditions in or near work zones. Most signs used in highway and street work areas are orange and diamond shaped. A few signs are rectangular.



Guiding Or Channelizing Devices



Barricades, drums, cones, and tubular markers are the most commonly used devices to alert drivers of unusual or potentially dangerous conditions on the highway and street work areas and serve to guide drivers safely through a work zone. At night they are often equipped with flashing or steady burn lights for improved visibility.

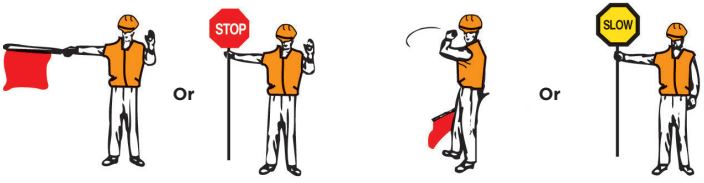
Flashing Arrow Panels

Large flashing or sequencing arrow panels may be used in work zones both day and night to guide drivers into certain traffic lanes and to inform them that part of the road or street ahead of them is closed.



Flaggers

Flaggers are often provided in highway and street work zones to stop, slow, or guide traffic safely through the area. Flaggers wear yellow-green vests, shirts, or jackets and use red flags or stop/slow paddles to direct traffic through work zones.



SOME IMPORTANT DELAWARE LAWS

Cell Phone/Hand-Held Electronic Device Use While Driving

Delaware's law prohibits the use of hand-held cell phones and texting while driving. Those who wish to talk on their cell phone while driving must use a hands-free device. Drivers are permitted to dial a phone number or to activate/deactivate their wireless equipment, and then they must put the device down. Delaware has also banned the use of pagers, PDAs, BlackBerry devices, laptops, games or portable computers, two-way communication devices, and any other hand-held electronic communication devices, while driving.

NOTE: All cell phone or electronic device use, including hands-free, is prohibited by drivers with a Graduated Driver License (GDL).

Exemptions:

- Law enforcement, firefighter, EMS technician, or other operators of authorized emergency vehicles in the performance of their official duties.
- Anyone reporting an emergency.
- A person driving or operating a farm tractor, non-registered farm truck or farm equipment.
- HAM radio operators.
- Business or government employees who use a two-way radio mounted or attached to a motor vehicle to communicate with a central dispatch, base of operation, or with other employees (e.g., utility companies and DelDOT).

Signaling

Delaware law requires drivers to signal by hand or turn-signals when they intend to stop, turn, or change lanes. The Driving Skills and Safety Tips Section further explains the importance of communicating and signaling. You must signal 300 feet prior to your intended action.

Overtaking (Passing) Other Vehicles

- You must always stop before reaching any school bus from either direction when it is stopped to load or unload school children except when you are on the opposite side of a highway having four or more lanes, even then proceed slowly.
- "Delaware law states that vehicles shall overtake other vehicles on the left only when at a safe distance and then only shall return to the right when safely clear." When passing a cyclist, the law requires motorists to leave a minimum of three feet of clearance at all times, and on multi-lane roads to move to the adjacent lane whenever possible.
- Vehicles being overtaken shall give way to the right and not increase their speed until fully overtaken.

Please review the Driving Skills and Safety Tips Section for more information on passing and overtaking.



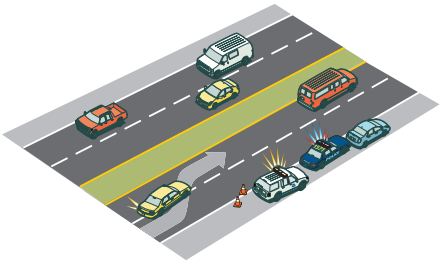
Move Over Laws

Responding To Approaching Emergency Vehicles

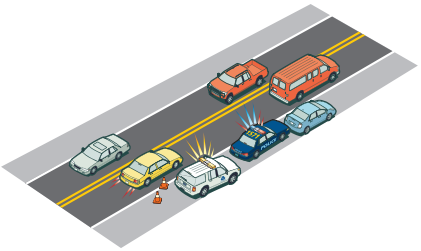
Delaware law requires that upon the immediate approach of an authorized emergency vehicle making use of a siren or displaying alternately flashing red, red and white, red and blue, or red, white and blue lights, every other vehicle shall yield the right-of-way and shall immediately drive to the right-hand edge or curb of the roadway clear of any intersections until the authorized emergency vehicle has passed, except when otherwise directed by a police officer.

This law extends to DelDOT vehicle operators (who are requested to provide support to fire and police at the incident scene).

Approaching Stationary Emergency Vehicles



Multi-Lane Roadway
Move over a lane from the stopped vehicle(s) until you are safely past.



Two-lane Roadway
Slow down below the posted speed Limit until you have completely Passed the stopped vehicle(s).

Upon approaching a stationary authorized emergency vehicle, when the authorized emergency vehicle is giving a signal by displaying alternately flashing red, blue, blue and white, red and white, red and blue, or red, white and blue lights, or upon approaching a stationary authorized DelDOT vehicle, which is giving a signal by displaying alternately flashing amber or red and amber lights, or upon approaching a stationary tow truck which is giving a signal by displaying alternately flashing amber, white, or amber and white lights, or a stationary vehicle displaying warning signals, including vehicle hazard warning lights, road flares, traffic cones, caution signs, or any non-vehicular warning signs, a person who drives an approaching vehicle shall: proceed with caution and yield the right-of-way by making appropriate lane changes when possible; or proceed with caution and reduce to a safe speed if changing lanes would be impossible or unsafe.

Move over laws help reduce risk of serious injuries and death to all public servants who are working in harm's way.

TRAFFIC CONTROL LAWS

Traffic laws are needed to provide orderly movement of vehicles and pedestrians and to prevent crashes. All users of Delaware's highways are subject to Delaware traffic laws. Whether you are driving a motor vehicle, riding a bicycle, propelling or guiding some other vehicle, riding an animal, or walking, you must obey these laws.

General Laws

You must know these general laws:

- You must obey the instructions of a police officer even though they may be contrary to laws, signs, signals, and markings; such instructions are occasionally necessary to keep traffic moving safely.
- You must not try to evade a traffic signal or road sign by leaving the road and traveling across private property.

Emergency Notification System (ENS)

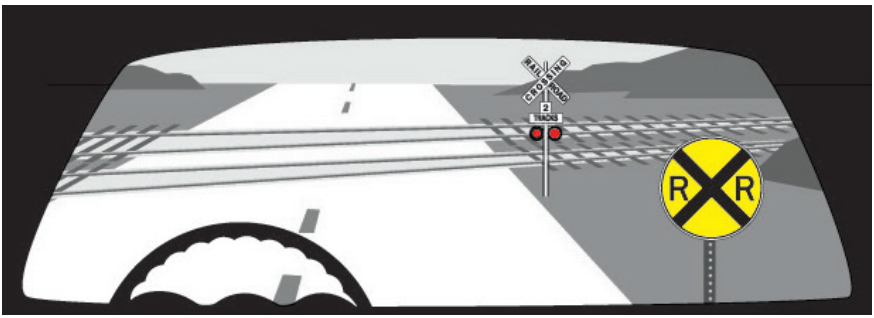
- Every grade crossing has an emergency dispatch number for contacting the railroad to report problems with the crossing, tracks or train travel.
- The ENS number is typically located on a blue sign on the actual cross buck or it can be found in the vicinity of the crossing.
- The sign also contains a DOT number that identifies the grade crossing's physical location so emergency crews or railroad personnel can respond.

This information is crucial for ALL DRIVERS to know. Utilizing the ENS is the best and most efficient way to contact the railroads if there is a problem at the crossing or if something is blocking the tracks. The DOT number tells the dispatcher exactly where the grade crossing is so they can notify all trains moving in that direction to either come to a stop or slow down before reaching the crossing.

Highway–Rail Intersection Signs And Signals

Railroad crossings have signs or signals to warn drivers. Never try to beat a train across the tracks.

Never start to cross if there is not room for your vehicle on the far side, or if you will have to stop on the tracks. Do not block the crossing. Wait until there is room for your vehicle on the far side. It is wise not to shift gears when crossing railroad tracks, just in case you might stall. It would also be wise to review "Stalling On Railroad Tracks" under Emergencies in Section Five. Remember that trains are



large and may be moving faster than they look. Some common railroad crossing warning signs and signals are shown in the illustration below:

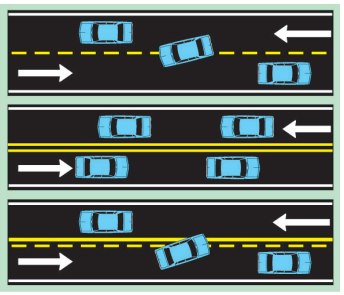


- A round yellow warning sign with an "X" symbol and black "RR" letters is placed along the road before you get to a railroad crossing. This is the Advance Warning Sign.
- Many highway–rail intersections have roadway surface or pavement markings in advance of the crossing. These markings usually include an "X" symbol with the letters "RR" and a stop bar.
- A white, X-shaped sign or "crossbuck" with Railroad Crossing on it is located at the railroad crossing. This sign has the same meaning as a Yield sign. You must yield to crossing trains.
- At some crossings, along with the crossbuck sign, you will see side-by-side lights that will flash when a train is approaching. When the lights are flashing, you must stop. At some crossings there is also a crossing gate that will lower when a train is coming. Do not drive around the gate. Some crossings also have a bell that will sound. Do not cross until the bell has stopped.
- Crossings with more than one train track often will post a sign that shows the number of tracks. These signs warn you that there is more than one track and there may be more than one train crossing. If you come to a railroad crossing without a number-of-tracks sign, it is important that you always check if there is more than one track before crossing.

Pavement Markings

Lines and symbols on the roadway divide lanes, tell you when you may pass other vehicles or change lanes, which lanes to use for turns, define pedestrian walkways, and where you must stop for signs or traffic signals:

- Edge Lines – Solid white lines along the side of the road show you where the outside edge of the travel lane is located.
- White lane marking – Multiple lanes of travel in the same direction are separated by white lane markings. A broken white line between lanes of traffic means that you may cross it to change lanes if it is safe to do so. A solid white line between lanes of traffic means that you are discouraged from changing lanes. Double solid white lines prohibit lane-changing.



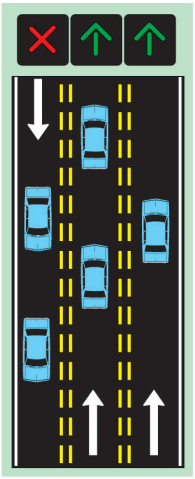
- Crosswalks and stop lines – When required to stop because of a sign or signal, you must stop before your vehicle reaches the stop line or if there is one, a crosswalk. Crosswalks define the area where pedestrians may cross the roadway. You must yield to pedestrians

in a crosswalk. Not all crosswalks are marked. Be alert for pedestrians when crossing intersections.

- Yellow lane markings – Lines separating traffic moving in opposite directions are yellow. A broken yellow line between opposing lanes of traffic means that you may cross it to pass if it is safe to do so. Where there is both a solid and a broken yellow line between opposing lanes of traffic, you may not pass if the solid yellow line is on your side. If the broken line is on your side, you may pass if it is safe to do so. Two solid yellow lines between lanes of traffic means neither side can pass. You may cross a solid yellow line to turn into a driveway, if it is safe to do so.

Reversible Lanes

Although not common in Delaware, you may find some travel lanes are designed to carry traffic in one direction at certain times and in the opposite direction at other times. These lanes are usually marked by double-broken yellow lines. Before you start driving in them, check to see which lanes you can use at that time. There may be signs posted by the side of the road or overhead. Special lights are often used. A green arrow means you can use the lane beneath it; a red "X" means you cannot. A steady yellow "X" means that the use of the lane is changing and you should move out of it as soon as it is safe to do so.



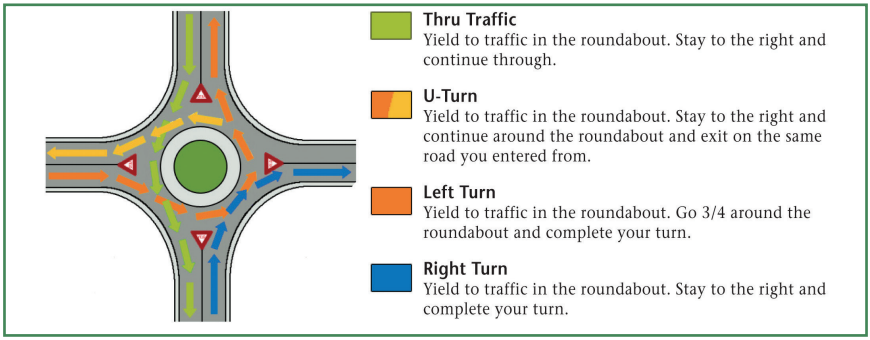
Reserved Lanes

On various roadways, one or more lanes may be reserved for special vehicles. Reserved lanes are marked by signs stating that the lane is reserved for special use:

- "Transit" or "bus" means the lane is for bus use only.
- "Bicycle" means the lane is reserved for bicycles.
- "HOV" stands for "High Occupancy Vehicles" and indicates lanes reserved for vehicles with more than one person in them. Signs say how many people must be in the vehicle, as well as the days and hours to which it applies. For example, "HOV 3" means there must be at least three people in the vehicle.

Roundabouts

A roundabout is a circular intersection that moves traffic counterclockwise around a central island. Often confused with traditional "traffic circles", one way modern roundabouts differ is that they feature traffic calming qualities that encourage



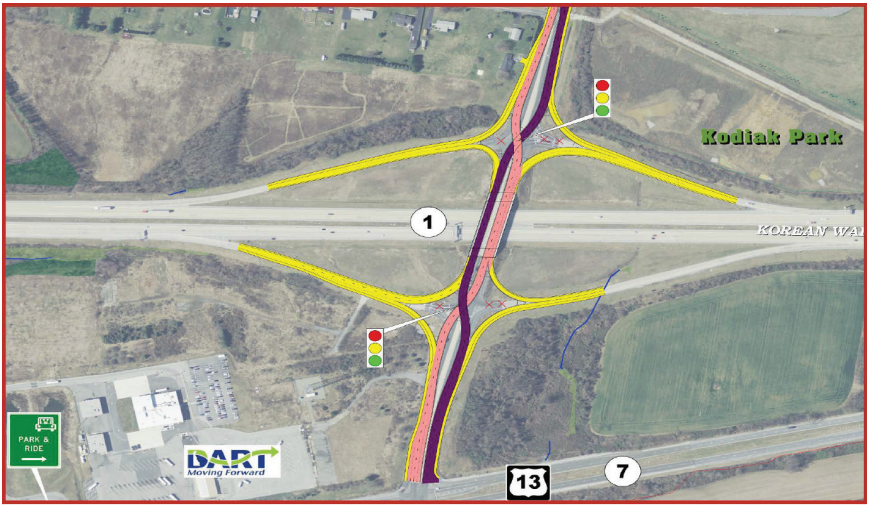
drivers to reduce their speed through the intersection. The design of a roundabout also reduces the need for direct left turns, which are a major reason for intersection crashes, thereby increasing the overall safety aspect of the intersection. For more information visit **www.dmv.de.gov/services/driver_services/roundabouts.shtml**.

How to Use a Roundabout

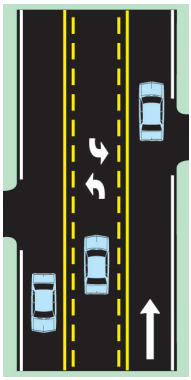
- Approach the roundabout as you would a typical four-way intersection. Be in the right approach lane if you intend to turn right, be in the left approach lane if you intend on making a left or U-turn, and any approach lane is okay if you are proceeding straight.
- Upon approaching the roundabout, stay to the right of the splitter island and slow down to 10-15 mph.
- Watch for bicyclists and allow for them to merge into the entry lane.
- Watch for and yield to pedestrians in the crosswalk.
- Yield to traffic already in the roundabout.
- Once you're in the roundabout, do not stop except to avoid a collision; you have the right-of-way over entering traffic. Always keep to the right of the central island and travel in a counterclockwise direction. Maintain a slow speed and do not pass other vehicles.
- Look for your street and exit the roundabout.
- As you exit the roundabout, watch for and yield to pedestrians and bicyclists.

How to use a Diverging Diamond Intersection (DDI)

The DDI is based on a standard diamond interchange with a shift in the traffic within the interchange to safely and efficiently accommodate high volume left turn movements. Within the interchange, traffic briefly drives on the left side of the road to allow left turn movements to occur without crossing oncoming traffic or stopping. A DDI has fewer conflict points, reducing the opportunities for crashes, and there is greater capacity for vehicles at the interchange.



Shared Center Lane



These center lanes are reserved for making left turns (or U-turns when they are permitted) but can be used by vehicles traveling in both directions. On the pavement, left-turn arrows for traffic in one direction alternate with left-turn arrows for traffic coming from the opposite direction. These lanes are marked on each side by a solid yellow and broken yellow lines. In some areas, the shared center lane becomes a "reversible lane" during rush hours. Be sure you can enter the lane before you do so, and then only if it is safe to do so.

General Rules

When there are no signs or markings to control the use of lanes, there are rules that indicate which lane is to be used. These rules cover general driving, passing, and turning.

General driving – Never back a vehicle in any travel lane except to parallel park, or if necessary to exit a driveway. It is unsafe to do so. Drivers do not expect a vehicle to be backing towards them and may not realize it until it is too late. If you miss your turn or exit, do not back up; go on to where you can safely turn around.

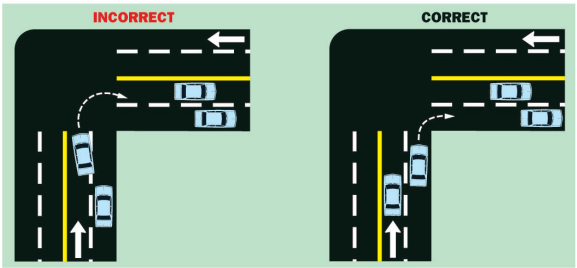
Do not stop in travel lanes for any reason (confusion, breakdown, letting out a passenger, etc.). Keep moving until you can safely pull off the road.

On a road with two or more lanes traveling in the same direction, stay in the right lane except to pass. On a road with three or more lanes traveling in the same direction, if there is a lot of entering or exiting traffic, use the center travel lane.

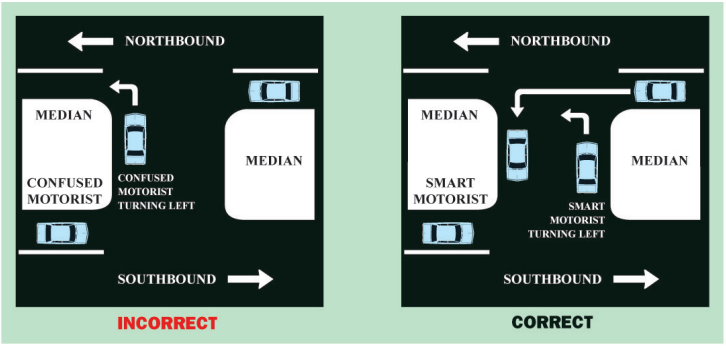
Passing – On multi-lane roads, the left-most lane is intended to be used for passing slower vehicles. If you pass on the right, the other driver may have difficulty seeing you and might suddenly change lanes in front of you. It is legal in Delaware to pass left-turning vehicles on the right, however this is a very crash-prone situation and must be accomplished with great caution. You may use the shoulder to pass left-turning vehicles on the right in Delaware; however, other drivers will not expect you to be there so extreme care is required.

Turning – Where there are no signs or lane markings to control turning, you should turn from the lane that is closest to the direction you want to go and turn into the lane closest to the one you came from. This way, you will cross the fewest lanes of traffic. When making turns, go from one lane to the other as directly as possible without crossing lane lines or interfering with traffic. Once you have completed your turn, you can change to another lane if you need to.

- **Right turns** – On right turns, avoid swinging wide to the left before making the turn. If you swing wide, the driver behind you may think you are changing lanes or going to turn left and may try to pass you on the right. If you swing wide as you complete the turn, drivers who are in the far lane will not expect to see you there.



- **Left turns** – When making a left turn, avoid cutting the corner so sharply that you run into someone approaching from the left. However, be sure to leave room for oncoming vehicles to turn left in front of you.
- **Multiple lanes turning** – If there are signs or lane markings that allow for two or more turning lanes, stay in your lane during the turn.



- **Median Crossings** – Pay attention to signs; if crossing is marked for emergency vehicles only, it is illegal for you to cross there. When crossing is legal and not marked otherwise, the rule "keep to the right" applies in median crossings. Drivers should treat the median the same as a roadway and stay to the right of the opening at all times.

Right-Of-Way

Where vehicles or pedestrians are likely to meet one another and there are no signs or signals to regulate traffic, there are rules on who must yield the right-of-way. These rules tell who goes first and who must wait in different traffic situations. You must do everything you can to prevent striking a pedestrian or another vehicle, regardless of the circumstances.

The following right-of-way rules apply at intersections:

- Drivers must yield where necessary to avoid striking pedestrians who are crossing the road.
- Drivers crossing a sidewalk entering or exiting a driveway, alley, or parking lot must yield to pedestrians. It is illegal to drive on a sidewalk except to cross it.
- Pedestrians using a guide dog or carrying a white cane have absolute right-of-way. Do not use your horn as it could confuse or frighten the blind pedestrian.
- Drivers turning left must yield to oncoming vehicles going straight ahead.
- Drivers entering a traffic circle or rotary must yield to drivers already in the circle.
- At an intersection where there is no stop sign, yield sign, or traffic signal, drivers should yield to vehicles coming from the right. However, it would be safest to consider yielding to all vehicles before entering.
- At a 4-way stop, the driver reaching the intersection first, goes first (after coming to a complete stop). If more than one vehicle arrives at the same time, the vehicle on the right goes first.
- Drivers entering a road from a driveway, alley, or roadside must yield to vehicles already on the main road. This includes entering from turn only lanes, where vehicles must yield, to include stopping if necessary.

- Drivers may not enter an intersection unless they can get through it without having to stop. You should wait until traffic ahead clears so that you are not blocking the intersection.
- Drivers overtaking a vehicle traveling in the same traffic direction must yield to that vehicle (even if the vehicle slows down or comes to a stop).
- You must yield the right-of-way to a police vehicle, fire engine, ambulance, or other emergency vehicle using a siren, air horn, or a red or blue flashing light. Pull over to the right edge of the road or as near to the right as possible when you see or hear an emergency vehicle approaching from any direction. Follow any instructions given over the emergency vehicle's loudspeaker. If you are in an intersection, drive through the intersection before you pull over.

Stopping For School Buses

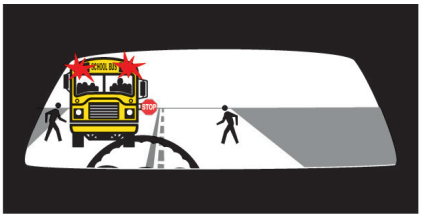
You must always stop before reaching any school bus from either direction when it is stopped to load or unload school children except when you are on the opposite side of a highway having four or more lanes, even then proceed slowly.

Yellow Lights

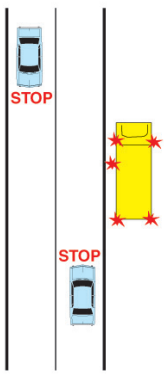
School buses have two overhead alternately flashing yellow lights both front and rear. They will be activated approximately 10 seconds prior to the overhead flashing red lights to warn drivers of approaching vehicles that a stop to load or unload school children is about to be made. Approach a bus flashing these yellow lights with caution and anticipate a stop. Children may be waiting for the bus or may be running to board it.

Red Lights

The overhead alternately flashing red lights and stop arm will be activated when the bus is stopped to pick up and discharge pupils. You must not proceed until the red lights have stopped flashing, and the stop arm has been retracted, then proceed cautiously.

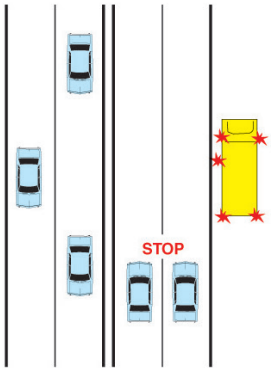






Less Than 4 Roadway Lanes

BOTH Directions Must STOP



4 or More Roadway Lanes

Only Traffic Following Must STOP

Identification of Violators

If any vehicle is witnessed by a police officer, school bus operator, or school crossing guard to be in violation of the school bus stop law and the operator is not otherwise apparent, it shall be assumed that the person in whose name the vehicle is registered committed such violation.

Penalties and Suspension of License for Passing a Stopped School Bus with Red Lights Flashing

Whoever is convicted of passing a stopped school bus with overhead and stop arm red lights flashing shall, for the first offense, be fined not less than $115.00 nor more than $230.00, or imprisoned not less than 30 days nor more than 60 days, or both. For each subsequent like offense occurring within three years, such person shall be fined not less than $115.00 nor more than $575.00, and imprisoned not less than 60 days nor more than six months.

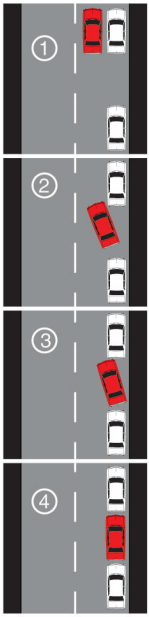
Upon conviction for passing a stopped school bus with overhead and stop arm red lights flashing, the Division of Motor Vehicles shall suspend the driver license and/or driving privilege for a period of one month for a first offense, six months for a second offense, or one year for a third or further subsequent violation occurring within three years of a prior violation. A conditional license may be issued following a suspension for a second offense after serving a minimum period of suspension without driving authority of three months. A conditional license may be issued following a suspension for a third or further subsequent offense after serving a minimum period of suspension without driving authority of six months. No driving authority is permitted during the one month suspension for a first offense.

House Bill Number 202 authorizes the Red Clay Consolidated School District to install stop arm cameras on their school buses as part of the School Bus Safety Pilot Program. The owner or operator of a vehicle who has failed to comply with § 4166(d)(1) of Title 21, as evidenced by information obtained from a school bus safety camera system, shall be subject to a civil or administrative assessment of $100 for a first offense, which shall increase to $500 for each subsequent offense within 10 years of the prior offense or offenses; provided, however, that the School District may provide for an additional assessment not to exceed $10 if the civil or administrative assessment is not paid within 20 days, which assessment may be increased to an amount not to exceed $20 if the assessment is not paid within 45 days, and may be increased to an amount not to exceed $30 if the assessment is not paid within 90 days. Court costs or similar administrative fees not to exceed $35 may also be assessed against an owner or operator who requests a hearing to contest the violation and is ultimately found or pleads responsible for the violation or who fails to pay or contest the violation in a timely manner. No assessments and court costs other than those specified in this subsection may be imposed. A violation for which a civil assessment is imposed under this subsection shall not be classified as a criminal offense and shall not be made a part of the operating record of the person upon whom such liability is imposed, nor shall it be used for insurance purposes in the provision of motor vehicle insurance.

PARKING

General Parking Rules

Parking and leaving your vehicle – When parking and leaving your vehicle on a highway or street, you must stop the engine, lock the ignition, remove the key, and set the brakes. It is also advisable to raise the windows and lock the doors.



Parallel Parking – When parking on a two-way highway you must park parallel to and within 12 inches of the curb or edge of the highway.

The steps for parallel parking are:

Check for traffic in your rearview mirror. If a car behind you is following too closely, do not stop suddenly. Continue driving and find another space. Stopping suddenly with a car behind you may result in a rear-end collision. Put on your turn signal to warn other drivers that you intend to park.

1. Signal and stop with the back end of your vehicle even with the back of the vehicle in front of the place you want to park.
2. Back slowly, turning your steering wheel to the right to aim the back of your car towards the front of the one behind you.
3. As the front of your car clears the back of the car in front of you, turn your wheels sharply to the left and continue backing slowly until the back of your car almost touches the car behind you.
4. Straighten your wheels and pull forward to center the car in the parking space. Your car should be no more than 12 inches from the curb. Put the transmission in park and set the brake. Turn off the engine. (It is against the law to leave keys in a running, unattended vehicle.)

To park by the left-hand curb on a one-way street, follow the same directions but reverse right and left in the instructions.

If your car has a manual transmission, leave it in low gear when parked and headed uphill. Leave it in reverse when parked and headed downhill. This will help prevent a crash if your emergency or parking brake should fail.

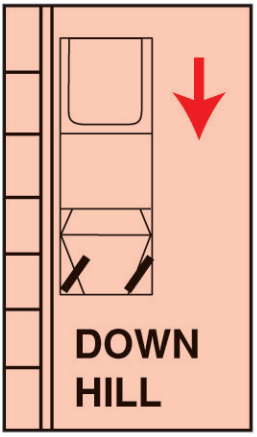
To leave a parallel parking space, signal your move. Watch for traffic and turn your steering wheel towards the open lane, easing your way out into traffic.

Handicapped Parking – It is illegal to park in any parking space designated for "Handicapped Parking" unless your vehicle has a handicapped license plate displayed on the rear of the vehicle or a handicapped parking ID card displayed hanging from the rearview mirror.

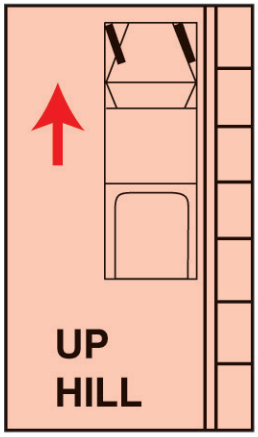
Parking Lights – When you park a vehicle on the shoulder or side of any highway from sunset to sunrise or when light is insufficient to see persons or objects 1000 feet away, you must turn on your parking lights (or 4-way flashers when vehicle is so equipped). Turn signal lights shall not be flashed on one side only of a parked vehicle.

Parking on Highways – You must never park on the paved or traveled part of any highway outside of a business or residence unless vehicle is disabled and cannot be moved. Pull off to the right as far as possible.

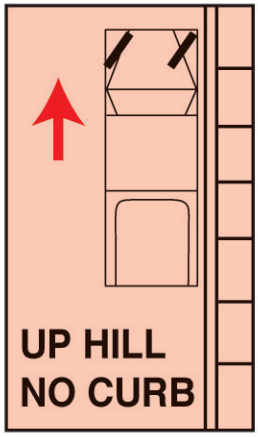
Parking on Hill – When headed downhill you must turn your front wheels toward curb or edge of road. When headed uphill, and there is a curb, you must turn your front wheels away from curb and bring near-side front wheel into contact with curb. When headed uphill and there is no curb, you must turn your front wheels toward edge of highway. It is also wise to leave your vehicle in gear.



Turn wheels to curb



Turn wheels from curb



Turn wheels to right

Opening Door of Parked Vehicle – You must never open the door of a vehicle so as to impede the flow of traffic or endanger any person or vehicle. Instead, use the door on the curb side. Turn and check for any oncoming vehicle if you must use the door on the street side. Be especially aware of oncoming bicyclists; they may be severely injured by a collision with a car door.

Stopping And Parking Violations

Unless otherwise posted, ordered to do so by a police officer, or to avoid a crash, you must not stop or park your vehicle in any of the following places even if someone is left in the car:

- At any place where official signs prohibit such action.
- Whenever a curb is painted yellow or a yellow line is placed at the edge of a roadway.
- In an intersection, on a crosswalk, or within 20 feet of a crosswalk at an intersection.
- On a sidewalk.
- In front of a public or private road, driveway, or alley.
- Within 15 feet of a fire hydrant.
- Within 20 feet of driveway entrance to any fire station or on the opposite side of the street within 75 feet of an entrance when signs are posted.

- Within 30 feet of any flashing beacon, stop sign, or traffic signal.
- Between a safety zone or island and the adjacent curb, or within 30 feet of end of safety zone or island unless otherwise posted.
- Within 50 feet of a railroad crossing unless otherwise posted.
- Alongside or opposite any road excavation or obstruction when traffic will be impeded.
- On the roadway side of any vehicle stopped or parked at the curb.
- On any bridge or elevated structure on a highway or in a tunnel.
- At any other place where stopping, standing, or parking will obstruct the free flow of traffic.
- In the area between roadways of a divided highway, including crossovers.
- In any designated fire lane.

SPEED

Delaware traffic laws provide both a general speed restriction and specific speed limits. You must obey both.

General Speed Restriction

You must not drive on a Delaware highway at a speed greater than is reasonable under existing conditions. This means that it is not always lawful to drive as fast as the posted speed limit. Remember that you must always control the speed of your vehicle to avoid hitting any person, vehicle, or other conveyance no matter what the weather conditions, traffic density or your urgency may be.

Place	Speed Limit
School zones*	20 miles per hour
Business districts	25 miles per hour
Residential districts	25 miles per hour
Two-lane roads	50 miles per hour
Divided roads & roads having four or more lanes	55 miles per hour
Controlled access highways (turnpikes & expressways)	55 miles per hour
Route 1 and interstate 495	65 miles per hour

**Note:* When children are present is defined in Title 21 of Delaware Code.

Speed Limits

You must not drive any vehicle faster than the speeds listed in this table (refer to Section Two, License Revocations & Suspensions for penalties under the Delaware Point System):

Under emergency conditions, the speed limits below may be changed.
The driver must never exceed the posted limit.

Whenever any of the above speed limits are unsafe for conditions, they may be reduced to lower speed limits. Signs may be placed along the highway showing the speed limit in such conditions.

Minimum Speed

You must not drive a motor vehicle at such a slow speed as to impede normal and reasonable movement of traffic, except when necessary for safety or compliance with the law.

You must obey posted minimum speed limits, except when weather or other conditions make it unsafe to do so.

Speed Signs

There are two speed signs: speed limit signs and advisory (recommended) speed signs. Speed limit signs have black letters and numerals on a white rectangular background and are the legal allowable limits. Advisory speed signs have black letters on a yellow background and often are shown under a warning sign. Advisory speed signs are posted along portions of highways to warn you that conditions may often make it unsafe to drive faster. Although an advisory speed is not a specific speed limit, if you exceed it and have a crash, it may be concluded that you violated the general speed restriction and you could be subject to arrest.

OTHER HIGHWAY USERS

You, as the driver of a motor vehicle, must share the highway with pedestrians, bicyclists, motorcyclists, animal riders and drivers, and those driving farm vehicles, road machinery, and construction equipment. All highway users must obey traffic laws. This includes drivers, pedestrians, and bicyclists.

Pedestrians

From 2021-2023, there were 89 pedestrian fatalities. Fatalities are often the result of pedestrians who are not wearing reflective clothing or carrying a light while walking at night, not crossing the road within a designated crosswalk and/or are under the influence of alcohol.

Please Note: It is imperative to be aware of your surroundings as a driver and stop if a pedestrian is actively crossing in a marked or unmarked crosswalk. You may proceed with caution if a pedestrian is standing/stopped safely on the sidewalk as required by law.

Your Responsibility As A Driver

- Be alert for pedestrians walking along or crossing the road; lightly tap horn if necessary. Sounding the horn is not considered a substitute for yielding to pedestrians.
- Drivers should be alert for individuals and must yield the right-of-way to pedestrians who are hearing impaired or have physical disabilities that require use of canes, crutches, walkers, guide dogs/service animals, wheelchairs, or motorized scooters. These individuals may have difficulty detecting oncoming traffic and may need extra time to cross the road.
- You must not drive through a pedestrian safety zone or block a crosswalk.

- You must yield the right-of-way to any pedestrian within a crosswalk, stopping if necessary.
- You must not pass a vehicle stopped to allow a pedestrian to cross the highway.
- You should be especially watchful for children near schools and in residential districts. Do not speed in school zones.
- You must always stop before reaching a school bus when it is stopped to load or unload school children, except when you are on the opposite side of a divided highway having four or more lanes.
- You should look carefully for traffic before leaving your vehicle. Don't become a pedestrian casualty.
- Drive defensively at all times.

Your Responsibility As A Pedestrian

- When a sidewalk is provided, you must walk on the sideway.
- When there is no sidewalk, walk on the shoulder facing oncoming traffic as far away from the road as possible.
- It is illegal to walk along any roadway at night without carrying a light or reflector. You should wear light-colored clothing if possible.
- You must not walk on a highway when under the influence of intoxicating liquor or narcotic drugs.
- You must not stand on the highway to ask for a ride or to conduct any kind of business.
- You should cross the roadway and its shoulders only at marked crosswalks. Where crosswalks are not present, you must cross at intersections. Where intersections are not present and you need to cross the road, do so quickly and only after you have looked in both directions for oncoming traffic.
- You must obey pedestrian "Walk" and "Don't Walk" signals when they are used. A blinking "Don't Walk" signal means do not enter the intersection.
- Be alert for turning cars before crossing a highway at an intersection.
- You must not cross an intersection diagonally except when authorized by traffic-control signals.

Who Must Yield To Pedestrians

Pedestrians have the right-of-way:

- When crossing a highway at an intersection and the green light or walk signal is in their favor.
- When crossing within a marked or unmarked crosswalk.
- When on a sidewalk as it crosses an alley, entrance, or driveway.
- When they are blind and crossing with white canes or guide dogs.

Pedestrians must yield the right-of-way:

- When crossing a highway other than within a marked crosswalk or an unmarked crosswalk at an intersection.
- When crossing the roadway where a pedestrian tunnel or overhead crossing is provided.

Bicycles



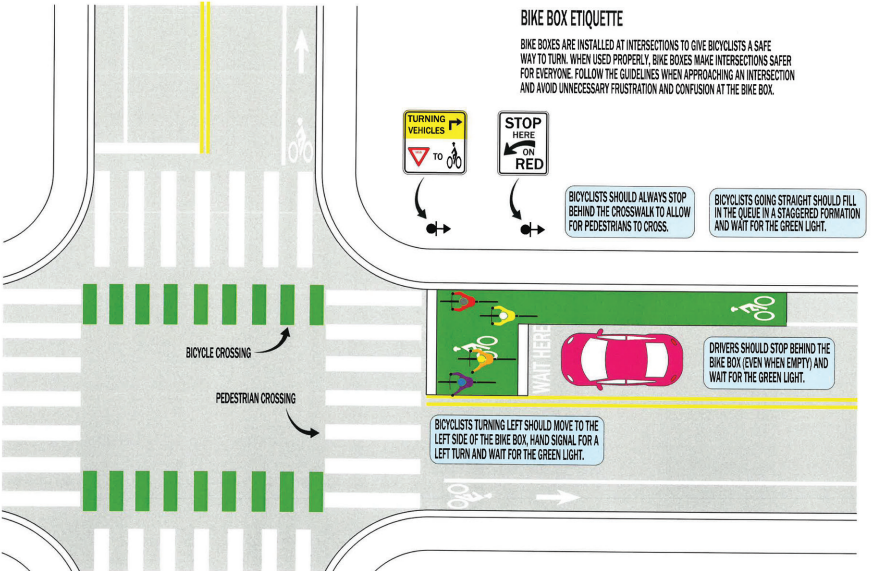
As cyclists sometimes like to remind drivers, there were bicycles on Delaware's public roads before motor vehicles were ever invented and even though the amount of motor vehicle traffic on the roads has since exploded cyclists retain their legal right to use public roadways despite the growth of vehicle traffic. In fact, cyclists have the right to use all Delaware roads except limited access highways.

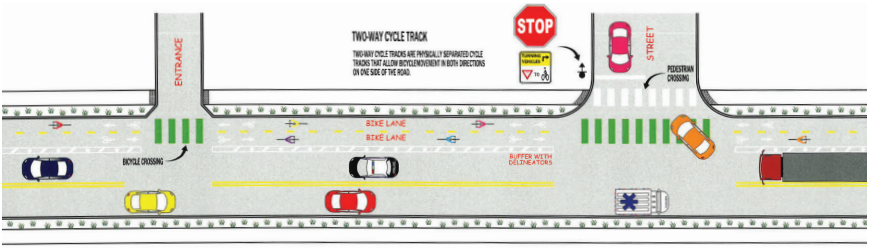
Bicycle Friendly Delaware Act

1. This law requires drivers to change lanes (including when there is a double yellow line) when passing bicycles if the travel lanes are too narrow for sharing. Motorists must give bicyclists at least three (3) feet of room when passing.
2. Motorists are forbidden from honking their horn at bicyclists unless there is an imminent danger.
3. Bicyclists should ride to the right of the roadway as their safety allows.
4. Bicyclists are now allowed to yield at stop signs, after carefully looking for other vehicles and no longer required to stop.

Bike Box

A bike box is a designated area at the head of a traffic lane at intersections that provides bicyclists with a safe way to turn and a visible way to get ahead of traffic. The benefits to a bike box is that it increases the visibility of bicyclists, helps prevent 'right-hook' conflicts with turning vehicles, provides priority of bicyclists at signalized crossing at major intersections and bicyclists can avoid breathing exhaust fumes. Pedestrians also benefit from a bike box as it reduces vehicle encroachment into the crosswalk.





Two-Way Cycle Tracks

A two-way cycle tracks are physically separated cycle tracks that allow bicycle movement in both directions on one side of the road. A two-way cycle track may be configured as a protected cycle track at street level with a parking lane or other barrier between the cycle track and the motor vehicle travel lane. The benefits to a cycle track are they dedicate and protects space for bicyclists by improving comfort and safety while eliminating risk and fear of collisions with vehicles. Cycle tracks are more attractive to a wide range of bicyclists at all levels and ages.

Your Responsibility As A Driver

When you are driving at slower speeds on local streets, you can safely and legally interact with bicycles much as you would with other vehicles. When you are driving at higher speeds, however, the air pressure created by your vehicle passing too closely (particularly if you are driving a truck or a bus) can cause a cyclist to crash.

In order to pass a bicycle safely, the law in Delaware requires that you completely change lanes, including crossing a double-yellow center line, if the travel lane you are traveling in is too narrow for the vehicle you are driving and the bicycle you want to pass to travel safely side by side within the lane. In the unusual case of very wide travel lanes (wide enough for both your vehicle and a bicycle), the law permits you to pass a bicycle without changing lanes but requires that you (a) slow down when doing so and (b) leave a minimum of three feet of clearance at all times between your vehicle and the bicycle.

If the road you are driving on has only two lanes and you are unable to pass safely because of lack of visibility and/or oncoming traffic, follow at a safe distance and wait until it is safe before passing. Allow plenty of clearance after overtaking a cyclist, before you pull to the right. The cyclist's speed may be greater than you realize. It is illegal to blow your horn at a cyclist except in the very narrow circumstance when you are warning the cyclist of an imminent collision.

Many car/cycle crashes occur because the motorist does not see the cyclist. Be especially careful to look for cyclists when you are preparing to enter a roadway or to make a turn. Intersections are particularly dangerous for both cars and cycles. Make sure that there is sufficient time before turning left or right. Don't pass a cyclist only to turn directly in front of them. When in doubt, wait. At night, be aware that bicycles can be harder to see.

Your Responsibility As The Parent of A Youthful Cyclist

Under the law, the parent (or guardian) can be held responsible if a child, while bicycling, violates any traffic law. As a parent, you have the responsibility to be sure that the child is ready and able to use a bicycle safely, and that they know and obey the traffic laws. You are also responsible if your child (under the age of 18) is not wearing a helmet.

Your Responsibility As An Adult Cyclist

There are four critical rules that the adult cyclist should follow in order to interact safely with motor vehicles:

1. Control Your Bicycle: Before you venture into traffic, make sure that you have mastered the control of your bicycle; riding in a straight line, turning, and stopping smoothly.
2. Be Aware of Motor Vehicle Traffic (especially at intersections): Most serious and fatal bicycle crashes occur at intersections. Be prepared to yield to motor vehicle traffic at intersections (even when you think you have the right-of-way).
3. Be Seen: Increasing your visibility will help to protect you on the road. At night, always have the required white headlight and red rear-reflector on your bicycle. A red taillight and additional reflectors are also helpful.
4. Be Predictable: Riding your bicycle in a predictable manner is essential to your safety on the road. This means riding with motor vehicle traffic, not against it; signaling your intentions clearly and in plenty of time; and choosing a path of travel which won't cause you to swerve into traffic to avoid hazards. Use hand signals to communicate your intentions to other vehicles. (See Section Five – Communicating)

The following additional Rules of the Road apply to cyclists in Delaware:

- If you are cycling in an atypical and unusually wide travel lane (wide enough for a bicycle and a vehicle to travel safely side-by-side), you should cycle in the right side of the lane so that motor vehicles can pass on your left without having to change lanes (as long as you feel it is safe for you to do so).
- You must not ride at night unless you have a white headlight visible for 500 feet, a red rear reflector visible for 600 feet, and either reflective material visible from both sides for 600 feet or a lighted lamp visible from both sides for 500 feet. A taillight is recommended.
- When riding a bicycle, you must be on or astride a permanent seat.
- You may not carry a passenger unless your bicycle is designed for carrying a passenger.
- You must not cling to any vehicle upon the highway.
- You must not ride on a highway facing traffic.
- When riding a bicycle, you must keep at least one hand on the handle bars at all times.
- You must yield to pedestrians on a sidewalk and in a crosswalk and give an audible signal before overtaking.
- You must not wear a headset covering both ears.

- All persons under the age of 18 must wear a properly fitted and fastened bicycle helmet.

Stop Signs

You must stop at all stop signs located at intersections with major (3 travel lanes or more) roads; or if a motor vehicle is stopped at the stop sign you are approaching; or if required for safety because of heavy traffic. At stop signs controlling the intersection with minor roads and if there is no stopped vehicle at the sign you are approaching, however, you may treat the stop sign as a yield sign: After slowing- and yielding the right-of-way to any vehicle at or approaching the intersection – you may cautiously make a turn or proceed through the intersection without stopping.

Shared Lane Marking



The shared lane marking may be used on some roadways to assist bicyclists in lateral positioning, to encourage safe passing of cyclists by motorists, to reduce the incidence of wrong way bicycling, and as a reminder that the lane may be legally used by both cyclists and motor vehicles.

Sharing The Road With Motorcycles

The increasing popularity of motorcycle riding is evident by the variety of riders and two-wheeled motor vehicles appearing on our streets and highways. Motorcycle crash statistics show that a substantial percentage of the crashes involve riders with limited experience.

Nationally, almost half of all motorcycle crashes involve other motor vehicles. In collisions with motorcycles, drivers often say they never saw the motorcycle. In Delaware, there were 15 motorcycle fatalities during 2023 and 22 fatalities in 2022. There were 955 injury crashes involving motorcycles during the five-year period between 2015-2020. Always remain alert and check your blind spot frequently to make sure that a motorcycle is not present. You need to be especially alert for motorcycles when turning at intersections and when pulling out from a side road or driveway.

Motorcyclists have the same rights and responsibilities on public roadways as other highway users. While legally everyone must abide by the same traffic laws, there are special situations and conditions you need to be aware of so you can share the road safely with those who choose to use two wheels instead of four.

Why is it so important that you be aware of motorcycles and their operation? Primarily because motorcycles are not easily identified in traffic. Motorcycles are only about two feet wide compared with the five- to six-foot width of an automobile. Even when seen, it's difficult for some drivers to judge how far away motorcyclists are.

Finally, even when seen and the distance is correctly judged, some drivers can't tell how fast motorcycles are going. Being alert to this special perceptual problem and how motorcyclists react to specific situations can help you to avoid colliding with motorcyclists in traffic. Below are a few of the specific situations that call for special attention by motorcyclists and you.

Left turns in front of an oncoming motorcyclist account for a large percentage of car/cycle injury-producing crashes. The problem of not seeing the motorcyclist is twofold: car drivers may fail to pick the cyclist out of the traffic scene, or drivers may fail to judge the speed of the oncoming motorcycle. The correct behavior is to look and look again. Make sure you see the motorcycle and know its speed before you make a left turn.

Turn signals are not automatically self-canceling on most motorcycles. At times, the rider may forget to turn the signal off. Before you make a turn in front of a motorcyclist, be sure the rider is turning and not continuing straight ahead into your path with a forgotten turn signal still blinking.

Following distance behind the motorcyclist should be at a two second count when traveling at speeds under 40 mph and a four second count for speeds above 40 mph. Following too closely may make the rider nervous causing the rider's attention to be distracted from the road and traffic ahead. Motorcycles can stop quicker, so you need to follow at a safe distance. If the roadway is slippery or wet, increase your following distance.

Lane usage for the motorcyclist is critical. Motorcycles are entitled to the same full lane width as all other vehicles. A skilled motorcycle operator is constantly changing positions within that lane to maximize his ability to see and be seen, and to compensate for objects in or near the road. Never move into the same lane alongside a motorcycle even if the lane is wide and the cyclist is riding far to one side. It is not only illegal, it is extremely hazardous.

Inclement weather and slippery surfaces can be real problems for motorcycles. Allow even more following distance for motorcyclists when it's raining or the road surface is wet and slippery. Skilled motorcycle riders will slow down under these conditions. Remember, motorcycles only have two wheels compared to your four. Also, be alert to the problem of glare that rain and wet surfaces create, especially at night. It is easy to lose sight of a motorcycle and its rider under the best of circumstances. Rain, wind, dust, and smog affect the cyclist's vision more easily than yours in an enclosed vehicle. The cyclist's face shield, windshield, or goggles help, but cannot completely overcome all the vision limitations under these conditions.

Cross winds can be hazardous to motorcyclists. Windy conditions can actually move a motorcycle out of its lane of travel. Areas to look out for are wide open, long stretches of highways and bridges. Fast-moving large trucks have been known to create wind blasts which can startle a motorcyclist, and under certain conditions actually move the motorcyclist out of his path of travel. Be alert to these conditions so you can prepare yourself for the possible quick change in speed or direction of the motorcycle.

Road surfaces and things in the road that do not normally affect other vehicles can create problems for the cyclist. Gravel, debris, pavement seams, small animals, and even manhole covers may cause the motorcyclist to change speed or direction.

Railroad grade crossings may be rough or cross the road at an angle. The rider may slow down or change direction so the tracks can be crossed head on. The cyclist may rise up off the seat to help cushion the shock of a rough crossing.

Metal or grated bridges create a wobbling sensation in the front tire of the motorcycle greater than the feeling you experience in your car. This wobbling sensation may cause the inexperienced motorcyclist to quickly change direction or slow down.

Motorcycle Operation And License Endorsements

If you are less than 18 years old, you must take and pass the Delaware Motorcycle Rider Education Program.

Details on how to add a motorcycle endorsement to a driver license, required equipment, and safe operation are given in separate manuals available at each of the offices of the Division of Motor Vehicles (see outside back cover for addresses). Also see the endorsement information in Section Two of this manual.

You must always have in your possession approved eye protection and an approved helmet for yourself and your passenger when operating a motorcycle. You must wear this equipment if you are operating with a learner's permit (including taking the road test), and if you are under 19 years of age.

Any person who obtains a new endorsement for a motorcycle, or someone riding with the newly endorsed person, is required by law to wear a helmet and eye protection for the first 2 years after the newly endorsed person receives the endorsement. A person operating or riding as a passenger on a motorcycle on the roadways of this State who fails to comply with this law is subject to civil penalties or assessments.

Mopeds And Tripeds

Following is some of the information you will need to know to make your operation of a moped and triped legal, safe, and enjoyable:

- Mopeds and tripeds shall not be operated upon interstate and limited access highways, nor shall they be operated on the right-of-way of an operating railroad, nor shall they be operated on any path set aside for the use of bicycles unless the helper motor has been turned off.
- You cannot legally operate a moped and triped upon any public road unless you have a valid driver license.
- Mopeds and tripeds must be registered under the regulations adopted by the Division of Motor Vehicles. Registration and re-registration shall be for three years and cost $5.00.
- Mopeds and tripeds must have a light on front and rear and have a bell or device capable of giving a signal audible for a distance of at least 100 feet.
- It is important that you watch for traffic as far ahead as possible, be prepared for sudden stops, for traffic approaching left or right at intersections, and for vehicles pulling out from the curb.
- It is recommended that every person operating or riding a moped or a triped wear a safety helmet and bright, reflective clothing.

Off Highway Vehicles

Registration of off highway vehicles (OHV) is required statewide. Registration application can be processed at any Motor Vehicle office (see back cover for addresses). The applicant must have a description of the OHV (make, year, serial number), and be at least 18 years of age. The fee for registration is $6.00 for three years.

OHVs may not be operated upon public streets or highways, and you must have the permission of the property owner before you may operate on private property. The operator and all passengers must wear a safety helmet with chin straps.

All OHVs must have brakes or a similar device capable of controlling the vehicle. All OHVs must have a muffler that reduces the noise level by 60%.

Animal Riders And Animal Drivers



As the rider of any animal or the driver of any animal-drawn vehicle on the highway, you have all the rights and all the duties of the driver of a motor vehicle except where, by their very nature, the laws can have no application.

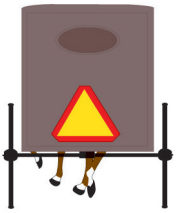
Farm Tractors And Equipment, Road Machinery, And Construction Equipment

For the purposes of this section, you, as the driver of any such tractor or other self-propelled equipment, whether or not hauling another vehicle or piece of machinery or equipment, have all the rights and all the duties of any other motor vehicle on the highway. The special laws and regulations further governing their registration, size, weight, and operation on the highways are given in a supplement available at each of the offices of the Division (see outside of back cover for addresses).

Who Must Not Use The Highway

You must not drive a minibike, a go-cart, golf cart, dirtbike, motorized scooter, snowmobile, or other all-terrain vehicles which are not permitted to be registered by the Division upon the highway. (See definition of minibike to differentiate from motorcycle.)

Slow-Moving Vehicles



A "Slow-Moving Vehicle" emblem—a triangular, fluorescent and reflective orange sign—is sometimes attached to farm tractors and other slow-moving vehicles to warn approaching drivers. When you see this sign, slow down immediately and proceed with caution.

Sharing The Road With A Truck

Whether you're sharing the road with a car, truck, bus, or other large vehicle, it's important for safety's sake to obey traffic laws, abide by the rules of the road, and drive defensively. Are there any special rules for sharing the road with a truck? Yes! Here are some suggestions from professional truck drivers.

Passing

When passing a truck, first check to your front and rear and then move into the passing lane only if it is clear and you are in a legal passing zone. If needed, let the truck driver know you are passing by blinking your headlights, especially at night.



No-Zone Locations

On a level highway, it takes only three to five seconds longer to pass a truck than a car. On an upgrade, a truck often loses speed, so it is easier to pass than a car. On a downgrade, the truck's momentum will cause it to go faster, so you may need to increase your speed.

Complete your pass as quickly as possible, and don't stay alongside the other vehicle.

If the driver blinks his lights after you pass, it's a signal that it is clear to pull back in. Be sure to move back only when you can see the front of the truck in your rear-view mirror. After you pass a truck, maintain your speed.

When a truck passes you, you can help the truck driver by keeping to the far side of your lane. You'll make it easier for the truck driver if you reduce speed slightly. In any event, don't speed up while the truck is passing. After passing, the truck driver will signal to let you know that the truck will be returning to your lane.

When you meet a truck coming from the opposite direction, keep as far as possible to the side to avoid a sideswipe crash and to reduce the wind turbulence between the two vehicles. Remember that the turbulence pushes the vehicles apart. It does not suck them together.

Near A Truck – No-Zone

In general, trucks take slightly longer than cars to stop because of their size.

If you're near a truck, try to stay out of its "blind spots" also called the "No-Zone" as depicted here:

THE KEY TO SAFER HIGHWAYS: KNOW THE NO-ZONE

The No-Zone represents danger areas around trucks where crashes are more likely to occur.

- **Passing** - When cars cut in too soon after passing, then abruptly slow down, truck drivers are forced to compensate with little time or room to spare. Because it takes longer to pass a large vehicle, you should maintain a consistent speed when passing, and be sure you can see the cab of the truck in your rear-view mirror before pulling in front.
- **Backing Up** - When a truck is backing up, it sometimes must temporarily block the street to maneuver its trailer accurately. Never pass close behind a truck that is in the process of backing up. Remember, most trailers are 8.5 feet wide and can completely hide objects that suddenly come between them and a loading area. So if you try to pass behind the truck, you enter a (No-Zone) blindspot for you and the truck driver.
- **Rear Blindspots** - Unlike cars, trucks have deep blindspots directly behind them. Avoid tailgating in this No-Zone. The truck driver can't see your car in this position, and your own view of traffic flow is severely reduced. Following too closely greatly increases your chance of a rear-end collision with a truck. Allow at least four seconds between your vehicle and the truck, and remember that you too cannot see, and plan ahead if you follow too closely.

- **Side Blindspots** - Trucks have much larger blindspots on both sides of their vehicles than passenger vehicles. When you drive in these blindspots (No-Zone) for any length of time, the truck driver can't see you. If a commercial driver needs to change lanes quickly for any reason, a serious crash could occur with the vehicle in the No-Zone.
- **Wide Turns** - Truck drivers sometimes need to swing wide to the left in order to safely negotiate a right turn. They cannot see cars directly behind them. Cutting in between the commercial vehicle and the curb or shoulder to the right increases the possibility of a crash.

Backing Crashes

Sixty-six percent of all commercial vehicle crashes are while backing; therefore, never try to cross behind a truck which is preparing to back up. Often when a truck driver is preparing to back the truck from a roadway into a loading area, there is no choice but to temporarily block the roadway. It is here that some drivers and pedestrians attempt to pass behind the truck rather than wait the few seconds for the truck to complete its maneuver. In passing close behind the truck, the driver or pedestrian enters the truck's blind spot, and a crash may occur.

Reporting a Commercial Safety Violation

To report a possible commercial safety violation regarding hazardous materials, passenger transportation or household goods movement you may call 1-888-DOT-SAFT (368-7238) available Monday through Friday, 8 a.m. to 8 p.m. EST, or visit **http://nccdb.fmcsa.dot.gov/**.

SECTION FIVE
DRIVING SKILLS AND SAFETY TIPS

No driver manual can teach you how to operate a vehicle or be a safe driver. Driving requires skills you can only gain through instruction and practice. The following offers some basic driving information.

BEFORE YOU DRIVE

Your safety and that of the public depends a lot on what you do before driving, including adjusting the seat and mirrors, using safety belts, checking your vehicle, maintaining a clear view, and securing items in and on the vehicle.

Trip Planning

There are ways you can help reduce your driving costs. First, determine your overall transportation needs. For each trip, determine if it is necessary. If so, there may be times you do not need to drive yourself. You might ride with someone else or you could take public transportation if it is available.

The best way to prolong the life of your car and save on fuel is to use it as little as possible. Trip planning can make your life easier and help cut down on your driving:

- Take public transportation when it is available; (800-652-DART) **www.dartfirststate.com**.
- Avoid driving during heavy traffic, it causes extra wear and tear on you and the vehicle.
- Use carpools or share rides whenever possible; (888-743-3628) **www.ridesharedelaware.org**.
- Plan and then combine your trips. Make a list of the things you need and the places you need to go. Go to as many places as possible on any one trip. Try to reduce the number of places you need to go. This will cut down on the number of trips you need to take.
- Call ahead to make sure that they have what you need or that what you are picking up is ready.

By doing these things you can help cut down on the amount of traffic on the road, cut your travel costs, and save yourself time and effort.

Check The Vehicle

How safely you can drive starts with the vehicle you are driving. It is the duty of drivers to make certain that the vehicles they drive are safe to operate. A vehicle that is in bad shape is unsafe and costs more to run than one that is maintained. It can break down or cause a collision. If a vehicle is in bad shape, you might not be able to get out of an emergency situation. A vehicle in good shape can give you an extra safety margin when you need it, and you never know when you will need it.



You should follow your vehicle owner manual for routine maintenance. Some you can do yourself and some must be done by a qualified mechanic. A few simple checks will help prevent trouble on the road.

Braking system – Only your brakes can stop your vehicle. It is very dangerous if they are not working properly. If they do not seem to be working properly, are making a lot of noise, smell funny, or the brake pedal goes to the floor, have a mechanic check them.

Lights – Make sure that turn signals, brake lights, taillights, and headlights are operating properly. These should be checked from the outside of the vehicle. Brake lights tell other road users that you are stopping, and turn signals tell them you are turning.

An out-of-alignment headlight can shine where it does not help you and may blind other drivers. If you are having trouble seeing at night or if other drivers are constantly flashing their headlights at you, have a mechanic check the headlights.

Windshield and wipers – Damaged glass can more easily break in a minor collision or when something hits the windshield. Have a damaged windshield replaced.

Windshield wipers keep the rain and snow off the windshield. Some vehicles also have wipers for rear windows and headlights. Make sure all wipers are in good operating condition. If the blades are not clearing water well, replace them.

Tires – Worn or bald tires can increase your stopping distance and make turning more difficult when the road is wet. Unbalanced tires and low pressure cause faster tire wear, reduce fuel economy, and make the vehicle harder to steer and stop. If the vehicle bounces, the steering wheel shakes, or the vehicle pulls to one side, have a mechanic check it.

Worn tires can cause “hydroplaning,” and increase the chance of having a flat tire. Check tire air pressure with an air pressure gauge when the tires are cold. Check the vehicle’s owner manual or the side of the tires for the proper pressure.

Check the tread with a penny. Stick the penny into the tread “head” first. If the tread does not come at least to Abe’s head, the tire is unsafe and you need to replace it.

Steering system – If the steering is not working properly, it is difficult to control the direction you want to go. If the vehicle is hard to turn or does not turn when the steering wheel is first turned, have the steering checked by a mechanic.

Suspension system – Your suspension helps you control your vehicle and provides a comfortable ride over varying road surfaces. If the vehicle bounces a lot after a bump or a stop or is hard to control, you may need new shocks or other suspension parts. Have a mechanic check it out.

Exhaust system – The exhaust system helps reduce the noise from the engine, helps cool the hot gases coming from running the engine, and moves these gases to the rear of the vehicle. Gases from a leaky exhaust can cause death inside a vehicle in a very short time. Never run the motor in a closed garage. If you sit in a vehicle with the motor running for a long time, open a window.

Some exhaust leaks are easily heard, but many are not. This is why it is important to have the exhaust system checked periodically.

Engine compression device – No commercial vehicle equipped with an engine compression brake device may be operated on a highway, including residential streets, unless the vehicle is also equipped with a muffler in good working order in accordance with manufacturer's specifications and in constant operation to prevent excessive noise.

Engine – A poorly running engine may lose power that is needed for normal driving and emergencies, may not start, may get poor fuel economy, may pollute the air, and could stop running when you are on the road causing you and traffic a problem. Follow the procedures recommended in the vehicle's owner manual for maintenance.

Loose objects – Make sure that there are no loose objects in the vehicle that could hit someone in the event of a sudden stop or crash. Make sure there are no objects on the floor that could roll under the brake pedal and prevent you from stopping the vehicle.

Horn – The horn may not seem like it is important for safety, but as a warning device, it could save your life. Only use your horn as a warning to others.

Secure Your Load

Driving with an unsecured load is extremely dangerous. A load must be securely fastened and is only considered secure when nothing can slide, fall or shift onto the roadway or become airborne.

A 20 lb. object at 55 mph has a force of 1,000 lbs. at impact!

Here are some recommendations to properly secure your load in six easy steps:

1. Tie down load with rope, netting or straps
2. Tie large objects directly to the vehicle or trailer
3. Cover the entire load with a sturdy tarp or netting
4. Don't overload the vehicle
5. Always double check load to make sure a load is secure
6. Secure Your Load as if your loved ones driving in the car behind you

For more information, go to www.secureyourload.com.

Clean Glass Surfaces

It is important that you are able to see clearly through the windows, windshield, and mirrors.

Here are some things you can do to help:

- Keep the windshield clean. Bright sun or headlights on a dirty windshield make it hard to see. Carry liquid cleaner and a paper or cloth towel so you can clean your windshield whenever it is necessary.
- Keep your window washer bottle full. Use antifreeze wash in areas where the temperature could fall below freezing.
- Keep the inside of your windows clean, especially if anyone has been smoking in the vehicle. Smoking causes a film to build up on the inside glass.
- Clear snow, ice, or frost from all windows before driving. Make sure

you clean the front, sides, and back.

- Do not hang things from your mirror or clutter up the windshield with decals. They could block your view.
- Keep the headlights, backup, brake, and taillights clean. Dirt on the lenses can reduce the light by 50%.

Adjust Seat And Mirrors

You should always check your seat and mirrors before you start to drive. Make any adjustments to the seat and mirrors before you drive off.

- Adjust your seat so that you are high enough to clearly see the road. If necessary, use a seat cushion. Do not move the seat so far forward that you cannot easily steer. Seating should be positioned approximately 12 inches from the steering wheel.
- Adjust your rearview mirror and side mirrors. You should be able to see out the back window with the rearview mirror and to see out the side windows with the side mirrors. A good adjustment for the side mirrors is to set them so that when you lean forward slightly, you can see just the side of your vehicle.
- If you have a day/night mirror, make sure it is set for the time of day you are driving.
- Head restraints are designed to prevent whip lash if you are hit from behind. They should be adjusted so the head restraint contacts the back of your head.

Use Safety Belts

Before you drive away, always fasten your safety belts properly and make sure all your passengers are using safety belts or child restraints. Delaware law requires all occupants of a motor vehicle to wear seatbelts. Current statistics show that over 90% of Delawareans buckle up.



A law enforcement officer may pull a vehicle over if they see an unrestrained or improperly restrained occupant inside. Putting the shoulder belt under your arm or behind you can result in serious injury; and, because it is not considered proper safety belt use, could result in a ticket being issued.

It is important that you and your passengers use safety belts. Studies have shown that you can cut your chance of dying or being seriously injured in a crash nearly in half by simply wearing your seatbelt.

Wearing either part alone greatly reduces your protection. If you have an automatic shoulder belt, be sure to buckle your lap belt as well. Otherwise, in a collision you could slide out of the belt and be hurt or killed. Fatal crashes can occur at any speed.

In addition to protecting you from injury as a driver by preventing your ejection from the vehicle, safety belts help you keep control of the vehicle. If you are struck from the side or make a quick turn, the force could push you sideways. You cannot steer the vehicle if you are not behind the wheel.

Safety belts must be worn even if the vehicle is equipped with air bags. While air bags are good protection against hitting the steering wheel, dashboard, or windshield, they do not protect you if you are hit from the side or rear, or if the vehicle rolls over. And, an air bag will not keep you behind the wheel in these situations. Safety belts and air bags are designed to work together, and injuries may occur if safety belts are not used in air bag-equipped vehicles.

Use Child Restraints (Car Seats)



Delaware law requires:

- Children under age 2 AND 30 pounds to ride in a rear-facing car seat.
- Children under age 4 AND 40 pounds to ride in a harnessed car seat.
- Children in belt positioning booster seats to remain in their belt positioning booster seat until reaching the height or weight maximum listed by the booster seat manufacturer.
- Children who have reached the upper height and weight limits per the manufacturer's guidelines of a belt positioning booster seat and has not yet attained the age of 16 shall, in all seating positions, wear a properly secured seatbelt. This is a primary enforcement law, which means officers can pull a vehicle over if they see an unrestrained child inside. A child under the age of 12 or under 5'5" should not occupy the front passenger seat of a vehicle. Certain exceptions may be made which are located in Delaware code Title 21, Section 4803(b)(1) and (2).

Proper Restraint of Child

The National Highway Traffic Safety Administration (NHTSA) and the American Academy of Pediatrics (AAP) recommend the following for properly securing children in car seats:

- **Birth - 12 Months**: Children under the age of 1 should always ride in a rear-facing car seat. There are different types of rear-facing car seats: infant-only seats can only be used rear-facing; convertible and all-in-one car seats typically have higher height and weight limits for rear-facing mode, allowing you to keep your child rear-facing for a longer period of time.
- **1 - 3 Years**: Keep your child rear-facing for as long as possible. It's the best way to keep them safe. Your child should remain in a rear-facing car seat until they reach the top height or weight limit allowed for by your car seat's manufacturer for rear-facing mode. Once the rear-facing car seat is outgrown, your child is ready to travel in a forward-facing car seat with a harness.
- **4 - 7 Years**: Keep your 4- to 7-year-old children in a forward-facing car seat with a harness until they reach the top height or weight limit

allowed by your car seat's manufacturer for forward-facing mode. Once they outgrow their forward-facing car seat with a harness, it's time to travel in a booster seat.

- **8 -12 Years**: Keep your 8- to 12-year-old children in a booster seat until they are big enough to fit the adult seat belt properly. For a seat belt to fit properly the lap belt must lie snugly across the upper thighs, not the stomach. The shoulder belt should lie snug across the shoulder and chest and not cross the neck or face. Remember: your child should still ride in the back seat because it's safer there.



Other tips:

- The best car seat is the car seat that fits your child, fits your vehicle, and that you can use correctly every time.
- Never install a rear-facing car seat in front of an active frontal air bag.
- Harness straps should fit snugly. You should not be able to pinch excess webbing of the harness between your fingers when you try to pinch the harness straps at the child's collarbone.
- The chest clip should be even with the child's arm pits.
- Once installed, car seats should not move more than one inch side-to-side and front-to-back when checked at the belt path with moderate force.
- For forward-facing car seat installations, use the top tether whenever possible, whether you are installing with lower anchors or with the seat belt.
- Never try to hold a child on your lap unrestrained. The safest place for children to ride is in an appropriate car seat.

It is very important that you read your vehicle's owner manual and your car seat manual. Proper use and installation of car seats has a direct correlation to crash injury outcomes, even in a minor crash.

The Delaware Office of Highway Safety provides free car seat checks, which are one-on-one appointments for caregivers who need help with proper installation of their car seat and harnessing of their children in their car seats. Certified Child Passenger Safety Technicians will check your car seat for correct installation and proper harnessing of your child. Please visit their website at https://ohs.delaware.gov/carseat.shtml for additional information.

The Delaware Office of Highway Safety has car seat fitting stations in all three

counties. A fitting station is a year-round location where caregivers can get their car seats checked for proper use. Appointments are required at all locations. To make an appointment, please call or text the fitting station of your choice:

- New Castle County (302) 256-1123
- Kent County (302) 387-2324
- Sussex County (302) 242-7107

Warning! When it's hot outside, do not leave children or animals unattended.

On a hot summer day the interior of a car can get dangerously hot. One study found that with the windows up and the temperature outside at 94 degrees, the inside of a car could be 122 degrees in just half an hour or 132 degrees after an hour.

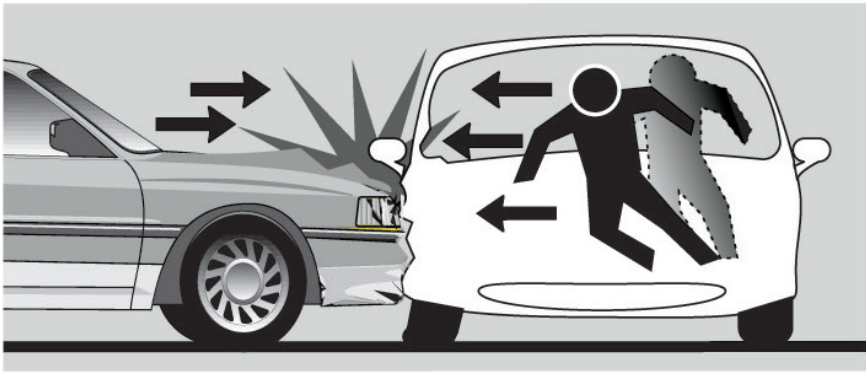
Prevent an unnecessary tragedy and make sure no one leaves small children or animals in a hot vehicle unattended.

Bad Information

Some people still have "bad information" about using safety belts. For example,

"Safety belts can trap you inside a car." It takes less than a second to undo a safety belt. Crashes where a vehicle catches fire or sinks in deep water and you are trapped, seldom happen. Even if they do, a safety belt may keep you from being knocked out. Your chance to escape will be better if you are conscious.

"Safety belts are good on long trips, but I do not need them if I am driving around town." Over half of all traffic deaths happen within 25 miles of home. Many of them occur on roads posted at less then 45 mph.



"Some people are thrown clear in a crash and walk away with hardly a scratch." Your chances of not being killed in a crash are much better if you stay inside the vehicle. Safety belts can keep you from being thrown out of your vehicle into the path of another one. Staying inside the vehicle will definitely reduce injuries.

"If I get hit from the side, I am better off being thrown across the car; away from the crash point." When a vehicle is struck from the side, it will move sideways. Everything in the vehicle that is not fastened down, including the passengers, will effectively slide toward the point of crash, not away from it.

"At slow speeds, I can brace myself." Even at 25 mph, the force of a head-on

crash is the same as pedaling a bicycle full-speed into a brick wall or diving off a three-story building onto the sidewalk. No one can brace for that.

An individual's constitutional and other legal rights during a traffic stop

In accordance with 11 Del. C. §1902 an individual must provide their name, address and an explanation as to why they are driving on the roadway and where they are going. Similarly, passengers in a vehicle must also provide their information and/or exit the vehicle, if requested to do so by the officer. An individual may ask the officer to identify them self and the agency that employs them.

An individual's vehicle may be searched on-scene if consent is provided to the officer to do so, if the officer believes they have probable cause to do so, or as part of an inventory assessment of a vehicle that is being towed. During roadside investigations a person does not have a right to an attorney; however, that right will present itself later in the process.

Laws regarding questioning and detention by a law-enforcement officer, proof of identity and consequences for failure to comply

No person shall drive a motor vehicle on a public street or highway of this State if they do not have a license to operate it. Failure to have the proper license or endorsement may lead to, at a minimum, fines and/or the loss of driving privileges. A person who fails to provide identification or who fails to explain their actions to the satisfaction of the officer, may be detained, further questioned, and investigated. A detention does not mean a person is under arrest. At the end of the detention period, which may not exceed two hours, the person will either be released, or arrested and charged with a crime. You may refer to 11 Del. C. §1902, 21 Del. C. §2701 and 21 Del. C. §2721 for additional information.

The role and procedures of a law-enforcement officer in general and during a traffic stop

An officer will initiate a traffic stop by giving a visible or audible signal, which could include using their emergency lights or sirens. The officer may approach your vehicle from either the driver or passenger side, identify themself and their agency, and state the reason for the traffic stop. Many times the officer will ask the driver if they have any reason for committing the traffic violation.

Driving a motor vehicle is a privilege, not a right. To comply with the law both the operator and the vehicle they are driving need to satisfy certain requirements. One of the roles of an officer is to enforce those safety requirements. The officer will ask for your driver license, proof of insurance, and vehicle registration. The officer may ask a series of questions. The officer may return to their vehicle to conduct inquires. You and your passengers should remain in your vehicle at all times unless instructed otherwise by the officer.

What to Do and Expect When Stopped by Law Enforcement

Law enforcement officers conduct traffic stops because they observe a traffic violation or are conducting a police investigation. Being stopped by a law enforcement officer can be a stressful experience but knowing what to do during the stop will help ensure your safety, the safety of other motorists, and the safety of the officer. When you see emergency lights behind you, stay calm, activate your turn signal, and pull off or to the side of the roadway as soon and safely as possible. When pulling over for an emergency vehicle, movements should be made to the right side of the roadway, whenever possible. Turn off the ignition and radio and stay in your vehicle unless directed by the officer to exit. Keep your hands on the steering wheel so they are easily observable. Ask your passengers

to remain calm and to stay in the vehicle while keeping their hands in plain view as well. Give the officer your full attention. Cell phones and mobile devices should not be used by you or any of your passengers. Do not make sudden moves or search for your driver's license or vehicle documents – wait for the officer to give you instructions. If you have a weapon(s) in the vehicle, inform the officer upon first contact. If it's nighttime, the officer may direct a spotlight at your vehicle once stopped.

How and where to file a compliment on behalf of or a complaint against a law-enforcement officer

You should contact the officer's agency via means determined by such agency. Most agencies have a website with contact information.

It is the goal of law enforcement to protect the public and conduct traffic stops in a manner that protects the safety of everyone involved. Your cooperation with law enforcement is the best way to ensure that your safety, and that of others, is not compromised during the stop.

BASIC DRIVING

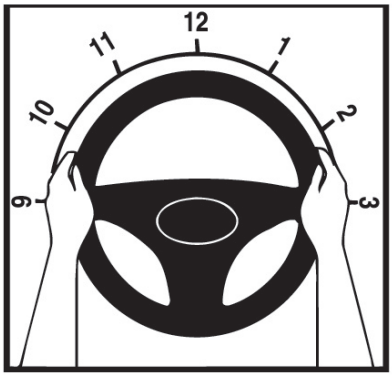
Starting

Check the vehicle's owner manual for how to best start the vehicle. Make sure the parking brake is on before you start the vehicle. If the vehicle has a manual transmission, it must not be in gear, and in some vehicles, the clutch must be depressed. For a vehicle that has an automatic transmission, you must put the shift selector in "park."

Accelerating

Accelerate gradually and smoothly. Trying to start too fast can cause the drive wheels to spin, particularly on slippery surfaces, and cause the vehicle to slide. With a manual-shift vehicle, practice using the clutch and accelerator so that the engine does not over-rev or stall when shifting between gears.

Steering



Both hands should be placed on opposite sides of the steering wheel (e.g., left hand between 8 and 10 o'clock and right hand between 2 and 4 o'clock). This position is comfortable, and on high speed roads it allows you to make turns without taking your hands off the wheel.

Be sure to look well down the road and on both sides of the road, not just at the road in front of your vehicle. Look for traffic situations where you will need to steer before you get to them. This way, you have time to steer smoothly and safely.

When turning sharp corners, turn the steering wheel using the "hand-over-hand" technique. When you complete a turn, straighten out the steering wheel by hand. Letting it slip through your fingers could be dangerous.

Speeding

The best way not to speed is to know how fast you are going. Check the speedometer often. People are not very good at judging how fast they are going. It is easy to be traveling much faster than you think. This is especially true when you leave high speed roads and are driving on much slower local roads.

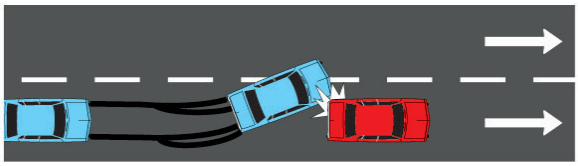
Follow the speed limit signs. They are there for your safety.



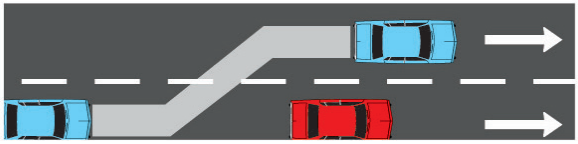
Stopping

Be alert so that you know when you will have to stop well ahead of time. Stopping suddenly is dangerous and usually points to a driver who was not paying attention. When you brake quickly, you could skid and lose control of your vehicle. You also make it harder for drivers behind you to stop without hitting you.

Try to avoid panic stops by seeing events well in advance. By slowing down or changing lanes, you may not have to stop at all, and if you do, you can make a more gradual and safer stop.



In emergency or slippery conditions without Anti-Lock Braking System, all wheels lock; car skids and is unsteerable.



In emergency or slippery conditions with Anti-Lock Braking System, wheels don't lock; car is stable and remains steerable.

Braking

Newer automobiles and trucks are equipped with Anti-Lock Brake Systems (ABS), which prevent vehicles from locking wheels and skidding in emergency or slippery conditions. With ABS you should brake as hard as possible and, if necessary, steer to avoid crashing. Without ABS, you should brake as hard as possible without locking the wheels.

Seeing Well

Most of what you do in driving depends on what you see. To be a good driver, you need to see well. The single biggest contributor to crashes is failing to see what is happening. You must look down the road, to the sides, and behind your vehicle and be alert for unexpected events. At night and at other times when it's hard to see, you must use your headlights.

You must be alert to what is going on around you. Many crashes occur because drivers do not pay enough attention to their driving. Do not take your eyes off the road for more than a few seconds at any one time. If you need to look at a map, pull safely off the road before you try to look at it. Do not try to read the map

Delaware's Law Enforcement Agencies...

will be out in force to stop and ticket those individuals who carelessly endanger our lives each and every day.

YOU CAN ASSIST US BY:

- Remaining Calm
- Not Taking Traffic Problems Personally
- Avoiding Eye Contact with Aggressive Drivers
- Not Challenging Them
- Staying Away from Erratic Drivers

ADDITIONALLY, you can help make Delaware's roadways safer by reporting aggressive driving with your cellular phone. Get their tag number and report it.

CALL 911

while you are driving. In many crashes with motorcycles, bicycles, and pedestrians, drivers reported that they looked but did not see them. If you have a cellular phone or CB radio, avoid using it when the vehicle is in motion. Even with "hands free" equipment, conversing on a phone or radio takes your attention away from driving and can cause you to be less likely to notice a dangerous situation.

Do not drive with head or earphones that cover or go in both ears. This is illegal in Delaware and many other states because it makes it hard to hear emergency horns or sirens.

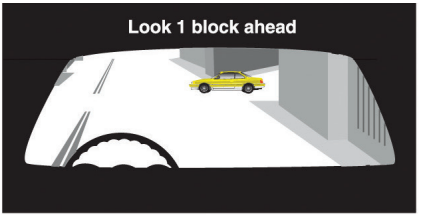
Do not slow down just to look at a crash, someone getting a ticket, or other roadside activity (rubbernecking). This could cause you to be in a crash. If you take your eyes off the road to look at something, you could run into a vehicle ahead that has slowed or stopped. Rubbernecking also can increase congestion. When you pass these roadside activities, keep your eyes on the road and get past them as soon and as safely as you can.

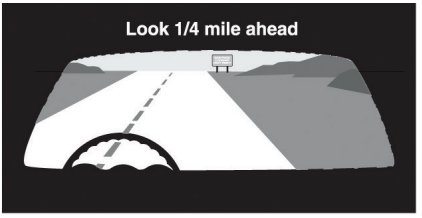
Scanning

To be a good driver, you must know what is happening around your vehicle. You must look ahead, to the sides, and behind the vehicle. Scanning helps you to see problems ahead, vehicles and people that may be in the road by the time you reach them, signs warning of problems ahead, and signs giving you directions.

Look ahead – In order to avoid last-minute braking or the need to turn, you should look well down the road. By looking ahead and being ready to stop or change lanes if needed, you can drive more safely, save fuel, help keep traffic moving at a steady pace, and allow yourself time to better see around your vehicle and alongside the road. Looking well down the road will also help you to steer straighter with less weaving. Safer drivers tend to look at least 10 seconds ahead of their vehicle. How far is this? It is the distance that your vehicle will travel in 10 seconds.

In the city, 10 seconds is about one block. When you drive in city traffic, you should try to look at least one block ahead. On the highway, 10 seconds is about four city blocks or a quarter of a mile.





Do you know how many seconds you are looking ahead? Here is how to figure how far ahead you are looking.

1. Find a non-moving object like a sign or telephone pole near the road about as far ahead as you are looking.
2. Start counting: one-one-thousand, two-one-thousand, three-one-thousand, etc., until you reach the object.
3. The number of seconds you have counted is the number of seconds ahead that you were looking.

You can be a safer driver by looking well ahead. You can avoid the need to stop or turn quickly. The less you have to stop or turn quickly, the less likely you are to run into someone or have someone run into you.

By looking well ahead, you can save fuel. Every time you have to stop quickly, it takes time and fuel to get your vehicle back up to speed. Drivers who look ahead, can slow down gradually or change lanes and avoid unnecessary braking that leads to lower miles per gallon.

Traffic would flow more smoothly if everyone looked well ahead. Making driving changes before the last moment gives drivers behind you more time to react. The earlier you act, the less often someone behind you has to react quickly to your vehicle. By seeing needed driving changes early, you can drive more safely, and that helps drivers behind you drive more safely too. It also keeps traffic moving at a steady pace.

Look to the sides – As other vehicles or pedestrians may cross or enter your path anytime, you should look to the sides to make sure no one is coming. This is especially true at intersections and railroad crossings.

Intersections – Intersections are any place where traffic merges or crosses. They include: cross streets, side streets, driveways, and shopping center or parking lot entrances. Before you enter an intersection, look to both the left and right for approaching vehicles and/or crossing pedestrians. If stopped, look to both the left and right just before you start moving. Look across the intersection before you start to move to make sure the path is clear all the way through the intersection, and you will not block it if you have to stop.

Before you turn left across oncoming traffic, look for a safe gap in the traffic. Look to the street you are turning onto to make sure that no vehicles or pedestrians are in your path, leaving you stranded in the path of oncoming traffic. Look one more time in the direction of oncoming traffic before you turn.

Before turning right, make sure that there is no traffic approaching from your left and no oncoming traffic turning left into your path. Do not begin your turn without checking for pedestrians crossing where you will be turning. You may turn right on red unless prohibited. You may also turn left from a one-way street onto another one-way street unless prohibited.

Do not rely on traffic signals or signs to tell you that no one will be crossing in front of you. Some drivers do not obey traffic signals or signs. At an intersection, look left and right, even if other traffic has a red light or a stop sign. This is especially important just after the light has turned green. This is when people on the cross street are most likely to hurry through the intersection before the light changes to red. Others who may not stop are individuals who have been drinking or other reckless drivers.

Make sure you can clearly see crossing traffic before entering an intersection. If you were stopped and your view of a cross street is blocked, edge forward slowly until you can see. By moving forward slowly, crossing drivers can see the front of your vehicle before you can see them. This gives them a chance to slow down and warn you if needed.

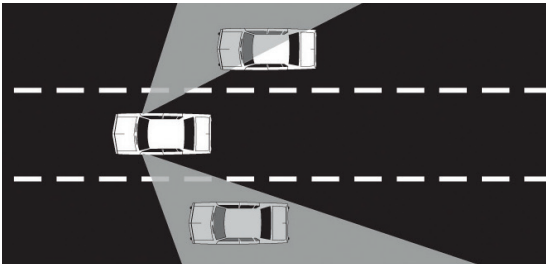
Whenever there is a lot of activity along the side of the road, there is a good chance that someone will cross or enter the road. Therefore, it is very important to look to the sides when you are near shopping centers and parking lots, construction areas, busy sidewalks, and playgrounds and school yards.

Railroad crossings – As you approach any railroad crossing, slow down and look up and down the tracks to make sure a train is not coming. Do not assume that a train is not coming even if you have never seen one at that crossing before. Always expect a train. Assuming that a train is not coming is one of the leading causes of fatalities at railroad crossings. Make sure there is room for your vehicle on the far side before you cross the tracks. Do not block the crossing.

At crossings with more than one track, wait until the passing train is well down the track before starting to cross. Another train may be hidden by the one that just passed.

Look behind - Besides watching traffic ahead of you, you must check traffic behind you. You need to check more often when traffic is heavy. This is the only way you will know if someone is following too closely or coming up too fast and will give you time to do something about it. It is very important to look for vehicles behind you when you change lanes, slow down, back up, or are driving down a long or steep hill.

When changing lanes - Whenever you want to change lanes, you must check that there are no vehicles in the lane you want to enter. This means you must check for traffic to the side and behind your vehicle before you change lanes. Changing lanes includes: changing from one lane to another, merging onto a roadway from an entrance ramp, and entering the roadway from the curb or shoulder. When changing lanes, you should:



• Signal your intention to change lanes.

• Look in your rearview and side mirrors. Make sure there are no vehicles in the lane you want to enter. Make sure that no one or vehicle is about to pass you.

- Look over your shoulder in the direction you plan to move. Be sure no one is near the rear corners of your vehicle. These areas are called “blind spots” because you cannot see them through your mirrors. You must turn your head and look to see vehicles in your blind spot.
- Check quickly. Do not take your eyes off the road ahead for more than an instant. Traffic ahead of you could stop suddenly while you are checking traffic to the sides, rear, or over your shoulder. Also, use your mirrors to check traffic while you are preparing to change lanes, merge, or pull onto the roadway. This way you can keep an eye on vehicles ahead of you at the same time. Check over your shoulder just before you change lanes for traffic in your blind spot. Look several times if you need to so as not to look for too long a period at any one time. You must keep track of what traffic is doing in front of you and in the lane you are entering.
- Check the far lane. Be sure to check the far lane, if there is one, as someone in that lane may be planning to move into the same lane you want to enter.
- Check for other road users. Remember that there are other road users such as motorcycles, bicycles, and pedestrians that are harder

to see than cars and trucks. Be especially alert when you are entering the roadway from the curb or driveway.

When you slow down – You must check behind your vehicle whenever you slow down. This is very important when you slow down quickly or at points where a following driver would not expect you to slow down, such as private driveways or parking spaces.

When you back up – It is hard for you to see behind your vehicle. Try to do as little backing as possible. In a shopping center, try to find a parking space you can drive through, so you can drive forward when you leave. Where backing is necessary, here are some hints that will help you back your vehicle safely.

- Check behind your vehicle before you get in. Children or small objects cannot be seen from the driver's seat.
- Place your right arm on the back of the seat and turn around so that you can look directly through the rear window. Do not depend on your rearview or side mirrors as you cannot see directly behind your vehicle.
- Back slowly, your vehicle is much harder to steer while you are backing.
- Whenever possible use a person outside the vehicle to help you reverse or back up.

When going down a long or steep hill – Check your mirrors when you are going down hills or mountains. Vehicles often build up speed going down a steep grade. Be alert for large trucks and buses that may be going too fast.

Using Your Lights

It is much harder to see at night. Here are some things you can do that will help you see better:

- Use your high beams whenever there are no oncoming vehicles. High beams let you see twice as far as low beams. It is important to use high beams on unfamiliar roads, in construction areas, or where there may be people along the side of the road.
- Dim your high beams whenever you come within about a one-block distance of an oncoming vehicle (within 500 feet by Delaware law).
- Use your low beams when following another vehicle or when in heavy traffic.
- Use the low beams in fog or when it is snowing or raining hard. Light from high beams will reflect back, causing glare and making it more difficult to see ahead. Some vehicles have fog lights that you should also use under these conditions.
- You must turn on your lights in rain, mist, and snow, and at any time you have your wipers on. It's the law in Delaware.
- Do not drive at any time with only your parking lights on. Parking lights are for parking only. If a vehicle comes toward you with high beams on, flash your headlights quickly a couple of times.
- If the driver fails to dim the lights, look toward the right side of the road. This will keep you from being blinded by the other vehicle's headlights and allow you to see enough of the edge of the road to stay on course. Do not try to "get back" at the other driver by keeping your bright lights on. If you do, both of you may be blinded.

COMMUNICATING

Letting Others Know You Are There

Crashes often happen because one driver does not see another driver, or when one driver does something the other driver does not expect. It is important that drivers let other road users know they are there and what they plan to do.

Use headlights – Besides helping you to see at night, headlights help other people see you. If needed, flick your headlights to alert other road users you are there.

- On rainy, snowy, or foggy days, it is sometimes hard for other drivers to see your vehicle. In these conditions, headlights make your vehicle easier to see. Remember, if you turn on your wipers, turn on your headlights. It's the law in Delaware and some other states.
- Turn on your headlights when it begins to get dark. Even if you turn them on a little early, you will help other drivers see you.
- Whenever driving and lights are necessary, use your headlights. Parking lights are for parked vehicles only.
- When driving away from a rising or setting sun, turn on your headlights. Drivers coming towards you may have trouble seeing your vehicle. Your headlights will help them see you.

Use your horn – People cannot see you unless they are looking your way. Your horn can get their attention. Use it whenever it will help prevent a crash. If there is no immediate danger, a light tap on the horn should be all you need. Give your horn a light tap:

- When a person on foot or on a bike appears to be moving into your lane of travel.
- When you are passing a driver who starts to turn into your lane.
- When a driver is not paying attention or may have trouble seeing you.
- When coming to a place where you cannot see what is ahead – like a steep hill, a sharp curve, or exiting a narrow alley.

If there is danger, do not be afraid to sound a sharp blast on your horn. Do this:

- When a child or older person is about to walk, run, or ride into the street.
- When another vehicle is in danger of hitting you.
- When you have lost control of your vehicle and are moving towards someone.

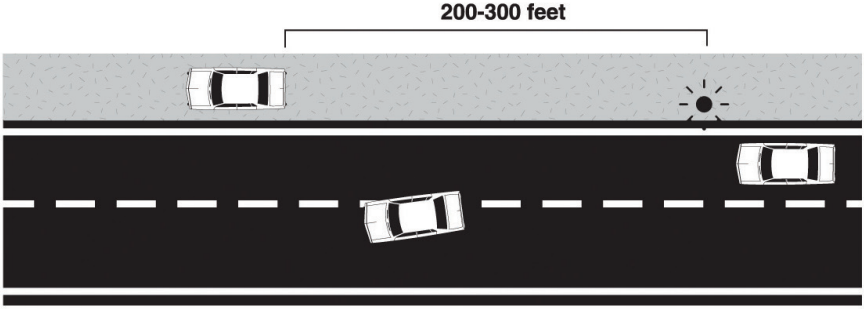
When not to use your horn – There are several occasions when you should not use your horn. They include:

- Encouraging someone to drive faster or get out of the way.
- Apprising other drivers of an error.
- Greeting a friend.
- Around blind pedestrians.

Use emergency signals – If your vehicle breaks down on a highway, make sure that other drivers can see it. All too often crashes occur because a driver did not see a stalled vehicle until it was too late to stop.

If available, use your 2-way radio or telephone to notify authorities that your vehicle or someone else has broken down. Many roadways have signs that tell you the CB channel or telephone number to call in an emergency. If you are having vehicle trouble and have to stop:

- Get your vehicle off the road and away from traffic if at all possible.
- Turn on your emergency flashers to show you are having trouble.
- Try to stop where other drivers have a clear view of your vehicle if you cannot get your vehicle off the roadway. (Do not stop just over a hill or just around a curve.)
- Try to warn other road users that your vehicle is there. Place emergency flares behind the vehicle. This allows other drivers to change lanes if necessary.
- If you do not have emergency flares or other warning devices, stand by the side of the road where you are safe from traffic and wave traffic around your vehicle. Use a white cloth if you have one.
- Never stand in the roadway. Do not try to change a tire if it means you have to be in a traffic lane.
- Lift the hood or tie a white cloth to the antenna, side mirror or door handle to signal an emergency.



Stay out of the blind spot - Drive your vehicle where others can see you. Do not drive in another vehicle's blind spot.

- Try to avoid driving on either side and slightly to the rear of another vehicle. You will be in their blind spot. Either speed up or drop back so the other driver can see your vehicle more easily.
- When passing another vehicle, get through the other driver's blind spot as quickly as you can. The longer you stay there, the longer you are in danger of them turning into you.
- Never stay alongside a large vehicle such as a truck or bus. These vehicles have large blind spots, and it's hard for drivers of large vehicles to see you.

Let Others Know What You Are Doing

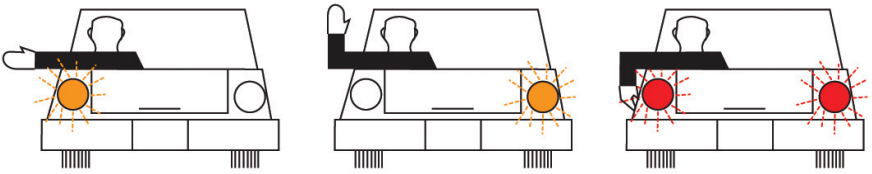
Generally, other drivers expect you to keep doing what you are doing. You must warn them when you are going to change direction or slow down. This will give them time to react if needed, or at least not to be surprised by what you do.

Signal when you change direction - Signaling gives other drivers time to react to your moves. You should use your turn signals before you change lanes, turn right or left, merge into traffic, or park.

- Get into the habit of signaling every time you change direction. Signal even when you do not see anyone else around. It is easy to miss someone who needs to know what you are doing.
- Signal as early as you can. Try and signal at least three seconds before you make your move, although Delaware law states you must signal for at least 300 feet before turning.
- Be careful that you do not signal too early. If there are streets, driveways, or entrances between you and where you want to turn, wait until you have passed them to signal.
- If another vehicle is about to enter the street between you and where you plan to turn, wait until you have passed it to signal your turn. If you signal earlier, the other driver may think you plan to turn where they are, and they might pull into your path.
- After you have made a turn or lane change, make sure your turn signal is off. After small turns, the signals may not turn off by themselves. Turn the signal off if it does not click off by itself. If you don't, others might think you plan to turn again.

Signal when you slow down - Your brake lights let people know that you are slowing down. Always slow down as early as it is safe to do so. If you are going to stop or slow down at a place where another driver does not expect it, tap your brake pedal three or four times quickly to let those behind you know you are about to slow down. Signal when you slow down:

- To turn off a roadway which does not have separate turn or exit lanes.
- To park or turn just before an intersection.
- To avoid something in the road or stopped or slowing traffic that a driver behind you cannot see.



You must make a hand and arm signal or use your electrical directional (turn) signal or both continuously for at least 300 feet before turning. You should signal for a much greater distance (longer time interval) when traveling at a high speed. This is particularly important when changing lanes on all express highways such as the interstate system.

ADJUSTING SPEED

The faster your vehicle is going, the more distance it will take to turn, slow, or stop. For example, stopping at 60 mph does not take twice the distance it takes at 30 mph as one might think, but over three times the distance. Driving safely means adjusting your speed for road and traffic conditions, how well you can see, and obeying speed limits.

Adjusting To Road Conditions

There are various road conditions where to be safe, you must slow down. For example, you must slow down before a sharp curve, when the roadway is slippery, and when there is standing water on the road.

The only contact your vehicle has with the road is through the tires. How good a grip the tires have with the road depends on the type and condition of the tires and the type and condition of the road surface.

Many drivers do not pay enough attention to the condition of their tires or to the condition of the roadway. It is important that the tires be in good condition and have enough air in them. See the vehicle's owner manual for correct tire pressure.

You do not have as much traction on gravel or dirt roads as you do on concrete or asphalt roads. When driving on gravel or dirt, you must slow down. It will take you much longer to stop, and it is much easier to skid when turning.

Curves - A vehicle can travel much faster in a straight line than it can in a curve. It is easy to go too fast in a curve. If you go too fast, then the tires will not be able to grip the road and the vehicle will skid. Always slow down before you enter the curve so you do not have to brake in the curve. Braking in a curve can cause the vehicle to skid.

Slippery roads - Slow down at the first sign of rain, snow, or sleet. These all make the roadway slippery. When the road is slippery, the vehicle's tires do not grip as well as they do on a dry road. How slow should you go? On a wet road you should reduce your speed about 10 mph. On packed snow you should cut your speed in half. Use snow tires or chains when the road has snow on it. On ice, you must slow to a "crawl". It is very dangerous to drive on ice.

If at all possible, do not drive when the roads are icy. In some areas where there is a lot of icy weather, special studded tires are allowed. Because these tires can cause road damage, they are not allowed in many areas, or on certain roads, or during summer months. (See Prohibited Equipment)

Some road surfaces are slippery at certain times or places. Here are some clues to help you spot slippery roads:

- On cold, wet days shady spots can be icy. These areas freeze first and dry out last.
- Overpasses and other types of bridges can have icy spots. The pavement on bridges can be icy even when other pavement is not. This is because bridges can be colder than other roadways.
- When the temperature is around the freezing point, ice can become wet. This makes conditions more slippery than at temperatures well below freezing.
- If it starts to rain on a hot day, pavement can be very slippery for the

first few minutes. Heat causes the oil in the asphalt to come to the surface. The road is more slippery until the oil is washed off.

Water on the roadway - When it is raining or the road is wet, most tires have good traction up to about 35 mph. However, as you go faster, your tires will start to ride up on the water, like water skis. This is called "hydroplaning." In a heavy rain, your tires can lose all traction with the road at about 50 mph. Bald or badly worn tires will lose traction at much lower speeds. The best way to keep from hydroplaning is to slow down in the rain or when the road is wet.

If it feels like your tires have lost traction with the surface of the road you should:

- Ease your foot off the gas pedal.
- Keep the steering wheel straight. Only try to turn if it's an emergency. If you must turn, do it slowly, or you will cause your vehicle to skid.
- Do not try to stop or turn until your tires are gripping the road again.

If you must drive in slippery conditions, review "Dealing with Skids" in the Emergencies section at the back of this manual.

Adjusting To Traffic

Vehicles moving in the same direction at the same speed cannot hit one another. Crashes involving two or more vehicles often happen when drivers go faster or slower than other vehicles on the road.

Keep pace with traffic – If you are going faster than traffic, you will have to keep passing others. Each time you pass someone, there is a chance for a collision. The vehicle you are passing may change lanes suddenly; or on a two-lane road an oncoming vehicle may appear suddenly. Slow down and keep pace with other traffic. Speeding does not save more than a few minutes an hour.

Going much slower than other vehicles can be just as bad as speeding. It tends to make vehicles bunch up behind you and causes the other traffic to pass you. If vehicles are piled up behind you, pull over when safe to do so and let them pass. You should either drive faster or consider using roads with slower speeds.

Entering into traffic – When you merge with traffic, try to enter at the same speed that traffic is moving. High-speed roadways generally have ramps to give you time to build up your speed. Use the ramp to reach the speed of other vehicles before you pull onto the road. Do not drive to the end of the ramp and stop or you will not have enough room to get up to the speed of traffic. Also, drivers behind you will not expect you to stop. If they are watching the traffic on the main road, you may be hit from the rear. If you have to wait for space to enter a roadway, slow down on the ramp so you have some room to speed up before you merge.

Leaving traffic – Keep up with the speed of traffic as long as you are on the main road. If the road you are traveling has exit ramps, do not slow down until you move onto the exit ramp. When you turn from a high speed, two-lane roadway, try not to slow down too early if you have traffic following you. Tap your brakes and reduce your speed quickly but safely, and remember to signal.

Slow moving traffic – Some vehicles cannot travel very fast or have trouble keeping up with the speed of traffic. If you spot these vehicles early, you have time to change lanes or slow down safely. Slowing suddenly can cause a traffic crash.

- Watch for large trucks and small underpowered cars on steep grades or when they are entering traffic. They can lose speed on long or steep hills, and it takes longer for these vehicles to get up to speed when they enter traffic.
- Farm tractors, animal-drawn vehicles, and roadway maintenance vehicles usually go 25 mph or less. These vehicles should have a slow-moving vehicle decal (an orange triangle) on the back.

Trouble spots – Wherever people or traffic gather, your room to maneuver is limited. You need to lower your speed to have time to react in a crowded space. Here are some of the places where you may need to slow down:

- **Shopping centers, parking lots, and downtown areas** – These are busy areas with vehicles and people stopping, starting, and moving in different directions.
- **Rush hours** – Rush hours often have heavy traffic and drivers that always seem to be in a hurry.
- **Narrow bridges and tunnels** – Vehicles approaching each other in these areas are closer together.
- **Toll plazas** – Vehicles are changing lanes and preparing to stop and then speeding up again when leaving the plaza. The number of lanes could change both before and after the plaza.
- **Schools, playgrounds, and residential streets** – These areas often have children present. Always be alert for children crossing the street, running, or riding into the street without looking.
- **Railroad crossings** – You need to make sure that there are no trains coming and that you have room to cross. Some crossings are bumpy, so you need to slow down to safely cross. Do not block the crossing.

NIGHT DRIVING

Night driving is always more difficult and dangerous than day driving. Per mile driven, the fatal crash rate at night throughout the nation is two-and-one-half times as high as during the day. At night the driver does not see as far, as soon, or as much, and everything has a different appearance.

The glare of oncoming headlights greatly increases the difficulty, especially for older drivers. The glare causes the pupils of the eyes to contract, and it takes time for them to readjust to less intense light. During this recovery period you may be driving as though blind.

You can make your night driving safer in these ways:

- Most important of all, don't over drive your headlights.
- Keep your speed low enough to be able to stop in the distance you can see ahead.
- When passing vehicles, do not stare at their headlights. Use quick glances to:
    - Learn lane position of oncoming vehicles.
    - Learn your own position.
    - Be certain of the right edge of road.
    - Look ahead for objects in your path.

DRIVE DEFENSIVELY

Don't trust the other driver to do what you think they are going to do, or what you would do in his place. For example, when their turn signal is flashing, don't assume that they will make a turn. Plan ahead and decide what to do if they don't turn as well as if they do turn. Don't assume that every driver will stop when there is a stop sign or a red traffic light. Some drivers deliberately "run" stop signs and traffic lights; others may be daydreaming.

You should constantly be thinking of an "escape route" as you drive. After a few weeks of practice, this will become second nature. Then, if a sudden emergency arises, you will have a plan of action ready. For instance, if you see an approaching vehicle start to pass and you think they may not have room, slow down. Also, by having studied the shoulder and nearby area, you will know where you can go if necessary. The same consideration applies to curves, bridges, and hills.

HOW WELL CAN YOU SEE?

If something is in your path and you need to stop, you need to see it in time to be able to stop. It takes much longer and further to stop than many people think. If your vehicle has good tires, brakes, and dry pavement:

- At 50 mph, it can take about 400 feet to react to something you see and bring your vehicle to a stop. That is about the length of a city block.
- At 30 mph, it can take about 200 feet to stop. That is almost half a city block in length. If you cannot see 400 feet ahead, it means you may not be driving safely at 50 mph. If you cannot see 200 feet ahead, you may not be driving safely at 30 mph. By the time you see an object in your path, it may be too late to stop without hitting it.

Here are some things that limit how well you can see and hints you can follow to be a safer driver.

Darkness

It is harder to see at night. You must be closer to an object to see it at night than during the day. You must be able to stop within the distance you can see ahead with your headlights. Your headlights will let you see about 350 feet ahead. You should drive at a speed that allows you to stop within this distance (about 50 mph).

Rain, Fog, Or Snow

In a very heavy rain, snowstorm, or thick fog, you may not be able to see much more than 200 feet ahead. When you cannot see any farther than that, you cannot safely drive faster than 30 mph. In a very heavy downpour, you may not be able to see well enough to drive. If this happens, pull off the road in a safe place and wait until the rain clears.

Hills And Curves

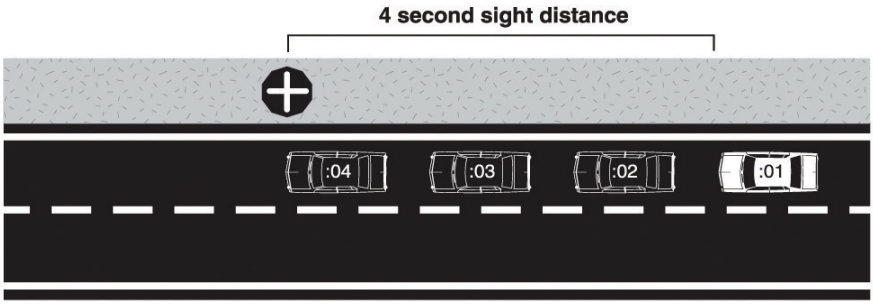
You may not know what is on the other side of a hill or just around a curve, even if you have driven the road many times. If a vehicle is stalled on the road just over a hill or around a curve, you must be able to stop. Whenever you come to a hill or curve where you cannot see over or around, adjust your speed so you can stop if necessary.

Parked Vehicles

Vehicles parked along the side of the road may block your view. People may be ready to get out of a vehicle or walk out from between parked vehicles. Give parked vehicles as much room as you safely can.

Sight Distance Rule

Drive at a speed where you can always safely stop. To tell if you are driving too fast for conditions, use the "Four-Second Sight Distance Rule." Pick out a stationary object as far ahead as you can clearly see (e.g., a sign or a telephone pole). Start counting "one-one-thousand, two-one-thousand, three-one-thousand, four-one-thousand." If you reach the object before you finish saying "four-one-thousand," you need to slow down. You are going too fast for your sight distance. You must not drive faster than the distance you can see. If you do, you are not safe and could injure or kill yourself or others.



You should also use the four-second sight distance rule at night to make sure you are not over-driving your headlights.

Speed Limits

You must comply with speed limits. They are based on the design of the road and the type of vehicles that use them. Speed limits take into account things you cannot see, such as side roads and driveways where people may pull out suddenly and the amount of traffic that uses the road.

Remember, speed limits are posted for ideal conditions. If the road is wet or icy, if you cannot see well, or if traffic is heavy, then you must slow down. Keep in mind even if you are driving under the posted speed limit, you can get a ticket for traveling too fast during unsafe conditions.

SHARING SPACE

You must always share the road with others. The more distance you keep between yourself and everyone else, the more time you have to react. This space is like a safety cushion. The more you have, the safer you can be. This section describes how to make sure you have enough space around you when you drive.

Space Ahead

Rear-end crashes are very common. They are caused from drivers following too closely to be able to stop before hitting the vehicle ahead when it suddenly stops. There is an easy way to tell if you are following too closely. It is called the "three-second rule," and it works at any speed.

- Watch for when the rear of the vehicle ahead passes a sign, pole, or any other stationary point.
- Count the seconds it takes you to reach the same spot. ("one-one-thousand, two-one-thousand, three-one-thousand").
- You are following too closely if you pass the mark before you finish counting.
- If so, drop back and then count again at another spot to check your following distance. Repeat until you are following no closer than three seconds.

There are situations where you need more space in front of your vehicle. In the following situations, you may need a four-second following distance to be safe.

- **On slippery roads** – Because you need more distance to stop your vehicle on slippery roads, you must leave more space in front of you. If the vehicle ahead suddenly stops, you will need the extra distance to stop safely.
- **When the driver behind you wants to pass** – Slow down to allow room in front of your vehicle. Slowing will also allow the pass to be completed sooner.
- **When following motorcycles** – If the motorcycle should fall over, you need extra distance to avoid hitting the rider. The chances of a fall are greatest on wet or icy roads, gravel roads, or on metal surfaces such as bridges, gratings, or streetcar or railroad tracks.
- **When following drivers who cannot see you** – The drivers of trucks, buses, vans or vehicles pulling campers or trailers may not be able to see you when you are directly behind them. They could stop suddenly without knowing you are there. Large vehicles also block your view of the road ahead. Falling back allows you more room to see ahead and to be seen.
- **When you have a heavy load or are pulling a trailer** – The extra weight increases your stopping distance.
- **When it is hard for you to see** – When it is hard for you to see ahead because of darkness or bad weather, you need to increase your following distance.
- **When being followed closely** – If you are being followed closely, you should try and make extra space. You will then be able to stop without being hit from behind.
- **When following emergency vehicles** – Police vehicles, ambulances, and fire trucks need more room to operate.
- **When approaching railroad crossings** – Leave extra room for vehicles required to come to a stop at railroad crossings, including transit buses, school buses, or vehicles carrying hazardous materials.
- **When stopped on a hill or incline** – Leave extra space when stopped on a hill or incline. The vehicle ahead may roll back when it starts up or takes off.

Space Behind

It is not always easy to maintain a safe distance behind your vehicle. However, you can help keep the driver at a safe distance by keeping a steady speed and signaling in advance when you have to slow down or turn.

- **Stopping to pick up or let off passengers** – Try to find a safe place out of traffic to stop.
- **Parallel parking** – If you want to parallel park and there is traffic coming behind you, put on your turn signal, pull next to the space, and allow following vehicles to pass before you park.
- **Driving slowly** – When you have to drive so slowly that you slow down other vehicles, pull to the side of the road when safe to do so and let them pass. There are "turnout" areas on some two lane roads you can use. Other two lane roads sometimes have "passing lanes."
- **Being tailgated** – Every now and then you may find yourself being followed closely or "tailgated" by another driver. If you are being followed too closely and there is a right lane, move over to the right. If there is no right lane, wait until the road ahead is clear then reduce speed slowly. This will encourage the tailgater to drive around you. Never slow down quickly to discourage a tailgater, all that does is increase your risk of being hit from behind.



Space To The Side

You need space on both sides of your vehicle to have room to turn or change lanes.

- Avoid driving next to other vehicles on multi-lane roads. Someone may crowd your lane or try to change lanes and pull into you. Move ahead or drop in back of the other vehicle.
- Keep as much space as you can between yourself and oncoming vehicles. On a two-lane road, this means not crowding the center line. In general, it is safest to drive in the center of your lane.
- Make room for vehicles entering on a roadway that has two or more lanes. If there is no one next to you, move over a lane.
- Keep extra space between your vehicle and parked cars. Someone could step out from a parked vehicle, from between vehicles, or a parked vehicle could pull out.
- Give extra space to pedestrians or bicycles, especially children. They can move into your path quickly and without warning. Do not share

a lane with a pedestrian or bicyclist. Wait until it is safe to pass in the adjoining lane.

- Split the difference between two hazards. For example, steer a middle course between oncoming and parked vehicles. However, except in the case of a vulnerable user such as a pedestrian or a cyclist, if one hazard is more dangerous than the other, leave a little more space on the dangerous side. For example, if the oncoming vehicle is a tractor-trailer, leave a little more room on the side that the truck will pass.
- When possible, take potential hazards one at a time. For example, if you are overtaking a bicycle and an oncoming vehicle is approaching, slow down and let the vehicle pass first so that you can give extra room to the bicycle. Motorists are required to leave a minimum of three feet of clearance at all times when passing a cyclist, and on multi-lane roads to move to the adjacent lane whenever possible.

Space To Merge

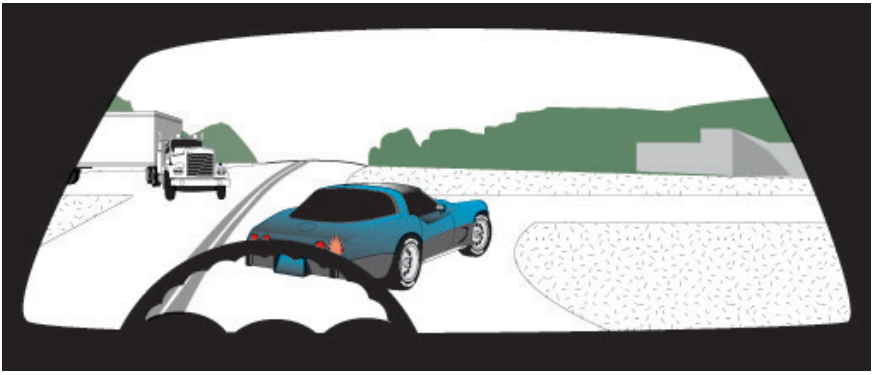
Anytime you want to merge with other traffic, you need a gap of about four seconds. If you move into the middle of a four-second gap, both you and the vehicle that is now behind you have a three-second following distance. You need a four-second gap whenever you change lanes, enter a roadway, or when your lane merges with another travel lane.

- Do not try to merge into a gap that is too small. A small gap can quickly become even smaller. Enter a gap that gives you a big enough space cushion to be safe.
- If you want to cross several lanes, take them one at a time. Like going up or down stairs one step at a time, it is safest and easiest to merge one lane at a time. It is very difficult to determine that all the lanes are free and safe to cross. If you wait until all the lanes are clear, you can tie up traffic and even cause a crash.

Space To Cross Or Enter

When you cross traffic, you need a large enough gap to get all the way across the road. When you enter traffic, you need enough space to turn and get up to speed.

- When you cross traffic, you need room to get all the way across. Stopping halfway across is only safe when there is a median divider large enough for your vehicle. Do not stop on a divider where part of your vehicle is sticking out into traffic.



- If you are turning left, make sure there are no vehicles or pedestrians blocking your path. You do not want to be caught waiting for a path to clear while stuck across a lane that has oncoming vehicles coming towards you.
- Even if you have the green light, do not start across the intersection if there are vehicles blocking your way. If you are caught in the intersection when the light changes to red, you will block other traffic. You can get a ticket for blocking an intersection.
- Never assume another driver will share space with you or give you space. For example, do not turn just because an approaching vehicle has a turn signal on. The driver may plan to turn after passing your vehicle or may have forgotten to turn the signal off from a prior turn. This is particularly true of motorcycles as their signals often do not cancel by themselves. Wait until the other driver actually starts to turn and then go if it is safe to do so.
- When you cross railroad tracks, make sure you can cross without having to stop on the tracks.

Space To Pass

Whenever signs or road markings permit you to pass, you will have to judge whether you have enough room to pass safely. Do not count on having enough time to pass several vehicles at once. Be safe. As a general rule only pass one vehicle at a time.

- **Oncoming vehicles** – At a speed of 55 mph, you need about 10 seconds to pass. That means you need a 10-second gap in oncoming traffic and sight distance to pass. You must judge whether you will have enough space to pass safely.

  At 55 mph you will travel over 800 feet in 10 seconds, as will an oncoming vehicle. That means you need over 1600 feet or about one-third of a mile to pass safely. It is hard to judge the speed of oncoming vehicles at this distance. They do not seem to be coming as fast as they really are. A vehicle that is far away generally appears to be standing still. In fact, if you can actually see that it is coming closer, it may be too close for you to pass. If you are not sure, wait to pass until you are sure that there is enough space.
- **Hills and curves** – You have to be able to see at least one-third of a mile or about 10 seconds ahead. Anytime your view is blocked by a curve or a hill, you should assume that there is an oncoming vehicle just out of sight. Therefore, you should treat a curve or a hill as you do an oncoming vehicle. This means you should not start to pass if you are within one-third of a mile of a hill or curve.
- **Intersections** – It is dangerous to pass where a vehicle is likely to enter or cross the road. Such places include intersections, railroad crossings, and shopping center entrances. While you are passing, your view of people, vehicles, or trains can be blocked by the vehicle you are passing. Also, drivers turning right into the approaching lane will not expect to find you approaching in their lane. They may not even look your way before turning.
- **Lane restrictions** – Before you pass, look ahead for road conditions and traffic that may cause other vehicles to move into your lane. You might lose your space for passing because of:

- People or bicyclists near the road.
- A narrow bridge or other situation that causes reduced lane width.
- A patch of ice, pot hole, or something on the road.

- **Space to return** – Do not pass unless you have enough space to return to the driving lane; do not count on other drivers to make room for you.
- **Railroad grade crossing** – Do not pass if there is a railroad grade crossing ahead.

Before you return to the driving lane, be sure to leave enough room between yourself and the vehicle you have passed. When you can see both headlights of the vehicle you just passed in your rearview mirror, it is safe to return to the driving lane.

Space For Special Situations

There are certain drivers and other road users to which you should give extra room. Some are listed below.

Those who cannot see you – Anyone who cannot see you may enter your path without knowing you are there. Those who could have trouble seeing you include:

- Drivers at intersections or driveways whose view is blocked by buildings, trees, or other vehicles.
- Drivers backing into the roadway, or backing into or pulling out of parking spaces.
- Drivers whose windows are covered with snow or ice, or are steamed up.
- Pedestrians with umbrellas in front of their faces or with their hats pulled down.

People who are distracted – Even when others can see you, allow extra room or be extra cautious if you think they may be distracted. People who may be distracted include:

- Delivery persons.
- Construction workers.
- Children or drivers who are not paying attention.

People who may be confused – People who are confused may cause an unsafe situation. People who may be confused include:

- Tourists or others who do not seem to know where they are going.
- Drivers who slow down for what seems like no reason.
- Drivers looking for street signs or house numbers.

Drivers in trouble – If another driver makes a mistake, do not make it worse. For example, drivers who pass you when they do not have enough room. Slow down and let them return to the drive lane safely. If another driver needs to suddenly change lanes, slow down and let them merge. These gestures will keep traffic moving smoothly and safely and help you avoid a crash.

BE IN SHAPE TO DRIVE

Driving safely is not always easy. In fact it is one of the most complex things that people do. It is also one of the few things we do regularly that can injure or kill us. It is worth the effort to be a careful driver.

Being a safe driver takes a lot of skill and judgment. This task is even more difficult when you are just learning to drive. Driving can easily take every ability you have. If anything happens so you are not up to your ability, you may not be a safe driver. Your ability to be a safe driver depends on being able to see clearly, not being overly tired, not driving while on drugs or drinking alcohol, being generally healthy, and being emotionally fit to drive. In other words, being in "shape" to drive safely.

Vision



Good vision is a must for safe driving. You drive based on what you see. If you cannot see clearly, you will have trouble identifying traffic and road conditions, spotting potential trouble, or reacting in a timely manner.

Vision is so important that Delaware requires that you pass a vision screening before you get a driver license. To pass this screening you must have at least 20/40 vision in at least one eye, with or without corrective lenses. Those with 20/50 vision are restricted to daylight driving only.

Other important aspects of vision are:

- **Side vision** - You need to see "out the corner of your eye." This lets you spot vehicles and other potential trouble on either side of you while you look ahead. Because you cannot focus on things to the side, you also must use your side mirrors and glance to the side if necessary.
- **Judging distances and speeds** - Even if you can see clearly, you still may not be able to judge distances or speeds very well. You are not alone; many people have problems judging distances and speeds. It takes a lot of practice to be able to judge both. It is especially important in knowing how far you are from other vehicles, judging safe gaps when merging and when passing on two-lane roads, or when judging the speed of a train before crossing railroad tracks safely.
- **Night vision** - Many people who can see clearly in the daytime have trouble seeing at night. It is more difficult for everyone to see at night than in the daytime. Some drivers have problems with glare while driving at night, especially with the glare of oncoming headlights. If you have problems seeing at night, don't drive more than is necessary and be very careful when you do.

Seeing well is important to safe driving. You should have your eyes checked every year or two by an eye specialist. You may not realize you have poor vision until

your eyes are tested. If you need to wear glasses or contact lenses for driving, remember to:

- Always wear them when you drive, even if it is only to run down to the corner. If your driver license says you must wear corrective lenses and you do not and you happen to be stopped, you could get a ticket.
- Try to keep an extra pair of glasses in your vehicle. If your regular glasses are broken or lost, you can use the spare pair to drive safely. This also can be helpful if you do not wear glasses all the time as it is easy to misplace them.
- Avoid using dark glasses or tinted contact lenses at night, even if you think they help with glare. They can cut down the light that you need to see clearly.

Hearing

Hearing can be helpful to safe driving. The sound of horns, a siren, or screeching tires can warn you of danger. Hearing problems, like bad eyesight, can come on so slowly that you do not notice it. Drivers who know they are deaf or have hearing problems can adjust and be safe drivers. These drivers learn to rely more on their vision and tend to stay more alert. Studies have shown that the driving records of hearing-impaired drivers are just as good as those drivers with good hearing.

Fatigue

You cannot drive as safely when you are tired as when you are rested. You do not see as well, nor are you as alert. It takes you more time to make decisions, and you do not always make good decisions. You can be more irritable and can get upset more easily. When you are tired, you could fall asleep behind the wheel and crash, injuring or killing yourself or others.

There are things you can do to help from getting tired on a long trip, such as:

- Try to get a normal night's sleep before you leave.
- Do not leave on a trip if you are already tired. Plan your trips so you can leave when you are rested.
- Do not take any medicine that can make you drowsy.
- Eat lightly. Do not eat a large meal before you leave. Some people get sleepy after they eat a big meal.
- Take breaks. Stop every hour or so or when you need to. Walk around, get some fresh air, and have some coffee, soda, or juice. The few minutes spent on a rest break can save your life. Plan for plenty of time to complete your trip safely.
- Try not to drive late at night when you are normally asleep. Your body thinks it is time to go to sleep and will try to do so.
- Never drive if you are sleepy. It is better to stop and sleep for a few hours than to take a chance you can stay awake. If possible, switch driving tasks with another driver so you can sleep while they drive.

Drinking And Driving

Nationally, alcohol is involved in about 28% of the traffic crashes in which someone is killed. If you drink alcohol, even a little, your chances of being in a crash are much greater than if you did not drink any alcohol.

No one can drink alcohol and drive safely, even if you have been driving for many years. New drivers are more affected by alcohol than experienced drivers, because they are still learning to drive.

Drinking alcohol and then driving is dangerous. The penalties are very tough. People who drive after drinking risk heavy fines, higher insurance rates, loss of license, and even jail sentences. Penalties in Delaware are summarized in the Alcohol, Drugs, and Driving paragraph in Section Two of this manual.

Health

Many health problems can affect your driving— a bad cold, infection, or virus. Even little problems like a stiff neck, a cough, or a sore leg can affect your driving. If you are not feeling well and need to go somewhere, let someone else drive.

Some conditions can be very dangerous:

- **Epilepsy** - So long as it is under medical control, epilepsy generally is not dangerous. In Delaware those persons who are subject to loss of consciousness due to disease of the central nervous system must be certified that the infirmity is under sufficient control to permit them to drive safely.
- **Diabetes** - Diabetics who take insulin should not drive when there is any chance of an insulin reaction, blackout, convulsion, or shock. Such a situation could result from skipping a meal or snack or from taking the wrong amount of insulin. It also might be a good idea to have someone else drive for you during times when your doctor is adjusting your insulin dosage. If you have diabetes, you also should have your eyes checked regularly for possible night blindness or other vision problems.
- **Heart condition** - People with heart diseases, high blood pressure, or circulation problems or those in danger of a blackout, fainting, or a heart attack should not get behind the wheel. If you are being treated by a doctor for a heart condition, ask if the condition could affect your ability to drive safely.

Emotions

Emotions can have a great effect on your driving safely. You may not be able to drive well if you are overly worried, excited, afraid, angry, or depressed.

- If you are angry or excited, give yourself time to cool off. If necessary take a short walk, but stay off the road until you have calmed down.
- If you are worried, feeling down, or are upset about something, try to keep your mind on your driving. Some have found listening to the radio helps.
- If you are impatient, give yourself extra time for your driving trip. Leave a few minutes early. If you have plenty of time, you may not tend to speed or do other things that can cause you to get a traffic ticket or cause a crash. Don't be impatient waiting for a train to cross in front of you. Driving around lowered gates or trying to beat the train can be fatal.

VEHICLE EMERGENCIES

There is always a chance of a vehicle problem while driving. You should follow the recommended maintenance schedule listed in the your vehicle's owner manual. Following these preventive measures greatly reduces the chance your vehicle will have a problem. Possible vehicle failures and what you can do if they happen are listed below.

Steering Wheel Locking Device

Never turn your vehicle's ignition to the "lock" position while it is still in motion. This will cause the steering to lock if you try to turn the steering wheel, and you will lose control of your vehicle.

Brake Failure

If your brakes stop working:

- Pump the brake pedal several times. This will often build up enough brake pressure to allow you to stop.
- If that does not work, use the parking brake. Pull on the parking brake handle slowly so you will not lock the rear wheels and cause a skid. Be ready to release the brake if the vehicle does start to skid.
- If that does not work, start shifting to lower gears and look for a safe place to slow to a stop. Make sure the vehicle is off the roadway. Do not drive the vehicle without brakes.

If your brakes are wet:

- After driving through deep water you should test your brakes. They may pull to one side or not hold at all.
- To dry brakes, put your car in low gear, drive slowly, and tap/apply brakes lightly.
- Test every 200 feet, continuing until braking action returns to normal.

Running Off The Pavement

Running off the pavement causes serious crashes. To avoid doing so, be attentive. If you run off the pavement or are forced off:

- Don't panic.
- Don't jam on the brakes. Brake carefully or not at all.
- Take your foot off the accelerator.
- Grip the steering wheel tightly as the unusual stress may twist it from your hands.
- Don't try to get back onto the pavement until you have your vehicle under control, your speed is reduced to 15 mph or less, and you have looked for traffic behind you. Then turn the front wheels sharply toward the pavement. Be careful not to cross the center line.



Tire Blowout

If a tire suddenly goes flat:

- Hold the steering wheel tightly and keep the vehicle going straight.
- Slow down gradually. Take your foot off the gas pedal and use the brakes lightly.
- Do not stop on the road if at all possible. Pull off the road in a safe place.

Power Failure

If the engine dies while you are driving:

- Keep a strong grip on the steering wheel. Be aware that the steering wheel may be difficult to turn, but you can turn it.
- Pull off the roadway. The brakes should still work, but you may have to push very hard on the brake pedal.

Headlight Failure

If your headlights suddenly go out:

- Try the headlight switch a few times.
- If that does not work, put on the emergency flashers, turn signals, or fog lights if you have them.
- Pull off the road as soon as possible.

Gas Pedal Sticks

The motor keeps going faster and faster:

- Keep your eyes on the road.
- Quickly shift to neutral.
- Pull off the road when safe to do so.
- Turn off the engine.

Fire

- If smoke comes from under the hood, get off the roadway.
- If no chemical fire extinguisher is available, use dirt or sand to smother the fire. Do not use water – burning gas will float on it and spread the fire.
- If a fire gets out of control, move at least 100 feet away from the vehicle as the gas tank may explode.

Stalling On Railroad Tracks

- Look both ways for trains. If none are coming, try to restart your vehicle. If it does not start, or you are not sure whether a train is coming, get out and move away from your vehicle.
- If there is a train coming, get out and move away from the tracks. Get as far away as you can, and run in the general direction the train is coming from, so that debris from the collision will not hit you.

AVOIDING COLLISIONS

When it looks like a collision may happen, many drivers panic and fail to act. In some cases they do act, but they do something that does not help to reduce the chance of the collision. There is almost always something you can do to avoid the crash or reduce the impact of the crash. In avoiding a collision, drivers have three options: stop, turn, or speed up.

Stopping Quickly

Many newer vehicles have an ABS (Anti-lock Braking System). Be sure to read the vehicle's owner manual on how to use the ABS. The ABS system will allow you to stop without skidding. In general, if you need to stop quickly:

With ABS

- Press on the brake pedal as hard as you can and keep pressing on it.
- You might feel the brake pedal pushing back when the ABS is working. Do not let up on the brake pedal. The ABS system will only work with the brake pedal pushed down.

Without ABS

- You can cause the vehicle to go into a skid if you brake too hard.
- Apply the brakes as hard as you can without locking them.
- If the brakes lock up, you will feel the vehicle start to skid. Quickly let up on the brake pedal.
- As soon as the vehicle stops skidding, push down on the brake pedal again. Keep doing this until the vehicle has stopped.

Turning Quickly

In most cases, you can turn the vehicle quicker than you can stop it. You should consider turning in order to avoid a collision.

Make sure you have a good grip with both hands on the steering wheel. Once you have turned away or changed lanes, you must be ready to keep the vehicle under control. Some drivers steer away from one collision only to end up in another. Always steer in the direction you want the vehicle to go.

With ABS - One aspect of having ABS is that you can turn your vehicle while braking without skidding. This is very helpful if you must turn and stop or slow down.

Without ABS - If you do not have ABS, you must use a different procedure to turn quickly. You should step on the brake pedal, then let up and turn the steering wheel. Braking will slow the vehicle, put more weight on the front tires, and allow for a quicker turn. Do not lock up the front wheels while braking or turn so sharply that the vehicle can only plow ahead.

Remember that generally it is better to run off the road than to crash head-on into another vehicle.

Speeding Up

Sometimes it is best or necessary to speed up to avoid a collision. This may happen when another vehicle is about to hit you from the side or from behind and there is room to the front of you to get out of danger. Be sure to slow down once the danger has passed.

Dealing With Skids



Any road that is safe under normal conditions can be dangerous when it is wet or has snow or ice on it. High speeds under normal conditions also increase the possibility of a skid if you must turn or stop suddenly. Skids are caused when the tires can no longer grip the road. As you cannot control a vehicle when it is skidding, it is best not to cause your vehicle to skid in the first place. Skids are caused by drivers traveling too fast for conditions.

If your vehicle begins to skid:

- Stay off the brake. Until the vehicle slows, your brakes will not work and could cause you to skid more.
- Steer. Turn the steering wheel in the direction you want the vehicle to go. As soon as the vehicle begins to straighten out, turn the steering wheel back the other way. If you do not do so, your vehicle may swing around in the other direction and you could start a new skid.
- Continue to steer. Continue to correct your steering, left and right, until the vehicle is again moving down the road under your control.

PROTECT YOURSELF IN COLLISIONS

You may not always be able to avoid a collision. Try everything you can to keep from getting hit. If nothing works, try to lessen any injuries that could result from the crash. The most important thing you can do is to use your lap and shoulder belts. Besides your safety belts, there are a couple of other things that could help prevent more serious injuries.

Hit From The Rear

If your vehicle is hit from the rear, your body will effectively be thrown backwards. Press yourself against the back of your seat, and put your head against the head restraint. Be ready to apply your brakes so that you will not be pushed into another vehicle.

Hit From The Side

If your vehicle is hit from the side, your body will effectively be thrown towards the side that is hit. Air bags may not help in this situation. Your lap and shoulder belts are needed to help keep you behind the wheel. Get ready to steer or brake to prevent your vehicle from hitting something else.

Hit From The Front

If your vehicle is about to be hit from the front, it is important to try to have a "glancing blow" rather than being struck head on. This means that if a collision is going to happen, you should try to turn the vehicle. At worst, you will hit with a glancing blow; or you might miss it. If your vehicle has an air bag, it will inflate. It also will deflate following the crash, so be ready to prevent your vehicle from hitting something else. You must use your lap and shoulder belts to keep you behind the wheel and to protect you if your vehicle has a second crash.

CRASHES

Do not stop at a crash unless you are involved or if emergency help has not yet arrived. Keep your attention on your driving and keep moving, watching for people who might be in or near the road. Never drive to the scene of a crash, fire, or other disaster just to look. You may block the way for police, firefighters, ambulances, tow trucks, and other rescue vehicles.

No matter how good a driver you are, there may be a time when you are involved in a crash. If you are involved in a crash, you must stop. If you are involved in a crash with a parked vehicle, you must try to locate the owner. If any person is injured or killed, the police must be notified. It is a crime for you to leave a crash site where your vehicle was involved if there is an injury or death before police have talked to you and gotten all the information they need about the crash.

You may want to carry a basic vehicle emergency kit. These kits have emergency flares, first aid supplies, and basic tools.

At The Crash Scene

- Stop your vehicle at the crash site. If, after reasonably ascertaining that there are no injuries or deaths, and if the damaged vehicle is obstructing traffic, the driver of the vehicle must make every reasonable effort to move the vehicle or have it moved so as not to obstruct the regular flow of traffic more than necessary.
- Do not stand or walk in traffic lanes. You could be struck by another vehicle.
- Turn off the ignition of wrecked vehicles. Do not smoke around wrecked vehicles. Fuel could have spilled and fire is a real danger.
- If there are power lines down with wires in the road, do not go near them.
- Make sure that other traffic will not be involved in the crash. Use flares or other warning devices to alert traffic of the crash.

If Someone Is Injured

- Get help. Make sure the police and emergency medical or rescue squad have been called. If there is a fire, inform the police when they are called.
- Do not move the injured unless they are in a burning vehicle or in other immediate danger of being hit by another vehicle. Moving a person can make their injuries worse.
- First help anyone who is not already walking and talking. Check for breathing then check for bleeding.
- If there is bleeding, apply pressure directly on the wound with your hand or with a cloth. Even severe bleeding can almost always be stopped or slowed by putting pressure on the wound.
- Do not give injured persons anything to drink, not even water.
- To help prevent an injured person from going into shock, cover them with a blanket or coat to keep them warm.

Reporting Crashes

The driver of any vehicle involved in a crash resulting in apparent damage to property shall immediately stop such vehicle at the scene of the crash. If the damage resulting from such a crash is to the property of the driver only, with no damage to the person or property of another, the driver need not stay at the scene of the crash but shall immediately report the crash.

The driver of any vehicle involved in a crash resulting in injury or death to any person shall immediately stop such vehicle at the scene of the crash. The driver shall render aid to any person injured, including the carrying of the injured person to a hospital or physician for medical treatment as needed.

Exchange information with other drivers involved in the crash. If there is personal property damage, injury, or death, the driver shall provide their name, address, vehicle registration number, driver license number, and insurance company and the policy number.

Get the names and addresses of all people involved in the crash and any witnesses, including the injured persons.

Should the crash involve a parked vehicle, try to find the owner. If you cannot, leave a note in a place where it can be seen with information on how the owner can reach you and the date and time of the crash.

The driver of any vehicle involved in a crash shall immediately report such crash to the police agency which has primary jurisdictional responsibility for the location in which the crash occurred:

1. When the crash results in injury or death to any person.
2. When the crash occurs on a public highway, and it results in property damage to an apparent extent of $500.00 or more.
3. When it appears that a crash involves a driver whose physical ability has been impaired as a result of alcohol or drug use, and it results in property damage to an apparent extent of $1,000.00 or more.

Crash forms are available from most insurance agents. The form on the following pages may be useful when reporting a crash.

Report an Issue

If you have observed a roadway condition that should be addressed immediately, such as a traffic signal malfunction, sign damage, debris in the roadway, or an improperly set up work zone, please directly contact the DelDOT Transportation Management Center (operating 24/7/365) at 302-659-4600, #77 on your cell, or through e-mail at **TMC1@delaware.gov.**

The Report an Issue form is also available online accessible from the following link **https://deldot.gov/Traffic/ReportRoadCondition/index.shtml**.

NOTES

NOTES

NOTES

CRASH REPORTING FORM

Crash Date	Time		
Street/Hwy./Intersection	City	State	
Police Dept./Sheriff	Case #	Tickets Issued? Yes/No	
If yes, to whom?	Charge		

OTHER VEHICLE

Year	Make		Model
Color	License Plate #	State	

DRIVER OF OTHER VEHICLE

Name	Age	Apparent Injuries? Yes/No	
Street	City	State	Zip
Home Phone	Business Phone	Ext.	
Drivers License #/State	Insurance Carrier		

REGISTERED OWNER OF OTHER VEHICLE

Name			
Street	City	State	Zip
Home Phone	Business Phone	Ext.	
Drivers License #/State	Insurance Carrier		

PASSENGERS IN OTHER VEHICLE

Name			
Street	City	State	Zip
Home Phone	Business Phone	Ext.	
Age Sex Ht. Wt.	Position in vehicle at time of crash		
Injury Type			

PASSENGERS IN OTHER VEHICLE

Name

Street | City | State | Zip

Home Phone | Business Phone | Ext.

Age Sex Ht. Wt. | Position in vehicle at time of crash

Injury Type

WITNESSES

Name

Street | City | State | Zip

Home Phone | Business Phone | Ext.

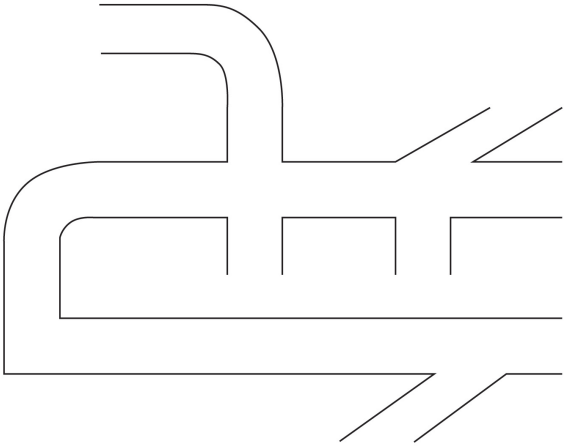
Name

Street | City | State | Zip

Home Phone | Business Phone | Ext.

DESCRIPTION

DRAWINGS



INDEX

Adjusting to Road Conditions 123-124
Aggressive Driving 49
Alcohol, Drugs and Driving 49-59
Animal Drivers and Riders 102
Basic Driving 113-119
Backing 103, 104
Beacons Supplementing Signs 78
Bicycles 96-99
Bike Box 11, 96
Blood Alcohol 50-52
Braking 115
Cell Phone/Hand-Held Electronic Device Use While Driving 81
CDL 37-38
Change of Name or Address 33, 67
Child Safety Devices, Belts 109-111
Child Support Delinquency 46
Class D License 37-39
Classification of Licenses 37-39
Conditional License 39
Construction Equipment & Devices 78-80
Crashes 140-141
Crossing, Pedestrian 94-95
Defensive Driving Courses 49
Diverging Diamond Intersection (DDI) 86
Documents Required for Driver License or ID 21-27
Drinking and Driving 49-53
Driver's Education 27
Driver's Examination 40-43
Driver License 16-32
- First Time Applicants 30
- Change of Name or Address 33, 67
- Classes of 37-39
- Replacement Driver License 33
- Federal Identification Standards 16-18
- Fees 14-16
- Graduated Driver License 38
- Improvement Programs 46-48
- Learner's Permit 28-30
- Licensed in Other States 31
- Medical Conditions 43-44
- Permanent Renewal 32
- Restricted 32

Renewals 32
Revocation & Suspension. 44-46
Who Does Not Need 18
Who May Not Be Licensed 18
Driving in Fog, Rain, or Snow 126
Driving Violations 44-46
Driving While Intoxicated. 49-59
Driving While Suspended or Revoked. 49
Drugs 52
Emergencies 136-138
Emergency Notification System (ENS) 83
Emergency Vehicles. 82
Emotions 135
Endorsements 39-40
Equipment (Vehicle)
Required 60-61
Additional 61
Prohibited 61-62
Examination, Driver 40-43
Exchange Student Licensing 32
Eye Screening (Test) 40-41
Farm Equipment. 102
Fire 138
Fees. 14-15
Flaggers 80
Financial Responsibility. 63-64
Fog, Darkness 126
Following, Sight of Distance (4 second rule). 127
Good Samaritan Law 36
Habitual Offender 45
Hardship License 39
Headlights, use of 62, 119
High Occupancy Vehicles (HOV) 85
Identification Cards 33
Ignition Interlock Device (IID) 56-59
Immigration Status 19-24
Implied Consent 54
Inspection and Registration 63-68
Out of State 67-68
Renewal 67
Insurance, Liability. 63
Lane Control 84-88
Lane Driving 84-88

Learner's Permits 28-30, 38
Lift Kits 62
Ignition Interlock Device (IID) Program for First Offense Election (FOE) 56
Ignition Interlock Device (IID) Program 58-59
Medical Conditions 43
Medical Indicator 14, 35
Medical Suspensions 44
Megan's Law 35
Mopeds 101
Motorcycles 39, 99-101
Move Over Laws 82
New Residents 60, 63
Next of Kin Registry 35
Night Driving 125
Occupational Licenses 40, 48
OHV (Off Highway Vehicles) 101
On-Line Services 13
Organ and Tissue Donor 35-36
Out-of-State Inspections 67-68
Overhead Lane Signals 75
Overtaking (Passing) 81
Parking 91-93
Pavement Markings 84
Pedestrians 94-95
Point System 47-48
Railroads 83-84, 118, 125, 128, 131
Rectangular Rapid Flashing Beacon 73
Red Light Reinforcement Program 69
Registration 63-68
    Change of Address 33, 67
    Change of Name 33, 67
    License Plates 62, 64
Renewals 32, 65, 67
Report an Issue 142
Required Documentation Table 22-27
Revocation of Driver License 44-45
Right of Way 69, 88-89
Road Machinery 102
Road Test 41-42
Rules of the Road 69-104
Safety Belts 108-112
School Buses 40, 89-90
Selective Service Registration 35

Sharing the Road with Trucks 102-104
Signaling 81, 120-122
Signals, Signs. 69-81
Signals, Hand. 122
Skidding 139
Slow-Moving Vehicles. 102
Space Sharing 127, 132
Social Security Numbers 23, 35
Speeding Violations 48
Speed Limits 93-94
Steering Wheel Locking 136
Stopping and Parking 91-93
Studded Tires 62
Suspension of Driver License. 44-46
Tailgating. 129
TAT- Human Trafficking 36
Taxi/Limo Endorsement 40
Temporary Licenses. 38-39
Testing 41-43
Tinted Windows 62
Title 65-67
Traffic Control Laws. 83-90
Transfer Driver License 30-31
Trip Planning 105
Tripeds (and Mopeds). 101
Turning 87-88
Two-Way Cycle Track. 13, 97
Vehicle Registration. 63-68
Vision Screening. 40-41
Voter Registration. 34
Wet Pavement 123-124
Who Must Not Use the Highway 102
Work Zones 78-80
Zero Tolerance Law 54
DMV WEB PAGE. . . . . **dmv.de.gov**
TEEN DRIVER WEB PAGE . . . . . **teendriving.dmv.de.gov**
SENIOR DRIVER WEB PAGE. . . . . **seniordriver.dmv.de.gov**

LOCATIONS

Wilmington | 302.434.3200
2230 Hessler Blvd
New Castle, DE 19720

Delaware City | 302.326.5000
2101 Mid County Drive
New Castle, DE 19720

Dover | 302.744.2500
303 Transportation Circle
Dover, DE 19901

Georgetown | 302.853.1000
23737 DuPont Blvd
Georgetown, DE 19947

HOURS AT ALL LOCATIONS

Monday, Tuesday, Thursday & Friday
8 a.m. - 4:30 p.m.

Wednesday
11 a.m. - 7 p.m.

myDMV online services

myDMV.delaware.gov
24 hours, 7 days a week.

WE'RE SOCIAL!

@DMVDelaware

@DelawareDMV